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Amendment

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To build a prosperous nation committed to socialism based on values and principles;

We hereby promulgate this Constitution through the Constituent Assembly to fulfill the aspirations of sustainable governance, good governance, development, and prosperity through a federal democratic and democratic system of governance.

नेपाल कानून आयोग

Part-1

Preamble

1. Constitution - Fundamental Law: (1) This Constitution is the fundamental law of Nepal. This Constitution
The law of the game shall be invalid until the game is
played. (2) It shall be the duty of every person to abide by this Constitution.
2. Sovereignty and State Power: The sovereignty and state power of Nepal are vested in the Nepali
people. They shall be exercised as provided in this Constitution.
3. Nation: All Nepalese people are united by the thread of unity, having equal Geographical Diversity
aspirations and faith in national independence, geographical integrity, national peace and prosperity
of Nepal, having equal nationality.
4. State of Nepal: (1) Nepal is an independent, indivisible, sovereign, secular, inclusive, democratic,
socialist, federal democratic republic. Explanation: For the purposes of this article, the
term "secular" means protection of religion and culture and respect for religious and cultural
freedom. (2) Nepal has six territories: (a) The northern part of the Indian subcontinent
was formed from the Indian subcontinent, and
(b) the western part was formed from the Indian
subcontinent. 5. Rajya Vidya: (1) Nepal's independence,
sovereignty, territorial integrity, sovereignty, independence, self-respect, security of Nepal, border security,
economic prosperity and prosperity are the basic subjects of Nepal's Rajya Vidya. (2) Conduct and
acts punishable by law are prohibited under federal law.
6. Tourism: The tourism industry in Nepal is booming.
7. Language of official business: (1) The Nepali language, as written in the official script, shall be the
official language of Nepal.

(2) A Nepali-speaking province may, in accordance with provincial law, designate one or more other languages spoken by a significant number of people within its province as the language of official business of the province.

(3) Other matters relating to language shall be decided by the Government of Nepal on the recommendation of the Language Commission.

8. ~~Nepali flag: (1) The Nepali flag of Nepal is a flag of Nepal consisting of two triangular shapes, with a dark blue border and a crescent moon in the middle, on the upper part of the flag and a twelve-pointed sun in the lower part. (2) The Nepali flag of Nepal, the method of making the Nepali flag and other details related to it shall be as mentioned in Schedule-1.~~

9. ~~Raaviyya Gana Etc: (1) The Raaviyya Gana of Nepal is as mentioned in Schedule-2.~~

(2) The

national emblem of Nepal shall be as mentioned in Schedule-3. (3) The national emblem of Nepal shall be the red-headed

cow, the national emblem of the Indian elephant, the national emblem of the Indian buffalo, the national emblem of the Indian buffalo and the national emblem of the Indian bird.

Part-2

Citizenship

10. ~~Deprivation of citizenship: (1) No Nepali citizen shall be deprived of citizenship.~~

No election will be held from

whom. (2) In Nepal, a single federal citizenship has been provided for all the regional councils.

11. ~~Citizens of Nepal: (1) Persons~~ who have acquired the citizenship of Nepal at the commencement of this Constitution and who are eligible to acquire citizenship under this Part shall be citizens of Nepal. (2) A

person who is a permanent resident of Nepal at the commencement of this Constitution shall be considered a citizen of Nepal by descent: (a) A

person who has acquired the citizenship of Nepal by descent before the commencement of this

Constitution, (b) A person whose father or mother was a citizen of Nepal at the time of his birth

(3) A person who has acquired

citizenship of Nepal by birth before the commencement of this Constitution shall, on attaining majority, acquire citizenship of Nepal by descent if his mother is a citizen of Nepal.

(4) Every minor found in Nepal and whose parents are unknown shall

Until one's parents are found, one will be considered a citizen of Nepal based on lineage.

(5) A person born in Nepal to a Nepali mother and residing in Nepal and whose father is unknown shall be granted Nepali citizenship on the basis of descent. However, if the father is found to be a

foreign citizen, the citizenship of such person shall be converted into naturalization and citizenship in accordance with the federal law. (6) A

foreign woman who has established a civil relationship with a Nepali citizen may, if she so desires, obtain naturalization and citizenship of Nepal in

accordance with the federal law. (7) Unless otherwise provided in this Article, a person born to a Nepali woman who is married to a foreign citizen shall acquire naturalization and citizenship in Nepal

If you have permanent residence and have acquired the citizenship of a foreign country, you may acquire naturalized citizenship of Nepal in accordance with federal law.

However, if both the mother and father of the person applying for citizenship are Nepali citizens, then the person born in Nepal will be able to obtain Nepali citizenship on the basis of descent.

(8) Except as provided in this Article, the Government of Nepal may grant naturalized citizenship of Nepal in accordance with federal law. (9) The Government of

Nepal may grant honorary citizenship of Nepal in accordance with federal law. (10) If any area is acquired as a village

within Nepal, the residence within that area shall be

A person who has become a citizen of Nepal shall be subject to federal law.

12. Citizenship on the basis of lineage and gender identity: A person who obtains citizenship of Nepal on the basis of lineage in accordance with this Constitution may obtain a certificate of citizenship of Nepal on the basis of gender identity in the name of his mother or father.

13. Acquisition, re-acquisition of citizenship and other provisions relating to the acquisition, re-acquisition of citizenship and social integration shall be made in accordance with federal law.

14. Non-resident Nepali citizenship may be granted: A person who has acquired the citizenship of a foreign country and who has resided in a country other than a member state of the South Asian Association for Regional Cooperation, and whose father, mother, or grandfather were citizens of Nepal on the basis of descent or birth, may be granted non-resident Nepali citizenship in accordance with the federal law, so that the person who has acquired the citizenship of a foreign country may enjoy economic, social and cultural rights.

15. Other provisions relating to citizenship of Nepal: The maintenance of records revealing the identity of every citizen of Nepal and other provisions relating to citizenship of Nepal shall be made in accordance with federal law.

Part-3

Fundamental Rights

and ~~Freedom 16. Right to live with dignity~~: (1) Every individual has the right to live with dignity.

(2) No

law shall be made imposing the death penalty on any person.

17. ~~Article of Freedom~~: (1) No person shall be deprived of his personal liberty except in accordance with law. (2) Every citizen shall have

the following freedoms: (a) Freedom of thought and expression, (b) Freedom of assembly without prior notice, (c) Freedom to form political parties, (d) Freedom to form associations and organizations, (e) Freedom to reside and reside in any part of Nepal, (f) Freedom to establish and carry on any profession, employment, industry, trade or business in any part of Nepal.

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(1) Nothing in clause (a) shall be deemed to prevent the making of any law imposing reasonable restrictions on acts that may interfere with the sovereignty, territorial integrity, national independence and sovereignty of Nepal or with the harmonious relations between the federal unit or different castes, creeds, religions and sects, promote caste discrimination or discrimination against the untouchables, violate labor laws, abuse, insult, disrespect the courts, commit crimes, commit crimes, commit

public disorder or act against morality. (2) Nothing in clause (b) shall be deemed to prevent the making of an Act imposing reasonable restrictions on acts prejudicial to the sovereignty, territorial integrity, independence and sovereignty of Nepal, good relations between federal units or public order and peace.

- (3) Nothing in clause (c) shall be construed as violating the sovereignty, territorial integrity, independence and sovereignty of Nepal, espionage against the nation, violation of national secrets, cooperation with any foreign state, organization or institution in a manner that endangers the security of Nepal, or subversion of the state, or disrupting good relations between federal units, or spreading racial or communal hatred, or disrupting good relations between different castes, creeds, religions and sects, or restricting or restricting membership of any political party solely on the basis of creed, language, religion, sect or nationality. It shall not be deemed to prohibit the making of laws imposing unreasonable restrictions on the formation of political parties that discriminate among citizens, the commission of acts of vandalism, or acts that are contrary to public order.
- (4) Nothing in clause (d) shall be deemed to prevent the making of any Act imposing reasonable restrictions on acts that violate the sovereignty, territorial integrity, independence and sovereignty of Nepal, espionage against the nation, violation of national secrets, assistance to any foreign state, organization or institution that endangers the security of Nepal, subversion of the state or disrupting good relations between federal units, or spreading ethnic or communal hatred, disrupting good relations between different castes, races, religions and sects, or any act that is destructive, harmful or contrary to public order.
- (5) Nothing in clause (e) shall be construed as prejudicing or aggravating the good relations between the general public or the federal unit or between people of different castes, creeds, religions or sects or as advocating or encouraging the doing of such acts.

(6) Nothing in clause (f) shall be deemed to prevent the making of any law imposing unreasonable restrictions on any

act or activity which may disturb the good relations between the Federal Units or which may be prejudicial to the public health, education or morals of the general public, or which may restrict the carrying on of any particular industry, trade or service by the State alone, or which may restrict any qualification or qualification for the carrying on of any profession, employment, industry, trade or business.

18. Right to Equality: (1) All citizens are equal before the law. No one shall be discriminated against

Equal protection of the law shall not be denied. (2) In the application

of the general law, there shall be no discrimination on the basis of birth, religion, race, colour, sex, colour, physical condition, disability, health status, national origin, pregnancy, economic status, language or region, religious belief or any other similar ground.

(3) The State shall not make any distinction between citizenship of India on the basis of birth, religion, caste, creed, race, economic

There are distinctions based on religion, language, region, ideological belief or any other basis.

However, it shall not be deemed to prevent the making of special provisions in accordance with law for the protection, empowerment or development of socially or culturally backward communities, Dalits, tribals, indigenous peoples, Madhesis, Tharus, Muslims, oppressed groups, backward groups, minorities, marginalized groups, farmers, workers, youth, children, senior citizens, sexual and gender minorities, persons with disabilities, pregnant women, the disabled or homeless, backward areas and citizens with special incomes. Explanation: For the purposes of this Part and Part 4, "financially disadvantaged" means a person with an income below the income threshold set forth in federal law.

(4) There shall be no discrimination on the basis of sex in remuneration and social security for equal work. (5)

All persons shall be entitled to

equal rights without discrimination on the basis of sex in the possession of fixed assets.

19. Freedom of Information: (1) No restrictions shall be imposed on the publication or broadcasting of any news, editorial, article, composition or any other textual, audio, or audiovisual material or on the dissemination or printing of information by any means of electronic publication, broadcasting

or printing. However, it shall not be deemed to prohibit the making of laws imposing reasonable restrictions on acts that disrupt the sovereignty, territorial integrity, good relations between the states or federal units of Nepal or the good relations between different castes, creeds, religions or sects, or that prevent or abet treason, insult, contempt of court or a crime, or that prevent or abet public disorder, acts that are hostile to morality, or that prevent or abet labor discrimination, caste discrimination

and gender discrimination. (2) No media, television, online or any other type of digital or electronic device, press or other media which publishes, broadcasts or prints any news, article, editorial, composition, information or any other material through any audio, audiovisual or electronic device or printing house shall be closed, seized or cancelled or such material shall be seized. However, nothing contained in this clause shall be deemed to prohibit the making

of an Act to regulate any media, television, online or any other type of digital or electronic device, press or other media. (3) No other press, electronic broadcast or telephone service except as provided by law.

The four means of transportation will not be blocked.

20. Judicial matters: (1) Public notice of the arrest of any person

No person shall be detained

without due process. (2) A person arrested shall, from the time of his arrest, be entitled to consult a legal practitioner of his choice and to be represented by such a legal practitioner. The consultation of such person with his legal practitioner and the advice given by him shall be kept

confidential. However, this clause shall not apply to a citizen of an enemy country.

Explanation: For the purposes of this clause, the term "legal practitioner" shall mean a person authorized by law to represent any person in any court or tribunal.

(3) A person arrested shall be produced before the officer in charge of the case within twenty-four hours of the time and place of arrest and shall not be detained in custody unless ordered by such officer. However, this clause shall not apply to a person under preventive detention and to a citizen of an enemy country.

(4) No person shall be liable to punishment for any act punishable by law for the time being in force and no person shall be

punished more severely than the punishment provided for by law in the case of an offence. (5) No person charged with any offence shall be deemed guilty until proven guilty. (6) No person shall be tried and punished more than once in a court of law for

the same offence. (7) No person accused of any offence shall be compelled to be a witness against himself.

(8) Every person shall be entitled to be informed of any action taken against him. (9) Every person shall have the right to a fair trial by an independent, impartial and competent court or tribunal.

The mind is the source of pure hearing.

(10) The indigent party shall be entitled to free legal assistance in accordance with the law.

21. Rights of the Criminal Prosecutor: (1) The Criminal Prosecutor shall be entitled to information regarding the investigation and proceedings of the case in which he is a

prosecutor. (2) The Criminal Prosecutor shall be entitled to full justice including social rehabilitation and amnesty in accordance with the law.

22. Against torture: (1) No person who is arrested or detained shall be subjected to physical or mental torture or to cruel, inhuman or degrading treatment. (2) Any act under clause (1) shall be

punishable by law and shall be punishable by imprisonment for a term not exceeding five years.

The person who behaves like a victim should be punished with imprisonment of either description for a term which may extend to one year.

23. Against detention under arrest: (1) No person shall be detained under arrest without sufficient grounds to immediately endanger the sovereignty, territorial integrity or public order of Nepal. (2) The whereabouts of a person under arrest under clause (1) shall be immediately informed to his family members or next of kin in accordance with law. However, this clause shall not apply to citizens of an enemy country.

(3) If an officer detaining a person under arrest unlawfully or unjustly detains that person, that person shall be entitled to compensation in accordance with law.

24. Prohibition against harassment and discrimination: (1) No person shall be subjected to any kind of harassment or discrimination in any private or public place on the basis of his origin, race, creed, community, profession, occupation or physical condition. (2) No

person of any caste or creed shall be prohibited from purchasing or receiving any goods, services or facilities in the production or distribution of such goods, services or facilities, nor shall such goods, services or facilities be sold or provided to any person of any caste or creed. (3) It shall not be

permissible to show any person or community as superior or inferior on the basis of origin, caste, creed or physical condition, to justify social discrimination on the basis of caste, creed or untouchability, or to propagate ideas based on caste superiority or hatred, or to encourage caste discrimination in any way. (4) It shall not be permissible to discriminate in the workplace on the basis of caste or untouchability.

(5) All forms of harassment and discriminatory acts committed in violation of this Article shall be punishable by law as serious social crimes, and the person convicted of such acts shall be entitled to amnesty in accordance with law.

25. Right to Property: (1) Every citizen shall have the right to own, enjoy, sell, and otherwise dispose of property for commercial gain, subject to law. Every State shall have the right to levy a tax on the property of an individual and to adopt progressive taxation.

Tax may be imposed on the income of an individual in accordance with the provisions of this section. Explanation: For the purposes of this section, the term "asset" means all kinds of property, whether movable or immovable, and includes property acquired by way of inheritance.

(2) The State shall not, for the purpose of public law, seize, acquire or otherwise exercise any right over the property of any person. But this clause shall not apply to property unlawfully acquired by any

person. (3) The State may, for the purpose of public law, seize any person

The basis and procedure for the property transfer exemption will be as per the Act.

(4) The provisions of clauses (2) and (3) shall not prevent the State from improving, managing and regulating land in accordance with law for the purposes of increasing the production and productivity of land, modernising and commercialising agriculture, protecting the environment, providing orderly housing and urban development.

(5) Where the State has acquired the property of any person for public purposes under clause (3), it shall not prevent the State from using that property for any other public purpose other than that public purpose.

26. Freedom of Religion: (1) Every person who believes in religion shall have the freedom to profess, practice and protect his religion in accordance with his beliefs. (2) Every religious

community shall have the right to operate and protect religious places and religious institutions.

However, it shall not be deemed to have obstructed the making of laws and regulations for the operation and protection of religious places and religious trusts and for the management of trust property and land. (3) No

person shall, in exercise of the powers conferred by this Article, commit or cause to be committed any act or conduct that is prejudicial to public health, morality and ethics or that is disruptive of public order or that is intended to convert anyone's religion or interfere with the religion of another, and such act shall be punishable under law.

27. Right to Information: Every citizen shall have the right to request and receive information on any matter of public interest. However, no one shall be compelled to provide information that is required to be kept confidential by law.

28. Right to Privacy: The privacy of any person's body, residence, property, writings, bank accounts, correspondence and personal information shall be inviolable except in accordance with law.

29. Protection against defamation: (1) Every person shall be protected against defamation.

(2) No person shall be subjected to any form of discrimination on the basis of religion, custom, tradition, custom, practice or any other ground. (3) No person shall be trafficked, enslaved or bound. (4) No person shall be compelled to work against his will. But nothing shall be construed as preventing the State from making laws enabling citizens to be compelled to perform compulsory service for public purposes. (5) Any act contrary to clauses (3) and (4) shall be punishable by law and the offender shall be entitled to compensation from the offender in accordance with law.

30. Clean Environment: (1) Every citizen has the right to live in a clean and healthy environment.

(2) The responsibility

for the protection of the environment from pollution or degradation shall be borne by the polluter.

Law bomojjam kshamipuṃiv pauneik niṃecha.

(3) This article shall not be deemed to prevent the making of necessary legal provisions for the purpose of striking a proper balance between protection and development in the development work of the nation.

31. ~~Education related issues:~~ (1) Every citizen shall have access to basic education.

(2) Every

citizen shall be entitled to basic education from the State and

Free education up to secondary level is available.

(3) Disabled and economically disadvantaged citizens shall be entitled to free higher education in accordance with law. (4) Visually impaired

citizens shall be entitled to free education through Braille and speech and hearing or speech-impaired citizens shall be entitled to free education through sign language in accordance with law. (5)

Every Nepali community

residing in Nepal shall be entitled to education in its mother tongue in accordance with law and shall be entitled to open and operate schools and educational institutions for that purpose.

32. ~~Rights of Language and Culture:~~ (1) Every individual and community shall have the right to use their own language.

(2) Every

individual and community shall have the right to participate in the cultural life of their community.

(3) Every Nepali community residing

in Nepal shall have the right to its own language, religion,

Culture, cultural heritage and heritage will be preserved and protected.

33. ~~Right to Employment:~~ (1) Every citizen shall have the right to employment. The nature, condition and unemployment benefits of employment shall be in accordance with federal law.

(2) Every citizen shall have the right to choose employment.

34. ~~Right to Labor:~~ (1) Every worker shall be entitled to fair labor practices.

Explanation: For the purposes of this section, the term "worker" means a worker or laborer who performs physical or mental work for an employer in return for remuneration.

(2) Every worker shall be entitled to fair wages, benefits and social security based on contributions. (3) Every worker shall have the right to form and join trade unions and to bargain collectively in accordance with the law.

35. Health-related rights: (1) Every citizen shall have access to basic health services free of charge from the State and no one shall be denied access to emergency health services. (2) Every person shall have access to information regarding his health treatment. (3) Every citizen shall have equal access to health services. (4) Every citizen shall have access to clean drinking water and sanitation.

36. Food related rations: (1) Every citizen shall be provided with food related rations. (2) Every citizen shall be protected from life-threatening situations due to lack of food. (3) Every citizen shall have the right to food sovereignty in accordance with the law.

37. Right to housing: (1) Every citizen shall be provided with suitable housing. (2) No citizen shall be deprived of his or her right to a residence in his or her own right, except in accordance with law.

38. Rights of women: (1) Every woman shall have equal rights without discrimination of sex. (2) Every woman shall have the right to safe sexual and reproductive health care. (3) No woman shall be subjected to any act of violence, whether physical, mental, sexual, psychological or any other kind, against a woman on the basis of religious, social, cultural tradition, custom or any other ground. Such acts shall be punishable by law and the perpetrator shall be entitled to compensation in accordance with law.

(4) Women shall be allowed to participate in all organs of the State on the basis of the principle of equal and inclusive participation. (5) Women shall be granted special opportunities on the basis of positive discrimination in education, health, employment and social security. (6) They shall be treated equally with married couples in property and family matters.

39. Childcare: (1) Every child shall be entitled to his/her own name and

(2) Every child shall be

entitled to education, health, upbringing,

High entertainment, sports, recreation and personality development are the keys.

(3) Every child should have access to early childhood development and child participation.

(4) No child

shall be employed in factories, mines or other hazardous work. (5) No child shall be subjected to child labour, illegal

trafficking or abduction or held hostage. (6) No child shall be recruited or used in the army, police or armed forces or subjected to

any form of abuse, neglect or physical, mental, sexual or other forms of exploitation or abuse in the name of cultural or religious practices.

(7) No child shall be subjected to any form of abuse, whether at home, school or any other place, and No child shall be subjected to physical, mental or any other form of torture. (8) Every

child shall be entitled to child-friendly justice. (9) The homeless, orphans, the disabled, those affected by conflict, displaced persons and those at risk Children shall be entitled to special protection and facilities from the State. (10)

Acts contrary to clauses (4), (5), (6) and (7) shall be punishable by law and the child who commits such act shall be entitled to compensation from the perpetrator in accordance with law.

40. Right of women: (1) Women shall be allowed to participate in all organs of the State on the basis of the principle of equal participation. Other employment opportunities for public service employees

Special arrangements will be made in accordance with the law for the empowerment, representation, and participation of the Damali community in the region.

(2) Provision shall be made for free education for the students of the State from primary to higher education in accordance with the law. Special provisions shall be made for the students of the State in primary and vocational higher education in accordance with the law. (3) Provision shall be made for the students of the State to provide health and social security to the students of the State in accordance with the law. Special arrangements will be made.

(4) The Damali community shall be allowed to use, preserve and develop their traditional professions, knowledge, skills and methods. The State shall give them priority in modern businesses related to the traditional professions of the Damali community and provide them with the necessary funds and resources for that purpose.

(5) The State shall provide land to the landless Damali once and for all in accordance with the law. (6) The State shall provide accommodation to the homeless Damali in accordance with the law. (7) The facilities provided to the Damali community by this article shall be distributed in a fair manner so that Damali women, men and Damali belonging to all communities receive them equally.

41. Senior Citizens: Senior citizens shall be provided with special protection and social security by the state.

42. What is social justice? ý(1) Economic Socially or educationally backward communities, Muslims, tribals, Madhesis, Tharus, Muslims, backward classes, minorities, marginalized groups, persons with disabilities, sexual and gender minorities, farmers, workers, citizens from oppressed or backward areas, and economically disadvantaged people shall be given equal opportunity to participate in the state apparatus on the basis of the principle of equal inclusion.

(2) For the protection, upliftment, empowerment and development of citizens of economically disadvantaged and endangered communities, education, health, housing, employment, food and You will receive special opportunities and benefits in social security.

(3) Citizens with disabilities should be given equal access to diversity and The right to a dignified life and equal access to public services and facilities.

What will happen to Pinchu?

(4) Every farmer shall be entitled to use, in accordance with the law, local seed varieties and cultivars that are traditionally used and maintained on the land for agricultural purposes.

What is the purpose of selection and protection?

(5) All people who are committed to progressive democratic change in Nepal Families of those killed, missing, and missing during protests, armed conflicts, and civil wars Families of displaced persons, people's warriors, conflict victims and displaced persons, people with disabilities Individuals, families and communities shall have access to justice and due respect, including access to education, health, employment, housing and social security, with priority in accordance with the law.

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43. Social Security: The financially vulnerable, the disabled and homeless, the homeless single, the disabled, the childless, the self-reliant And endangered Jamaican citizens are provided with social security in accordance with the law.

44. Consumer Rights: (1) Every consumer shall receive quality sanitation services.

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(2) A person who has attained the age of majority through meritorious service shall be entitled to compensation in accordance with law.

I am sorry.

45. Anti-immigration law: No citizen shall be subject to deportation.

46. Right to peaceful remedy: For the purpose of the exercise of the right provided by this Part, Section 133 or You will receive constitutional treatment as provided in Article 144.

47. Implementation of the Constitution: The State shall make legal arrangements within six months of the commencement of this Constitution as may be necessary for the implementation of the provisions provided for in this Part.

48. Citizens' Poems: Every citizen is required to give a poem:—

(a) The nationality, sovereignty and integrity of Nepal

(b) To

protect, (c) To abide by the Constitution and the law,

(c) To perform compulsory service when

required by the state, (d) To protect and preserve public property.

Part-4

Directive Principles, Rules and Duties of the State

49. To be taken as guidelines: (1) The directive principles, rules and duties set out in this Part

The obligations shall serve as guidelines for the operation of the

State. (2) The State shall implement the principles, policies and obligations set out in this Part.

The source will be operated as required.

50. Directive Principles: (1) To establish a welfare state system by protecting the life, property, equality and freedom of the citizens by upholding the freedom, sovereignty, territorial integrity and independence of Nepal, the values and recognition of fundamental and human rights, gender equality, equal integration, participation and social justice, and to establish a just order in all spheres of national life, and to conduct relations between federal units on the basis of federalism based on mutual cooperation. To adopt the principle of equality in the system of governance based on local autonomy and decentralization. To ensure the enjoyment of democratic rights by the federal government. The political objective of the State shall be to strengthen the democratic and democratic system. (2) The social and cultural objective of the State shall be to establish a civilized and equitable society by eliminating all forms of

discrimination, oppression and injustice on the basis of religion, culture, customs, traditions, practices or any other grounds, and to develop socio-cultural values based on national pride, democracy, people-orientedness, respect for labor, entrepreneurship, discipline, moderation and tolerance, and to strengthen national unity by maintaining social harmony, unity and harmony while respecting cultural diversity.

(3) The economic objective of the State shall be to develop a socialist-oriented, independent and prosperous economy by making the national economy self-reliant, independent and inclusive, by achieving sustainable economic development through the participation and development of the public, private and public sectors and by maximizing the utilization of available means and resources, and by ending economic inequality by disseminating the benefits obtained and achieved, and by making the national economy self-reliant, independent and inclusive, and by making the national economy self-reliant, independent and inclusive.

(4) The interstate relations of the state shall be directed towards promoting national respect among the international community by maintaining interstate relations on the basis of social and political equality while protecting the independence, sovereignty, territorial integrity, independence and national sovereignty of Nepal.

51. State regulations: The State shall implement the following regulations:

(a) National Unity and National Security Policy: (1) The

independence, sovereignty, territorial integrity and sovereignty of Nepal shall be protected.

To preserve the integrity of the protected area,

(2) To promote national unity by developing cooperative relations among the federal units by maintaining mutual respect, tolerance and unity among different castes, creeds, religions, languages, cultures and sects, (3) To develop a national security system

and make arrangements for civil security, (4) To provide a basis for universal human security, (5) To make all security bodies including the

Nepal Army, Nepal Police, Armed Police Force, and Force Nepal strong, robust, professional, inclusive and accountable to the people on the basis of the national security policy,

(6) To provide citizens with the necessary and capable services to serve the nation.

Making,

(7) To properly utilize the knowledge, skills, and experience of former employees, soldiers, and former employees in the National Insurance System.

(b) Policies related to political and governance: (1) To protect,

strengthen and develop political achievements and to ensure the best possible economic and

social well-being of the people through economic, social and cultural transformation, (2) To

maintain the rule of law

that protects and promotes human rights, (3) To implement international treaties to which

Nepal is a party, (4) To make public administration clean, competent, impartial,

transparent, free from corruption, accountable to the people and participatory in the provision of

services received from the state.

To ensure equal and fair access to facilities for the people and to ensure good governance, (5)

To make

necessary arrangements to make public transport clean, healthy, fair, timely, responsible and

professional, (6) To develop and expand

harmonious and cooperative relations among the federal units by sharing responsibilities, resources

and administration.

(c) Policies related to social and cultural transformation: (1) To develop

a healthy and civilized culture and to shape society based on social harmony,

(2) To study, research, excavation and disseminate information for the protection, conservation and

development of religious, archaeological and cultural heritages, (3) To develop the

community by promoting and implementing the creativity of the local community in social, cultural and

service-oriented activities, and to enhance local public participation, (4) To emphasize the

development of art, literature and

culture as national heritages.

Dadne,

(5) To eradicate all forms of discrimination, inequality, oppression and injustice in the name of religion,

customs, traditions, rituals and customs existing in the society, (6) To

preserve and develop the languages, customs, culture, literature, art, cinema and heritage of different

ethnic groups and communities on the basis of equality and political equality while maintaining

the cultural diversity of the country, (7) To implement

the universal policy.

(d) that is, policies relating to industry and commerce:

(1) Strengthening the national economy through the participation and independent development of the

public, private and hunting

sectors, (2) Maximizing the role of the private sector in the economy and achieving economic prosperity

by maximizing the use of available means and resources, (3)

Maximizing the use of the hunting sector in national development,

(4) To promote and facilitate sustainable national development by providing regulations to maintain transparency, fairness and competition in all activities in the economic sector, (5) To provide a fair account of the available means, resources and results of economic development.

Count,

(6) To promote exports by identifying areas of comparative advantage and developing and expanding industries, and to diversify and expand the market for services, (7) To end black marketing, monopoly, and artificial distortions and to control competition, and to make the national economy competitive, and to maintain trade integrity and discipline, and to protect the economy of consumers, (8) To protect and promote national industries and resources for the development of the national economy, and to give priority to domestic investment based on Nepali labor, skills, and raw materials, (9) To give priority to domestic investment for the development of the national economy, (10) To promote import substitution in a manner favorable to the national economy, in the areas of export promotion To encourage and facilitate infrastructure development by attracting foreign capital and expertise, (11) To make foreign aid transparent by basing it on national needs and priorities, and to include the amount received from foreign aid in the national budget, (12) To utilize the knowledge, skills, expertise and expertise of non-resident Nepalis in national development, (13) To provide impetus to economic development by establishing coordination between other provinces and between provinces and the Union in the context of industrial corridors, special economic zones, national projects, and foreign investment projects.

(e) Policies related to agriculture and land reform:

(1) Ending the dual ownership of land and carrying out scientific land reform keeping in mind the needs of the farmers,

(2) To increase production and productivity by encroaching on land by eliminating non-existent land ownership, (3) To protect and enhance the livelihood of farmers, to manage land and commercialize, industrialize, diversify and modernize agriculture by adopting land use policies to increase production and productivity of agriculture, (4) To regulate and manage land on the basis of its productivity, natural and ecological balance, and to make proper use of it, (5) To arrange for the fair price and market supply of agricultural inputs and agricultural produce for agriculture.

(f) Development policy

(1) To implement sustainable socio-economic development strategies and programs under the regional development plan for the purpose of inclusive economic development of the region in a coordinated manner, (2) To develop land infrastructure in a comprehensive, environmentally friendly, qualitative and sustainable manner, giving priority to the areas that are lagging behind in terms of development, (3) To increase local public participation in the process of development planning, (4) To increase investment in scientific study, research and the invention, improvement and development of science and technology and to protect scientific, technological, intellectual and creative talents, (5) To develop and expand the information system according to national needs and ensure easy and simple access of the general public to it and to make maximum use of the information system in national development, (6) To make arrangements for the general public to receive the results of development fairly, giving priority to the vulnerable citizens, (7) To develop a unified national identity management information system and to integrate all types of information and information of citizens. To manage it in a manner that links it with the services and facilities provided by the state and national development plans,

(8) The population bank is affiliated with the modern rural development scheme.

Count.

(g) Regulations relating to the protection, conservation and utilization of natural resources:

(1) To protect, conserve and sustainably utilize the natural resources available in the country in a manner that is compatible with the national economy and internal justice, and to provide justice to the beneficiaries by giving priority and priority to the local community, (2) To promote the development of water resources by giving priority to domestic investment based on public participation.

(3) To develop renewable energy, to ensure the supply of reliable and affordable energy to meet the basic needs of citizens, and to use energy wisely, (4) To ensure sustainable and reliable water supply through water-based disaster management and river management.

To develop fisheries,

(5) To raise awareness among the general public about environmental sanitation and to minimize the potential environmental damage from industrial and land development, to conserve, conserve and sustainably utilize wildlife, birds, plants and biodiversity, (6) To maintain forest areas in areas

essential for ecological balance, (7) To adopt appropriate measures to eliminate or minimize negative environmental impacts in cases where negative impacts on nature, the environment or biodiversity have occurred or are likely to occur, (8) To make those who pollute the environment liable for the same and to

take precautions in environmental protection and (9) To implement principles of environmentally sustainable development such as early warning, evacuation, rescue, relief and rehabilitation to reduce the risk of natural disasters.

(h) Policy on basic income of citizens

- (ÿ) Education should be scientific, academic, vocational, skill-oriented, employment-oriented and
Creating a people-oriented, competent, competitive, honest and progressive society
To save people's energy,
- (ÿ) The focus on education is increasing state investment in the education sector.
Regulate and manage investment in the sector to make it service-oriented,
- (ÿ) Gradually make higher education accessible, quality and affordable
Making things freely,
- (ÿ) Community Information Center for the personal development of citizens and
Establishing and maintaining a library,
- (ÿ) The state must take necessary measures in the field of public health to make citizens healthy.
Investment is increasing,
- (ÿ) Easy, accessible, and equal access to quality healthcare for all
Sumanaj Chi Gane,
- (ÿ) Preservation of Ayurvedic, naturopathic, and homeopathic health care systems that
are traditional medical systems in Nepal
And the sound of the wind,
- (ÿ) The state's investment in the health sector is increasing, and the sector is experiencing a significant growth.
Regulate and manage investments to make them service-oriented,
- (ÿ) Health research to make healthcare affordable and quality
Emphasis should be placed on increasing the number of health institutions and
health workers, (10) population management based on Nepal's capacity and needs
Reducing maternal mortality by encouraging family planning
It prolongs life,
- (11) To manage the unorganized settlements and to make them planned and organized.
To develop the village,
- (12) Increasing investment in the agricultural sector, in line with the recognition of food sovereignty
Promoting climate and soil-adapted food production
Sustainable production, self-sufficiency, storage, security and accessibility of food
To arrange for effective explanations,

(13) To ensure equal access to basic sanitation services for all citizens, giving special priority to remote and backward areas, and to arrange for planned supply,

(14) To promote investment in the transport sector by ensuring simple, easy and equal access of citizens to transport facilities and to encourage public transport by prioritizing the most suitable means and to regulate private transport to make the transport sector safe, orderly and accessible to persons with disabilities. (15) To ensure health insurance for citizens and to provide access to health care.

(i) Labor and employment related

policies: (1) To ensure that everyone has access to work, to make the labor force, which is the main socio-economic force of the country, efficient and professional, and to increase unemployment in the

country, (2) To ensure the basic rights of all workers in accordance with the concept of fixed-term labor, to guarantee social security,

(3) To end all forms of labor exploitation including child labor, (4)

To promote the participation of workers in management by maintaining good relations between workers and entrepreneurs,

(5) To regulate and manage this sector to make domestic employment exploitation-free, secure and orderly, and to provide a platform for the employment and rights of workers,

(6) Encourage the use of capital, skills, knowledge, and experience gained from foreign employment in productive sectors in the country.

(j) Policies related to social justice and inclusion:

(1) Making appropriate arrangements for livelihood for single women living in temporary situations, giving priority in employment based on their skills, abilities and qualifications,

(2) To rehabilitate, protect, empower and make self-reliant the vulnerable, socially and family marginalized and the marginalized.

(3) To ensure the proper utilization of essential services and facilities during the reproductive period, (4) To evaluate the work and contribution such as raising children and managing the family economically,

(5) To give priority to the best welfare of children, (6) To identify and rehabilitate freed labourers, labourers, farmers, herders, landless peasants, and squatters by providing them with houses for settlement and arable land or employment for livelihood, (7) To promote the full utilization of political, economic, social and cultural powers by promoting the participation of youth in national development, To provide special opportunities in the fields of education, health, employment for the empowerment and development of the youth, to develop their personality and to provide appropriate opportunities for their contribution to the overall development of the state, (8) To ensure the right of indigenous peoples to live with dignity and respect, to make special arrangements for their participation in decision-making processes that concern this community, and to protect and preserve the traditional knowledge, skills, culture, social traditions and experiences of indigenous peoples and local communities, (9) To make special arrangements for the minority communities to exercise their social and cultural rights while maintaining their identity,

(10) To provide equal access to economic, social and cultural opportunities and benefits to the Madhesi community, Muslims and backward classes and to make special arrangements for the protection, upliftment, empowerment and development opportunities and benefits of vulnerable citizens within such communities,

(11) To make special arrangements for the protection, upliftment, empowerment, development and provision of basic necessities to the citizens of the underprivileged and backward areas,

(12) To provide social security and social justice, to prioritize the economically vulnerable within all countries, regions and communities, (13) To make planned investments in sports and athletes to create healthy, capable and disciplined citizens and to develop sports as a means of strengthening national unity and enhancing national respect in the international arena,

(14) To make the investment and role of community and national or international non-governmental organizations accountable and transparent, to adopt a single-door system for the establishment, approval, operation, regulation and management of such organizations, and to involve such organizations only in areas of national need and priority.

(k) The law relating to the system of justice and punishment

(1) To make the administration of justice efficient, accessible, cost-effective, impartial, effective and accountable to the people,

(2) To resort to alternative measures such as conciliation and mediation for the resolution of disputes of a general nature, (3) To promote

cooperation in all areas of political, administrative, judicial and social affairs, and

Effective measures to control indiscipline should be adopted.

(l) Tourism Policy: To develop an

environmentally friendly tourism industry as a sound basis for the national economy through the recognition, protection, promotion and dissemination of Nepal's cultural, religious, archaeological and natural heritage, to formulate necessary policies and procedures for the development of tourism culture, and to give priority to the local people in the distribution of the benefits of the tourism industry.

(d) Policy on Interstate Relations: (1) Nepal

shall actively protect the sovereignty, territorial integrity, independence and national sovereignty of

Nepal, in accordance with the Charter of the United Nations, the principles of non-alignment,

the principle of non-violence, international law and the recognition of international law.

(2) To conduct an independent political process, keeping in mind the overall needs of the country,
on the basis of

equality and mutual respect, while reviewing the existing instruments.

To negotiate on the basis of money.

52. Obligations of the State: It is the duty of the State to make Nepal prosperous and peaceful by protecting and promoting
fundamental and human rights, following the directive principles of the State, and gradually implementing the
policies of the State, while maintaining the freedom, sovereignty, territorial integrity and independence of Nepal.

53. Submission of report: The Government of Nepal shall submit an annual report to the Prime Minister on the work done
and the achievements and resources available in relation to the implementation of the directive principles, policies
and obligations of the State referred to in this Part, and the Prime Minister shall make arrangements to submit such
report to the Federal Parliament through the Prime Minister.

54. Arrangements for monitoring: A committee shall be established in the Federal Parliament, as per law, to monitor and
evaluate the progressive implementation of the directive principles, policies and obligations of the State referred to
in this Part.

55. No question may be raised in court: No question may be raised in any court as to whether or not any of the provisions
of this Part have been implemented.

Part-5

Structure of the State and Distribution of State Powers

56. Structure of the State: (1) The basic structure of the Federal Democratic Republic of Nepal shall be divided into the Union, the Provinces and the Local Governments.

(2) The Union, the Provinces and the Local Governments shall exercise the State power of Nepal in accordance with this Constitution and the

laws. (3) The districts existing in Nepal at the commencement of this Constitution as mentioned in Schedule-4 shall be the Provinces. (4) The Local Governments shall consist of

the Sub-Divisional Rural Municipality, Municipal Municipality and District Assembly.

The number of residents in rural and municipal municipalities is determined in accordance with federal law.

(5) Social cultural protection or economic development in accordance with federal law. Special interest, conservation and autonomous area work should be done.

(6) The independence, sovereignty, territorial integrity, independence, national security, sustainable development, central competitive democratic republican federal system of governance, human rights and fundamental rights, rule of law, separation of powers and control of the Union, Provinces and Local Governments of Nepal They will preserve an inclusive society, inclusive principles and identity based on harmony, values and equality.

57. Division of State Powers: (1) The powers of the Union shall be as specified in Schedule-5 and such powers shall be exercised in accordance with this Constitution and the federal laws.

(2) The powers of the Province shall be as specified in Schedule-6 and such powers shall be exercised in accordance with this Constitution and the laws of the Province.

(3) The common powers of the Union and the Provinces shall be as specified in Schedule-7 and such powers shall be exercised in accordance with this Constitution, Federal Laws and Provincial Laws. (4) The powers of the

Local Government shall be as specified in Schedule-8 and such powers shall be exercised in accordance with this Constitution and the laws made by the Village Council or the Municipal Council.

(5) The powers of the Union, the Provinces and the local bodies shall be as specified in Schedule-9 and such powers shall be exercised in accordance with this Constitution and the Federal Laws, the Provincial Laws and the laws made by the Village Assembly or the Municipal Assembly. (6) The Provincial Assembly, the Village Assembly or the Municipal Assembly, when making laws, shall make them in a manner not inconsistent with the Federal Laws and if any such law made by the Provincial Assembly, the Village Assembly or the Municipal Assembly is inconsistent with the Federal Laws, it shall be valid to the extent of the inconsistency. (7) The Village Assembly or the Municipal Assembly, when making laws, shall make them in a manner not inconsistent with the Provincial Laws and if any such law made by the Village Assembly or the Municipal Assembly is inconsistent with the Provincial Laws, it shall be valid to the extent of the inconsistency.

58. Extraordinary Powers: In accordance with this Constitution, the powers of the Union, the Provinces and the Local Governments shall be those powers not mentioned in the list or the general list of powers of the Union, the Provinces and the Local Governments or in any other provision of this Constitution, which are not specifically designated for their exercise, shall be the powers of the Union.

59. Exercise of financial powers: (1) The Union, the Provinces and the local governments shall, in matters relating to financial powers within their jurisdiction, make laws, prepare annual budgets, make decisions, formulate policies and plans and implement them. (2) The Union shall delegate to the Provinces, in matters of the Common List and in other areas of financial powers,

It may formulate necessary rules, standards and laws for universal application.

(3) The Union, the Provinces and the Local Governments shall prepare their own budgets and the Provinces shall And local government budgets will be submitted in accordance with federal law.

(4) The Union, the Provinces and the Local Governments shall make arrangements for the coordinated distribution of benefits derived from the use or development of natural resources. The actual share of such benefits shall be distributed to the project affected area and the local community in the form of royalty, service or goods in accordance with the law. (5) If the Union, the Provinces and the Local Governments wish to invest in

the utilization of natural resources, the local community shall be given priority in making the share of investment in accordance with the law based on the nature and size of the investment. (6) The Government of Nepal shall have the right to receive foreign aid and loans. In that case,

When receiving aid or loans, they must be obtained in a manner that enhances the overall economic stability of the country.

(7) Budget deficit management and other financial matters of the Union, Provinces and Local Governments

The disciplinary system is governed by federal law.

60. Distribution of Revenue Resources: (1) The Union, the Provinces and the Local Governments shall allocate their respective fiscal jurisdictions.

They will be able to levy taxes on the land and collect revenue from other sources.

Tax on all items included in the list and on items not included in any other list

The system for levying and collecting taxes shall be as determined by the Government of Nepal.

(2) The revenue collected by the Government of Nepal shall be distributed to the Union, Provincial and Local Governments.

Arrangements will be made to provide justice.

(3) The amount of financial transfer to be received by the Province and the local government shall be as per the recommendations of the National Natural Resources and Finance

Commission. (4) The Government of Nepal shall allocate financial equalization grants to the Province and the local government on the basis of expenditure requirements and revenue capacity.

(5) The Province shall allocate financial equalization grants to the local government on the basis of the expenditure requirements and revenue capacity of the grant received from the Government of Nepal and the revenue raised from its own sources in accordance with the Provincial Law. (6) The Government of

Nepal shall make provisions regarding the allocation of grants, supplementary grants or special grants to be provided by the Federal Government from the Federal Budget Fund for other purposes in accordance with the Federal Law. (7) The distribution

of revenue among the Union, the provinces and the local governments shall be done in a fair and transparent manner. (8) While

making a federal law relating to the distribution of revenue, attention shall be paid to the national policy, national requirements, the autonomy of the provinces and local governments, the services to be provided to the people by the provinces and local governments and the financial powers granted to them, the ability to raise revenue, the potential and utilization of revenue, the contribution to be made to development, the reduction of regional imbalances, poverty and inequality, the end of regionalism, the provision of emergency work and the provision of temporary needs.

Part-6

President and Vice President

61. President: (1) There shall be a President in Nepal. (2) The

President shall be the President of Nepal. The President shall perform his duties in accordance with this Constitution and the federal laws.

(3) The National Assembly shall uphold the national unity of Nepal. (4) The

main duty of the National Assembly shall be to uphold and protect the Constitution.

62. The National Assembly: (1) The National Assembly shall be elected by a constituency consisting of members of the Federal Parliament and members of the Provincial Assembly. The composition of the members of the Federal Parliament and the members of the Provincial Assembly shall vary according to the Federal law. (2)

Notwithstanding anything contained in clause (1), the mere fact that there is no constituency of the Provincial Assembly in any Province shall not be deemed to constitute an obstacle to the formation of a constituency for the purpose of the National Assembly.

(3) The person who obtains the exemption from the total number of votes of the constituency for the time being in force under clause (1) shall be elected at random. (4) If any candidate

fails to obtain exemption under clause (3), a contest shall be held between the two candidates who obtain the highest number of votes and the candidate who obtains more than fifty percent of the total number of votes in that contest shall be elected at random. (5) If no candidate from the contest as per clause (4) fails to obtain more than fifty percent of the total number of votes, a re-contest shall be held. The candidate who receives the most votes from the total number of votes cast in that election will be elected.

(6) A person holding a political office by appointment, nomination or appointment
If a person is elected to the post under this section, that position shall automatically become vacant.

(7) The resolution of the National Assembly and other related provisions shall be made in accordance with federal law.

63. Term of office of the President: (1) The President shall be elected by the members of the National Assembly for a term of five years.

(2) The

term of office under clause (1) shall expire on the date on which another person is elected.

The National Assembly shall perform its functions in accordance with this Constitution until it assumes office.

64. Eligibility for membership: (1) A person who is eligible for membership shall be eligible for membership.

(a) Be

qualified to be a member of the Federal Parliament, (b) Have

completed at least fifty-five years of age, and (c) Not be

disqualified by any law. (2) If any of the matters

mentioned in clause (1) are mentioned twice,

A person who has already been elected may not be a candidate for the National Assembly.

65. Situations in which the office of the Prime Minister becomes vacant: The office of the Prime Minister shall become

vacant in any of the following circumstances: (a) if he resigns in writing

to the Prime Minister, (b) if an impeachment motion is filed against him under Article 101, (c) if his

term of office expires, (d) if he dies.

66. Functions, duties and powers of the National Assembly: (1) The National Assembly shall exercise the powers and perform the duties conferred upon it under this Constitution or the federal law.

(2) In exercising the powers or performing the duties under clause (1), any other work which is expressly provided for in this Constitution or a federal law to be done on the advice of any body or officer shall be done by the President on the advice and consent of the Council of Ministers. Such advice and consent shall be submitted to the Prime Minister. (3) The decision or order made in the name of the President under clause (2) and the certification of the authority thereto shall be done in accordance with federal law.

67. Vice President: (1) There shall be a Vice President in Nepal. (2) In the

absence of the President, the functions to be performed by the President shall be performed by the Vice President. (3) Any

person holding a political office by appointment, nomination or

If a person is elected to the position of Vice-President, that position will automatically become vacant.

68. Vacancy of the office of the Vice-President: The office of the Vice-President may be vacant in any state of the country.

It is: (a) If

he resigns in writing before the Minister, (b) If an impeachment motion

is filed against him under Article 101, (c) If his term of office ends, (d) If he dies.

69. Other provisions relating to the sub-appointment: The arrangements relating to the qualifications, nomination process and promotion of the sub-appointment are the same as those relating to the appointment.

70. Representation of different races or communities in the President and Vice President: According to this Constitution, the appointment of the President and Vice President shall be made in such a way as to represent different races or communities.

71. Oath of the President and Deputy President: Before assuming their duties, the President and Deputy President shall take an oath of office and secrecy before the Chief Justice and the Deputy President shall take an oath of office and secrecy before the Chief Justice, as per the federal law.

72. Remuneration and other facilities of the President and Vice President: The remuneration and other facilities of the President and Vice President shall be as per the Federal Act and, until such Act is enacted, as may be prescribed by the Government of Nepal.

73. Office of the Registrar and Deputy Registrar: (1) For the performance of the functions of the Registrar and Deputy Registrar

(2) As per sub-section (1), the

Government of Nepal shall make necessary arrangements for the functioning of the office, providing necessary staff and other arrangements.

Part 7

74. Federal Legislature

~~Governmental form: The form~~ of government of Nepal is a central competitive federal democratic republican parliamentary system of government based on the Bill of Rights.

75. ~~Executive Power: (1) The executive~~ power of Nepal shall be vested in the Council of Ministers in accordance with this Constitution and the laws. (2) Subject

to this Constitution and the laws, the Council of Ministers shall be responsible for the general direction, control and administration of the system of government of Nepal. (3)

All work relating to the federal executive of Nepal shall be done in the name of the Government of Nepal. (4) The

decision or order made in the name of the Government of Nepal under clause (3) and the certification of the authority relating thereto shall be done in accordance with the federal law.

76. ~~Formation of the Council of Ministers:~~ (1) The National Assembly shall appoint the leader of the parliamentary party that has obtained a seat in the House of Representatives as the Prime Minister and the Council of Ministers shall be constituted under his chairmanship. (2) In the event that no parliamentary party has obtained a seat in the House of Representatives under clause (1), the National Assembly shall appoint the member of the House of Representatives who can obtain a seat with the support of two or more parties

nominated by the House of Representatives as the Prime Minister. (3) If, within twenty days of the declaration of the uncontested result of the election of the Prime Minister, the Prime Minister cannot be appointed under clause (2) or if the Prime Minister so appointed fails to obtain a vote of confidence under clause (4), the National Assembly shall appoint the leader of the parliamentary party of the party with the largest number of members in the

Prime Minister's Assembly as the Prime Minister. (4) The Prime Minister so appointed under clause (2) or (3) shall

The Prime Minister is expected to receive a vote of confidence from the House of Representatives within 20 days.

(5) If the Prime Minister appointed under clause (3) fails to obtain a vote of confidence under clause (4), the National Assembly shall appoint that member as the Prime Minister if any member of the National Assembly submits grounds for obtaining a vote of confidence in accordance with clause (2).

(6) The Prime Minister appointed under clause (5) shall be required to obtain a vote of confidence in accordance with clause (4). (7) If the Prime

Minister appointed under clause (5) fails to obtain a vote of confidence or if the Prime Minister is not appointed, the National Assembly, on the advice of the Prime Minister, shall dissolve the House of Representatives and, within six months, suspend the term of office of the next House of Representatives. (8) If the term of office of the House of Representatives held under

this Constitution is declared null and void or the office of the Prime Minister becomes vacant, the procedure for the appointment of the Prime Minister shall be completed within twenty-five days of the date of the declaration of the nullity of the term of office of the Prime Minister. (9) The Prime

Minister shall, on the advice of the Prime Minister, constitute a Council of Ministers consisting of not more than twenty-five ministers, including the Prime Minister, from among the members of the Federal Parliament, in accordance with the principle of inclusiveness. Explanation: For the purposes of this Part, the term "Minister" shall include the Deputy Prime Minister, Minister,

Minister of State and Minister of State. (10) The Prime Minister and the Ministers shall be collectively responsible to the Federal Parliament and the Ministers shall be individually responsible to the Prime Minister and the Federal Parliament for the work of their Ministry.

77. Vacancy of the office of the Prime Minister or a Minister: (1) The office of the Prime Minister shall become vacant in

any case of: (a) If he resigns in writing to

the Prime Minister, (b) If a motion of confidence is not passed in

accordance with Article 100 or if a motion of no confidence is passed against him, (c) If he

ceases to be a member of the House of Representatives, (d)

If he dies. (2) The office of a Minister shall become

vacant in any case of:

(a) if he resigns in writing to the Prime Minister, (b) if the Prime Minister

removes him from office, (c) if the office of Prime

Minister falls vacant under clause (a), (b) or (c) of clause (1),

(d) In the event of the death of the

Prime Minister. (3) If the office of the Prime Minister falls vacant under clause (1), another Council of Ministers shall

The existing Council of Ministers will conduct its work until such time as it is formed.

In the event of the death of the Prime Minister, the Senior Minister shall act as Prime Minister until another Prime Minister is appointed.

78. ~~Minister not being a member of the Federal Parliament:~~ (1) Subject to any provision of clause (9) of article 76, the National

Assembly may, on the advice of the Prime Minister, appoint any person who is not a member of the Federal Parliament to

the post of Minister. (2) A Minister appointed under clause (1) shall become a member of

the Federal Parliament within six months of taking the oath of office. (3) If he fails to become a member of the

Federal Parliament within the period prescribed under clause (2), he shall

not be eligible for re-appointment as a Minister during the term of the then-existing House of Representatives.

(4) Notwithstanding anything contained in clause (1), a person who has been defeated in the election of the then-existing

Legislative Assembly shall not be eligible for

appointment to the post of Minister under clause (1) during the term of that Legislative Assembly.

79. ~~Remuneration and other facilities of the Prime Minister and Ministers:~~ The remuneration and other facilities of the Prime Minister

and Ministers shall be as per the Federal Act. Until such Act is enacted, the Government of Nepal shall be as per the provisions.

80. Oath: ~~The Prime Minister,~~ Deputy Prime Minister and Ministers shall take an oath of office and secrecy before the Prime Minister

and the Minister of State and Assistant Ministers before the Prime Minister before assuming their duties in accordance with federal law.

81. ~~Informing the Prime Minister:~~ The Prime Minister shall inform the Prime Minister of the affairs of the country.

(a) Decisions of

the Council of Ministers, (b) Bills to be

introduced in the Federal Parliament,

(c) Other necessary details requested by the RPI in the cases mentioned in clauses (a) and (b), and

(d) The current situation of Nepal and the consequences of foreign relations.

82. ~~Conduct of the business of the Government of~~ Nepal: (1) The business of the Government of Nepal shall be divided and the work shall be performed in accordance with the rules approved by the Government of Nepal. (2) The question whether the rules under clause (1) have been complied with or not shall not be raised in any court.

Part-8

Federal Legislation 83.

Federal Legislation: There shall be a federal legislature consisting of two houses, namely the House of Representatives and the House of Representatives, which shall be called the Federal Parliament.

84. Composition of the Presidium: (1) The Presidium shall consist of two hundred and seventy-five members as provided in the Constitution.

Rinchanah:

(a) Nepal shall be divided into one hundred and sixty-five constituencies on the basis of population and geographical location and shall have one member elected from each constituency, one hundred and sixty-five members elected under the proportional representation system, (b) The entire country shall be considered as one constituency and political parties shall be elected under the proportional representation system.

Ten members.

(2) For the purpose of the election of the Legislative Assembly under the proportional representation system, political parties shall nominate candidates on the basis of a closed list from among the communities of the backward classes, including the tribals, the tribals, the Khas Ayyab, the Madhesis, the Tharus, the Muslims, and the backward areas, based on population, as per the federal law. In so nominating candidates, due consideration shall be given to the geographical and regional balance. Explanation: For the purposes of this clause, the term "Khas Ayyab" shall mean the Kshetri, Brahmin, Thakur, and Sanyasi (Dashnami) communities.

(3) A political party shall make arrangements for the nomination of a person who is disqualified from contesting the election as a candidate under clause (2). (4) The nomination of a member of the House of Representatives under clause (1) shall be made by secret ballot in accordance with law. (5) Every

Nepali citizen who has completed the age of eighteen years shall have the right to contest in any constituency in accordance with federal law.

(6) A person who is entitled to contest for election to the House of Representatives in a referendum and who has met the qualifications required by Article 87 shall be eligible to stand as a candidate from any constituency under the Federal Law. However, a person

shall not be eligible to stand as a candidate from more than one constituency at the same time. (7)

If a

seat of a member falls vacant while the term of the House of Representatives is more than six months, the seat shall be filled by the same process as that in which it was filled by the referendum. (8) Subject to anything else in this Part, each political

party representing the Federal Parliament shall elect at least one-half of the total number of members elected. If, in accordance with clause (a) of clause (1) and clause (a) of clause (2) of Article 86, one-half of the members elected by a political party cannot be elected, that political party shall elect a member by a minimum of one-half of the members elected by its party to the Federal Parliament.

(9) The resolutions of the Legislative Assembly and other matters related thereto shall be passed in accordance with federal law.

85. Term of office of the Legislative Assembly: (1) Unless previously dissolved in accordance with this Constitution,

The term of office of the House of Representatives shall

be five years. (2) Notwithstanding anything contained in clause (1), the term of office of the House of Representatives may be extended by one year in accordance with the Federal Act, provided that a declaration or order of a state of emergency is in force.

(3) The term of office of the Presidium of the Supreme Court, as added pursuant to clause (2), shall automatically terminate on the expiry of the month following the declaration or revocation of the order of the state of emergency.

86. Constitution of the House of Representatives and Appointment of Members: (1) The House of Representatives shall be a permanent House.

(2) The

Rajya Sabha shall consist of sixty-nine members as follows:

(a) A minimum of three women, one male and one disabled person or a minority from each

province shall be elected by the electoral college consisting of the members of the

Provincial Assembly, the chairperson and vice-chairperson of the Village Municipality, and

the mayor and deputy mayor of the Municipality, in accordance with federal law, with the

total weight of the members of the Provincial Assembly, the chairperson and vice-

chairperson of the Village Municipality, and the mayor and deputy mayor of the Municipality,

to a total of eight persons, including

(b) Three persons, including one female member, nominated by the National Assembly on the

recommendation of the Government of Nepal.

(3) The term of office of the members of the National Assembly shall be six years. The term of office of one-

half of the members of the National Assembly shall expire every two years. However,

the term of office of the members shall be determined by lot for the first time after the commencement of this

Constitution, so that one member shall serve two years, another member shall serve four years and the remaining

member shall serve six years. (4) The term of office of all the members of

the National Assembly shall be deemed to have commenced from the date of the first meeting of the National

Assembly when the term of office of the members of the National Assembly is first counted after the commencement of

this Constitution.

(5) The oath or nomination of the member who vacates the seat of the National Assembly before it falls

vacant shall be made for the remaining term by the same method by which the member was elected. (6) Other provisions

relating to the oath or nomination

of the member of the National Assembly shall be made in accordance with federal law.

87. Qualifications for members: (1) A person who is qualified to be a member of the Federal Parliament shall be

Eligible: (a) Citizen

of Nepal, (b) Twenty-five years

of age for the House of Representatives and Twenty-five years of age for the House of

Representatives, (c) Not

convicted of any criminal offense, (d) Not disqualified by any federal law, and

(e) Not holding any office of profit.

Explanation: For the purposes of this section, "office of profit" means any office conferred by appointment or nomination, other than a civil service office, and any other office receiving remuneration or financial benefits from the Government. (2) No person

shall be a member of both Houses at the same time. (3) If a person holding a political office by appointment, nomination or appointment is elected or nominated to the office of a member of the Federal Parliament under this Part, that office shall automatically become vacant on the day on which he takes the oath of office of a member of the Federal Parliament.

88. Oath: A member of each House of the Federal Parliament shall take an oath in accordance with federal law before attending a meeting of the House or any of its committees for the first time.

89. Vacancy of seat: The seat of a member of the Federal Parliament shall become vacant at any time during the term of the

It is: (a) If

he resigns in writing to the Speaker or the Chairperson, (b) If he is not qualified or dies as per Article 87, (c) If the term of office of the House of Representatives or the office of a member of the National Assembly expires.

If so,

(d) If he/she is absent from ten consecutive meetings without informing the relevant House, (e) If the party from which he/she was elected as a member declares that he/she has left the party in accordance with federal law, (f) If he/she dies.

90. Decision on disqualification of members: If a question arises as to whether any member of the Federal

Parliament is disqualified or has been removed under Article 87, the final decision on the matter shall be taken by the Constitutional Bench of the Supreme Court.

91. Speaker and Deputy Speaker of the House of Representatives: (1) The members of the House of Representatives shall, within fifteen days from the commencement of the first sitting of the House of Representatives, elect from among themselves the Speaker and Deputy Speaker of the House of Representatives. (2) The election under clause (1) shall be made in such a way that one of the Speaker and Deputy Speaker of the House of Representatives shall be elected jointly and the Speaker and Deputy Speaker of the House of Representatives shall be elected jointly by the members of different political parties. However, in a House of Representatives, where there is no representative of more than one political party or where no candidate has been nominated, there shall be no impediment to a member of the same political party becoming the Speaker and Deputy Speaker of the House of Representatives. (3) If the office of the Speaker or Deputy Speaker of the House of Representatives is vacant, the members of the House of Representatives shall nominate a Speaker and Deputy Speaker from among themselves to fill the vacancy. (4) In the absence of the Speaker of the House of Representatives, the Deputy Speaker shall preside over the meeting of the House of Representatives. (5) In the absence of the Speaker and Deputy Speaker of the House of Representatives or in the event that both the offices are vacant, the meeting of the House of Representatives shall be presided over by the eldest member among the members present. (6) The office of Speaker or Deputy Speaker of the House of Representatives shall become vacant in any case: (a) if he ceases to be a member of the House of Representatives, but the Speaker and Deputy Speaker of the House of Representatives who held office at the time of the dissolution of the House of Representatives shall hold office until the last day on which he files his nomination for the next term of office. (b) if he resigns in writing, (c) if a motion is passed by two-thirds of the total number of members of the House of Representatives for the time being that he has not conducted himself in a manner befitting his office.

(7) The Deputy Chairman of the House of Representatives shall preside over the meeting to discuss the motion that the Chairman of the House of Representatives has not behaved in a manner befitting his office. The Chairman of the House of Representatives shall be entitled to participate and vote in the discussion of such motion. 92. Chairman and Deputy Chairman of the National Assembly: (1) The members of the National Assembly shall elect from among themselves the Chairman and Deputy Chairman of the National Assembly within the first day of the commencement of the first sitting of the National Assembly. (2) The Chairman and Deputy Chairman of the National Assembly shall be elected by the members of the National Assembly from among themselves on the day of the commencement of the first sitting of the National Assembly. One of them will have to be married. (3) If the office of the Speaker or the Vice-Speaker of the National Assembly falls vacant, the members of the National Assembly shall elect a Speaker or Vice-Speaker from among themselves to fill the vacancy. (4) In the absence of the Speaker of the National Assembly, the Vice-Speaker of the National Assembly shall preside over the National Assembly. (5) In the absence of the Chairperson and Vice-Chairperson of the National Assembly or in the event of a vacancy, the meeting of the National Assembly shall be presided over by the eldest member in terms of age among the members present. (6) The office of Speaker or Deputy Speaker of the National Assembly shall become vacant in any of the following circumstances:

- (a) If he is not a member of the National Assembly,
- (b) If he resigns in writing, (c) If a motion is passed by two-thirds of the total number of members of the National Assembly for the time being that he has not conducted himself in a manner befitting his office. (7) The meeting at which a motion is discussed that the Speaker of the National Assembly has not conducted himself in a manner befitting his office shall be presided over by the Vice-Speaker of the National Assembly. The Speaker of the National Assembly shall be entitled to participate and vote in the discussion of such motion.

93. Summons and end of session: (1) The Federal Parliament shall be convened within twenty-five days of the declaration of the final result of the resolution passed by the National Assembly.

The National Assembly shall then, in accordance with this Constitution, from time to time convene a session of either House. The interval

between the commencement of one session and the commencement of the next session shall not exceed six months. (2) The National

Assembly may terminate the session of either House of the Federal Parliament. (3) If the National Assembly,

while the session of the House of Representatives is not in session or the meeting is adjourned, requests in writing by one-fourth of the total number of members of the House of Representatives that it is desirable to convene a session or a meeting, it shall fix the date and time for such session or meeting. The meeting of the House of Representatives shall be held on the date and time so fixed.

94. Quorum: Except as otherwise provided in this Constitution, no question or motion shall be put for decision in any meeting of either House of the Federal Parliament unless one-fourth of the total number of members is present.

95. Address by the Speaker: (1) The Speaker may address a meeting of either House of the Federal Parliament or a joint meeting of both Houses and may summon the members to attend for that purpose. (2) The Speaker shall address the first

session after the commencement of the first session of the House of Representatives and the joint meeting of both Houses of the Federal Parliament after the commencement of the first session of each year.

96. Deputy Prime Minister, Minister, Minister of State and Minister of State to participate in the meetings of both Houses:

The Deputy Prime Minister, Minister, Minister of State and Minister of State shall be entitled to attend and participate in the proceedings and discussions of any House of the Federal Parliament or its sittings. However, they shall not be entitled to speak in a House or its sittings of which they are not members.

97. Formation of Committees: (1) The House of Representatives and the National Assembly may form committees in accordance with federal law.

(2) If either House passes a motion to constitute a Joint Committee of the two Houses of the Federal Parliament for the purpose of regulating the procedure between the two Houses, of ending any dispute in any Bill or for any other specific purpose, a Joint Committee shall be constituted. Such Joint Committee shall consist of five members of the House of Representatives and one member of the House of Representatives, on the basis of proportional representation, not exceeding twenty-five members.

98. Conduct of business of the House in case of vacancy of a member: The House may conduct its business in case of vacancy of the seat of any member of the Federal Parliament. If it is later discovered that a person who is not entitled to participate in the proceedings of either House of the Federal Parliament has participated, the business already transacted shall not be invalidated.

99. Voting: Except as otherwise provided in this Constitution, any motion submitted for a vote in any House of the Federal Parliament shall be decided by a vote of the members present and voting. The person presiding shall not have the power to vote.

If the numbers are equal, the person will give their opinion.

100. Provisions relating to the motion of confidence and no-confidence motion: (1) The Prime Minister may, at any time, if he considers it necessary or appropriate to declare that he has the confidence of the House of Representatives, move a motion before the House of Representatives for a vote of confidence.

(2) If the party nominated by the Prime Minister splits or if a party participating in the government withdraws its support, the Prime Minister shall, within twenty days, present a proposal to the House of Representatives for a vote of confidence.

(3) If the proposal submitted pursuant to clauses (1) and (2) fails to pass by a majority of the entire number of members then present in the House of Representatives, the Prime Minister shall be relieved of his office.

(4) One-fourth of the total number of members present in the House of Representatives may move a motion of no confidence in the Prime Minister in writing.

However, a motion of no confidence cannot be presented within two years of the Prime Minister's appointment and within one year of the failure of a motion of no confidence once presented.

(5) The proposal for a new term under clause (4) shall include the name of the member proposed for the Prime Minister. (6) If the proposal for a new term submitted under clause (4) is passed by a majority of the total number of members then present in the House of Representatives, the Prime Minister shall vacate his office. (7) If the proposal for a new term under clause (6) is passed and the office of the Prime Minister falls vacant, the National Assembly shall appoint the member of the House of Representatives proposed under clause (5) as the Prime Minister in accordance with Article 76.

101. Impeachment: (1) One-fourth of the total number of members for the time being present in the House of Representatives may submit a motion of impeachment against the President or the Vice President on the grounds of serious violation of this Constitution and the law. If such motion is supported by at least two-thirds of the total number of members for the time being present in the House of Representatives, the President shall be removed from office.

(2) One-fourth of the total number of members of the House of Representatives for the time being may submit a proposal of impeachment against the Chief Justice of Nepal or a judge of the Supreme Court, a member of the Judicial Council, the head of a constitutional body or an official on the grounds of serious violation of this Constitution and the law, lack of capacity or bad conduct, or failure to faithfully perform their duties or serious violation of the Code of Conduct. If such proposal is supported by at least two-thirds of the total number of members of the House of Representatives for the time being, the person concerned shall be removed from office.

(3) An Impeachment Recommendation Committee shall be constituted in the House of Representatives for the purpose of investigating and recommending whether there are grounds and reasons for proposing an impeachment against any person under clause (2).

(4) The committee under clause (3) shall consist of eleven members of the House of Representatives.

(5) If at least

three members of the House of Representatives submit a report, information or complaint on the grounds that the person removed from office by impeachment under clause (2) has committed a serious violation of the Constitution or has committed a serious violation of the Code of Conduct, or has committed a serious violation of the Constitution, or has committed a serious violation of the Code of Conduct, the committee under clause (3) shall investigate the complaint in accordance with the federal law and recommend it to the House of Representatives for impeachment proceedings, then a proposal for impeachment may be submitted under clause (2). (6) After the commencement of the proceedings of impeachment under clause (2), the Chief Justice of Nepal or a judge of the

Supreme Court, a member of the Judicial Council, the head of a constitutional body or an official shall not be entitled to perform the functions of his office until the conclusion of such proceedings. (7) A person accused of impeachment under clause (1) or (2) shall not be entitled to perform the functions of his office until the conclusion of such proceedings.

A fair opportunity to present a defense must be given.

(8) No offence shall be committed by the President or Vice President, the Chief Justice of Nepal or a judge of the Supreme Court, a member of the Judicial Council, the head of a constitutional body or an official who has been removed from office by impeachment under this Article, if he has committed such offence while in office, there shall be no impediment to taking action in accordance with the federal law for that offence. (9) A person who has been removed from office by impeachment under clause (1) or (2) shall not be entitled to any benefit from such office and shall not be appointed or nominated to any public office in the future. (10)

Other provisions relating to impeachment shall be made

in accordance with the federal law.

102. Punishment for unauthorized attendance or presence: If any person who has not taken the oath or is not a member of the Federal Parliament under Article 88, attends or presents himself in a meeting of any House of the Federal Parliament or a committee thereof, he shall be punished by the order of the person presiding over that meeting for such attendance or presence.

A fine of five thousand rupees will be imposed for each violation and the fine will be recovered from the government dues.

103. ~~Special Powers:~~ (1) Subject to this Constitution, there shall be complete freedom of speech in both Houses of the Federal Parliament and no action shall be taken in any court of law against any member of the Parliament for any word expressed or any statement made in the House. (2) Subject to this

Constitution, each House of the Federal Parliament shall have full power to transact and decide its own business and the power to decide whether any action of the House is lawful or not shall lie with the House concerned alone. No question shall be raised in any court of law in this regard. (3) No comment shall be made

on any proceedings of either House of the Federal Parliament raising doubts as to its good faith, and no publication or broadcast shall be made in any way that knowingly gives false or misleading meaning to any matter spoken by any member.

(4) The provisions of clauses (1) and (3) shall apply to any person other than a member of the Federal Parliament entitled to attend a meeting of the House. (5)

No person shall be liable to be prosecuted in any court for publishing any writing, report, motion or act under the authority of any House of the Federal Parliament. Explanation: For the purposes of this clause and clauses

~~(1), (2), (3)~~ and (4), the expression "House" means the House of Representatives or the House of Representatives and includes a joint sitting or committee or joint committee of the Federal Parliament. (6) No member of the Federal Parliament shall be

arrested after the notice of the summoning of a session has been issued until the end of the session. But nothing in this clause shall be deemed to prevent the arrest

of any member in accordance with federal law in any criminal case. If any member is so arrested, the arresting officer shall first inform the person presiding over the House concerned.

(7) The exercise of special powers shall be deemed to be an exercise of the Federal Parliament and the power to decide whether or not any special power has been exercised shall be vested solely in the relevant House. (8) If any

person exercises special powers, the person presiding over the relevant House may, by decision of the House, issue a warning to that person, issue a warning, or impose imprisonment for a term not exceeding three months or impose a fine not exceeding ten thousand rupees, and such fine shall be recovered from the Government dues.

If that person apologizes to the relevant House,
The House may pardon or reduce the punishment awarded or imposed on any person.

(9) Other provisions relating to the prerogatives of the Federal Parliament shall be made in accordance with federal law.

104. Procedure: (1) Each House of the Federal Parliament shall make rules for the conduct of its business, for the maintenance of order in its sittings and for regulating the constitution, work, proceedings of committees and the procedure of any House or committee. Until such rules are made, the Federal Parliament shall regulate its own procedure. (2) The conduct of business of a joint sitting of the
Federal Parliament and the constitution and proceedings of a joint committee of the Federal Parliament shall be in accordance with the rules or procedures approved by the joint sitting of both Houses of the Federal Parliament.

105. Prohibition on Bias: No discussion shall be held in any House of the Federal Parliament regarding any judicial act performed by a judge in a case pending in any court of Nepal, which may have a positive impact on the administration of justice.

Regarding the conduct of the judge during the discussion of the impeachment proceedings

This section shall not be deemed to prevent any person from expressing any opinion.

106. Secretary and Clerk of the Federal Parliament: (1) The National Assembly shall appoint the Secretary of the Federal Parliament on the joint advice of the Speaker of the House of Representatives and the President of the House of Representatives, the Secretary of the House of Representatives on the advice of the Speaker, and the Secretary of the House of Representatives on the advice of the President of the House of Representatives.

(2) The qualifications, duties, functions, powers and other provisions of service of the Secretary of the Federal Parliament, the Secretary of the House of Representatives and the Secretary of the National Assembly shall be as provided for in federal law.

107. Secretariat of the Federal Parliament: There shall be a Secretariat to conduct and manage the business of the Federal Parliament.

The establishment of such Secretariat and other arrangements relating thereto shall be made in accordance with the Federal

Law. 108. Remuneration: The remuneration and facilities

of the Speaker and Deputy Speaker of the House of Representatives, the Speaker and Deputy Speaker of the National Assembly, the

Speaker of the House of Representatives and the members of the Federal Parliament shall be in accordance with the Federal

Law. Until such law is made, the Government of Nepal shall determine such remuneration and facilities as may be prescribed.

Part-9

Federal Administrative

Procedure 109. Executive Powers of the Federal Parliament: The executive powers of the Federal

Parliament shall be as mentioned in the list in Schedule-5, Schedule-7 and Schedule-9.

110. Manner of introducing a Bill: (1) Subject to this Constitution, a Bill may be introduced in either House of the Federal

Parliament. But a Bill shall be introduced only in

the House of Representatives. (2) A Bill shall be introduced in the House

of Representatives only if it is introduced by the Nepal Army, Nepal Police or the Armed Police Force, Nepal.

A bill relating to the security apparatus shall be introduced only as a government bill. (3) The

expression "or Bill" in the proviso means a bill relating to any of the following matters:-

(a) a bill for imposing, collecting,

repealing, exempting, changing or regulating the tax system,

(b) to protect the Federal Reserve or any other federal government fund, to

deposit money in that fund, to appropriate or spend any money from that fund, to reduce, increase or repeal the amount sought to be appropriated or spent,

(c) Amending the laws relating to financial obligations undertaken or to be

undertaken by the Government of Nepal to regulate the provision of guarantees for loans

received by the Government of Nepal, (d) Depositing all types of revenue

received by the Federal Government, amount received from loan recovery and grant amount, auditing the accounts of the Government of

Nepal making investments, and (e) Other matters directly related to clauses (a), (b), (c) or (d).

Relevant documents.

Any license fee, application fee, renewal fee, or other fee, fee

or charge, or any penalty.

No Bill or Bills shall be considered as passed merely because it contains a provision for imprisonment.

(4) If a question arises as to whether a Bill or Bills shall be passed or not, the decision of the Speaker shall be final.

111. Procedure for passing a bill: (1) A bill passed by one House of the Federal Parliament shall be sent as soon as possible to the other House and after being passed by that House, it shall be presented to the

President for ratification. (2) A bill

passed by the House of Representatives shall be sent to the National Assembly. The National Assembly shall, after discussing the bill, report any amendments it may have made to the National Assembly within fifteen days of receiving the bill. (3) The National Assembly

shall, after discussing the bill and including any amendments it may deem appropriate, submit it to the President for ratification. (4) If the National Assembly does not pass a Bill within fifteen days of receipt of the Bill under

clause (2), the House of Representatives may submit it to the President for verification. (5) The House of Representatives shall, within two months of receipt of any Bill other than a Bill passed by the House of

Representatives and sent to the National Assembly, forward it to the President for verification.

If the National Assembly does not pass the Bill within that period, the House of Representatives may, by a resolution of the members of the House of Representatives then in force, submit the Bill to the President for verification. (6) If a Bill passed by any other House is rejected or amended by the other House, the Bill shall be returned to the House in which it originated. (7) If a Bill passed by the National Assembly or amended

by the House of Representatives under clause (6) is considered and re-passed by the members of the House of Representatives in the form of a presentment or amendment, the Bill shall be presented to the President for

certification.

(8) A Bill returned to the National Assembly from the House of Representatives with amendments under clause (6) shall, if the National Assembly passes the amendment again by a number of members not exceeding the number of members then existing, be presented to the President for ratification. (9) The Bill shall be presented

to a joint sitting of both Houses as provided for in the Act and if the joint sitting passes the Bill as presented or with amendments, the House in which the Bill originated shall present it to the President for ratification:

(a) Passed by the House of Representatives but rejected by the House of Representatives,
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(b) The House of Representatives has sent a report to the National Assembly with an amendment and the National Assembly has not been able to

accept that amendment. (10) The session of the House shall be terminated while any Bill is under consideration. If so, action may be taken on that bill in the next session.

If any Bill is introduced in the House of Representatives and is pending consideration or passed in the House of Representatives and is pending consideration in the House of Representatives, the House of Representatives is dissolved or its term of office expires, that Bill shall lapse.

112. Bill Malan: Bill hearing failed to approve Bill Malan

It will be possible.

113. Certification of Bills: (1) A Bill submitted to the Parliament for certification under Article 111 shall be certified by the Speaker or the Chairperson of the House in which it originated. The Speaker shall certify that the Bill is a Bill. (2) A

Bill submitted to the Parliament for certification under this Article shall be certified within fifteen days and a

notice thereof shall be given to the House as soon as possible. (3) If the Parliament considers that a Bill other than the Bill submitted for certification requires reconsideration, it shall send a report to the House in which the

Bill originated within fifteen days of the introduction of that Bill.

(4) If the National Assembly rejects any bill through the message board, the bill shall be reconsidered by both the Houses and reintroduced either as it stands or with amendments, and the National Assembly shall certify it within fifteen days of such submission. (5)

After certification by the National Assembly, the bill shall become an Act.

114. ~~Ordinances~~: (1) The Prime Minister may, on the advice of the Council of Ministers, issue an Ordinance if it is necessary to do anything at any time while both Houses of the Federal Parliament are in session. (2) An Ordinance

issued under clause (1) shall be deemed to be an Act. Provided that every such Ordinance,— (a) shall be laid

before both Houses of the Federal Parliament then in session after its issuance

and shall automatically lapse if not approved by both

Houses, (b) may be repealed by the Prime Minister at any

time, and (c) shall automatically lapse sixty days after the sitting of both Houses,

unless it is repealed or repealed under clause (a) or (b). Explanation:

~~For the purposes~~ For the purposes of this clause, the expression “day on which the Bi-House is sitting” means the day on which the Bi-House of the Federal Parliament commences or sits, and in the case of adjourned meetings of the Houses of the Federal Parliament, the term refers to the day on which the House is sitting.

Part-10

Federal Financial Procedure

115. No Taxation or Loan: (1) No tax shall be imposed or collected except in accordance with law. (2) The Government of Nepal shall not

borrow or grant any loan except in accordance with federal law.

116. Federal Revenue: All types of revenue received by the Government of Nepal other than the trust funds, all loans received from the revenue fund, all money received from the recovery of any loan granted under the authority of the Act and any other amount received by the Government of Nepal, unless otherwise provided by the Federal Act, shall be collected as revenue in a single government body which shall be called the Federal Revenue.

117. Expenditure from Federal Government Fund or Federal Government Fund: No amount shall be recovered from the Federal Government Fund or any other Federal Government Fund except the amount due under the Act:

(a)

Amounts charged to the Federal Government Fund, (b) Expenditures

under the Federal Appropriation Act, (c) Amounts in arrears to

the Federal Government Fund while the Appropriation Bill is under consideration.

(d) A federal loan expenditure which is

only a statement of expenditure in special circumstances. The federal emergency fund shall be

established in accordance with

Article 124.

118. Expenditure on Federal Government Accounts: Expenditure related to the affairs of the State shall be charged

to the Federal Government Accounts and the approval of the Federal Parliament shall not be required for such

expenditure: (a) the amount of remuneration and facilities of the President and the

Deputy President, (b) the Chief Justice of Nepal, the Judges of the Supreme Court and the Judicial Council.

The amount of remuneration and benefits paid to members,

(c) The amount of remuneration and facilities given to the Speaker and Deputy Speaker of the House of Representatives, the Speaker and Deputy Speaker of the National Assembly, (d) The amount of remuneration and facilities given to the heads and officials of the constitutional bodies, (e) The amount of remuneration and facilities given to the heads of the provinces, (f) The administrative expenses of the offices of the President or Vice President, the Supreme Court, the Judicial Council, the constitutional bodies and the offices of the heads of the provinces, (g) Debt-related expenses of the Government of Nepal, (h) Payments made pursuant to a judgment or order passed by a court against the Government of Nepal, and (i) Payments made to the Federal Government under federal law.

119. Estimates of Revenue and Expenditure: (1) The Minister of Finance of the Government of Nepal shall present an annual estimate in a joint sitting of the two Houses of the Federal Parliament for each financial year, setting out the following items: (a) Estimates of revenue, (b) Amounts required to be incurred in connection with the expenditure of the Federal Government, and (c) Amounts required to be incurred in accordance with the Federal Appropriation Act. (2) While presenting the annual estimate under clause (1), the amount of expenditure allocated to each Ministry in the preceding financial year and the achievement of the target for such expenditure shall be submitted along with the details thereof. (3) The Minister of Finance of the Government of Nepal shall present an estimate of the revenue and expenditure under clause (1). The estimates will be presented to the Federal Parliament on the fifteenth of May each year.

120. Appropriation Act: The amount to be spent in accordance with the Appropriation Act shall be stated in the Appropriation Bill, with reference to the relevant heading.

121. Supplementary Estimates: (1) In the event of any financial year, the Minister of Finance of the Government of Nepal may present a supplementary estimate to the House of Representatives: (a) If the amount authorized by the Appropriation Act for any service for the current financial year is insufficient or

Spending on new services not authorized by the Appropriations Act

If necessary, or

(b) If the expenditure exceeds the amount provided for in the Appropriation Act in the current

financial year. (2) The amount

included in the Supplementary Estimates shall be included in the Supplementary Appropriation Bill, with the relevant heading mentioned.

122. ~~Appropriation Bill:~~ (1) Subject to anything contained elsewhere in this Part, any part of the estimated expenditure for the financial year may be spent as an appropriation bill under a federal law while the appropriation bill is pending. (2) No appropriation bill shall be introduced until the estimates of revenue and expenditure have been presented under section 119 and the amount of the appropriation shall not exceed one-half of the estimated expenditure for the financial year. (3) The amount spent under the Federal Appropriation Bill shall be included in the appropriation bill.

123. ~~Borrowing Expenditure:~~ Notwithstanding anything contained elsewhere in this Part, if, in the event of a state of emergency due to natural causes or apprehension of external attack or internal disturbance or other causes, it is impracticable or undesirable from the point of view of the security of the State or the law to disclose the details required under clause (1) of Article 119, the Minister of Finance of the Government of Nepal may introduce a Borrowing Expenditure Bill containing only the details of expenditure in the Legislative Assembly.

124. ~~Federal Emergency Fund:~~ (1) There may be established a fund called the Emergency Fund under a Federal Act and such amount as may be determined from time to time under a Federal Act shall be deposited in that fund. (2) The fund under clause (1) shall be under

the control of the Government of Nepal and

The Government of Nepal may make expenditure for emergency works from that fund.

(3) The amount of expenditure under clause (2) shall be investigated as soon as possible in accordance with the Federal Act.

125. Act relating to financial procedures: The amount allocated in accordance with the federal act shall be transferred from one head to another and other arrangements relating to financial procedures shall be made in accordance with the federal act.

नेपाल कानून आयोग

Part-11

126. Judicial

~~Powers to be exercised by Courts:~~ (1) The judicial powers of Nepal shall be exercised by the courts and the judicial bodies in accordance with this Constitution, other laws and the accepted principles of justice. (2)

Everyone shall have to obey the order or decision given by the court in the case.

127. Courts: (1) There shall be in Nepal the following courts as may be prescribed:

- (a) the Supreme Court,
- (b) High Court, and (c)
- District Court.

(2) In addition to the cases referred to in clause (1), other bodies may be constituted at the local level to adopt alternative dispute resolution measures or to adopt judicial bodies as required by law.

128. Supreme Court: (1) There shall be a Supreme Court in Nepal. (2)

The Supreme Court shall be the Court of Record. Except as otherwise provided in this Constitution, all other courts and judicial bodies shall be known as the Supreme Court. The Supreme Court shall have the exclusive power to interpret the Constitution and the law. (3) The Supreme

Court may inspect, supervise and give necessary directions in matters relating to the administration or management of justice by itself and by the courts, special courts or other judicial bodies within its jurisdiction.

(4) Everyone shall be bound by the interpretation or interpretation of the Constitution and the law by the Supreme Court in the case. The Supreme Court may take action and punish anyone who obstructs the administration of justice of its own or any other court or who disobeys an order or judgment in accordance with the law.

129. Appointment and qualifications of the Chief Justice of Nepal and the Judges of the Supreme Court: (1) The

Supreme Court shall consist of a maximum of twenty judges in addition to the Chief Justice of Nepal. (2)

The Chief

Justice and the Judicial Council shall be appointed on the recommendation of the Constitutional Council.

The appointment of other judges of the Supreme Court on the recommendation of the Supreme Court shall be made by the Supreme Court.

(3) A person who has served as a judge of the Supreme Court for at least three years.

He/She is eligible to be appointed to the position of Chief Justice.

(4) The term of office of the Chief Justice shall be six years. (5)

A Nepali citizen who has obtained a Bachelor's degree in Law and has served as the Chief Justice or a Judge of a High Court for at least five years, or who has obtained a Bachelor's degree in Law and has served as a senior judge or a judge for at least fifteen years, or who has obtained a Bachelor's degree in Law and has served as a senior judge or judge for at least fifteen years, or who has worked continuously in the field of justice or law for at least fifteen years and has attained distinction as a distinguished jurist, or who has served as a first class or higher post in the Judicial Service Gazette for at least twelve years shall be considered eligible for appointment as a Judge of the Supreme Court.

Explanation: The period during which a person has served as the Chief Justice or a Judge of the Court of Appeal before the commencement of this Constitution shall be deemed to be the period during which he has served as the Chief Justice or a Judge of the High Court for the purposes of this clause.

(6) If the office of the Chief Justice becomes vacant or if the Chief Justice is unable to perform the duties of his office for any reason, or if the Chief Justice is unable to attend the Supreme Court due to a leave of absence or departure from Nepal, the senior-most judge of the Supreme Court shall act as the Acting Chief Justice.

130. Remuneration and facilities of the Chief Justice and Judges: (1) The Chief Justice and Judges of the Supreme

Court shall, on resignation after serving for at least five years, or on compulsory retirement, or on death, be entitled to retirement in accordance with the Federal Law. (2) Except as otherwise provided in this Constitution,

the remuneration and other facilities of the Chief Justice and Judges of the Supreme Court shall be in accordance with the Federal Law.

(3) Notwithstanding anything contained in clauses (1) and (2), a Chief Justice or a Judge of the Supreme Court who has been removed from office by impeachment or who has been convicted by a court of law for a criminal offence involving office shall not receive gratuity or compensation.

(4) The Chief Justice or a judge of the Supreme Court shall be appointed
The employee's salary and other terms of service will not be changed.

However, this arrangement will not apply in cases where a state of emergency has been declared due to extreme economic instability.

131. ~~Vacancy of the office of the Chief Justice or a Judge of the Supreme Court:~~ The office of the Chief Justice or a Judge of the Supreme Court shall become vacant in any case: (a) if he resigns in writing before the Prime Minister, (b) if he attains the age of sixty-five years, (c) if a charge sheet is filed against him under Article 101, (d) if the President, on the recommendation of the Constitutional Council in the case of the Chief Justice and the Judicial Council in the case of the Judge of the Supreme Court, declares him incapable of performing the duties of his office due to physical or mental infirmity, (e) if he is convicted by a court of law for a criminal offence not punishable by law, (f) if he dies.

132. ~~Prohibition of deputing the Chief Justice or a Judge of the Supreme Court to any other work:~~ (1) The Chief Justice or a Judge of the Supreme Court shall not be deputed to any other work other than that of a Judge.

The Government of Nepal, in consultation with the Judicial Council, may depute a Judge of the Supreme Court to the work of judicial inquiry or to any work of investigation or inquiry relating to law or justice for a specific period.

(2) A person who has been the Chief Justice or a Judge of the Supreme Court shall not be eligible for appointment to any government post except as otherwise provided in this Constitution.

133. Jurisdiction of the Supreme Court: (1) If any law is inconsistent with this Constitution by imposing unreasonable restrictions on the rights conferred by this Constitution or for any other reason, or if that law or any part thereof or any law made by the Provincial Assembly is inconsistent with any law made by the Federal Parliament or if any law made by the Municipal Assembly or Village Assembly is inconsistent with any law made by the Federal Parliament or Provincial Assembly, any Nepali citizen may file an application with the Supreme Court to have that law or any part thereof declared null and void, and if any law is found to be inconsistent, the Supreme Court shall have the extraordinary power to declare that law null and void from the date of its commencement or

from the date of its enactment. (2) The Supreme Court shall have the extraordinary power to issue necessary and appropriate orders, to provide appropriate remedies, to settle disputes for the enforcement of any other legal right provided by this Constitution or to grant such remedies,

(3) The Supreme Court may, under the extraordinary jurisdiction of clause (2), issue habeas corpus, writs, injunctions, writs of summons, writs of execution (4) Subject to this Constitution, the Supreme Court shall

have the power to try and determine cases, to hear appeals, to examine the merits, to remand cases, to hear appeals, or to review its judgments or orders, as provided in federal law. The judge who shall decide such review shall be a judge other than the judge who shall decide such appeal.

(5) The High Court shall hear appeals from cases initiated and decided by the public interest tribunals, and shall decide on questions of interpretation of the Constitution and laws.

The Supreme Court has the power to decide a case on which the High Court has recommended its opinion that it is appropriate for the Supreme Court to decide.

(6) Other powers and procedures of the Supreme Court shall be in accordance with federal law.

134. Cases may be transferred: (1) If a case involving substantially the same question is pending before the Supreme Court and a High Court, the Supreme Court shall have the power to transfer the case and decide it together if it appears to the Supreme Court that the question is of public interest or if it appears from the application of the trial judge or a party to the case. (2) If it appears from special circumstances that a question arises in the hearing of a case filed in any High Court, the Supreme Court may, by stating the reasons and grounds, order the transfer of the case from one High Court to another High Court in accordance with law.

135 Not allowed to practice law: The Chief Justice and the Judges of the Supreme Court shall not be allowed to practice law, conciliation or mediation in any court of law after they retire from service.

136. Responsibility of the Chief Justice: The Chief Justice shall have the sole responsibility of ensuring the effective administration of justice in the Supreme Court and the Civil Courts, the Special Courts or other judicial bodies.

137. Constitution of the Constitutional Bench: (1) There shall be a Constitutional Bench in the Supreme Court. That Bench shall consist of the Chief Justice and four other Judges appointed by the Chief Justice on the advice of the Judicial Council. (2) The Bench referred to in clause (1) shall, in accordance with clause (1) of section 133,

The following shall initiate and resolve cases of non-payment of claims:

(a) Disputes regarding jurisdiction between the Union and the Provinces, Provinces and Provinces, Provinces and Local Governments, and Local Governments,

(b) Disputes relating to the oath of a member of the Federal Parliament or a Provincial Assembly and the disqualification of a member of the Federal Parliament or a Provincial

Assembly. (3) Subject to any provision of Article 133, if any case pending before the Supreme Court involves a serious question of constitutional interpretation, the Chief Justice may direct that the case be heard by a bench as per clause (1). (4) Other arrangements relating to the conduct of the Constitutional Bench shall be as determined by the Supreme Court.

138. Annual Report: (1) The Supreme Court, the Judicial Council and the Judicial Service Commission shall submit their annual reports to the Prime Minister every year and the Prime Minister shall submit such reports to the Federal Parliament through the Prime Minister.

(2) If the Federal Parliament considers it necessary to grant any relief to the Government of Nepal, the Ministry of Law and Justice or the relevant body, after discussing the annual report submitted under clause (1), it may grant relief to the Government of Nepal, the Ministry of Law and Justice or the relevant body.

(3) Other provisions relating to the annual report submitted under clause (1) shall be made by the Federal Parliament.

Law bomojam niuchh.

139. High Court: (1) There shall be a High Court in each province. (2) The High

Court may, if any person obstructs the administration of justice by its own courts or judicial bodies or disobeys an order or decision, take action and punish him in accordance with the federal law. (3) In addition to the Chief Justice, each High Court shall have such number of judges as may be provided

for in the federal law.

140. Appointment and qualifications of the Chief Justice and Judges of the High Court: (1) The Chief Justice shall appoint the Chief Justice and Judges of the High Court on the recommendation of the Judicial Council. (2) A person who has

obtained a Bachelor's degree in Law and has worked as a District Judge for at least five years or a Senior Magistrate having obtained a Bachelor's degree in Law and

A Nepali citizen who has served as a judge for at least ten years or who has served as a judge for at least ten years in the field of law, research or any other field related to law or justice or who has served as a first-class official in the judicial service for at least five years shall be considered eligible for appointment as Chief Justice and Judge of the High Court. (3) The appointment of the Chief Justice and Judges of the High Court

shall be made from among the persons qualified under clause (2) on the basis of the number of cases decided by him in the year and the assessment of the cases decided in the higher courts, whether they have been upheld, annulled or reversed, on the basis of seniority, qualification and level of performance in the case of a person who has worked in a gazetted first class position in the judicial service for at least five years, and on the basis of the assessment of seniority, professional discipline, integrity, professional conduct and contribution made in the field of justice and law in the case of others. (4) If the office of the Chief Justice becomes vacant or if the Chief Justice is unable to perform the duties of his

office for any other reason or is on leave or is unable to attend the High Court due to his departure from the province, the senior-most judge of the High Court shall act as the Acting Chief Justice.

141. ~~Gratuity and allowances of the Chief Justice and Judges: (1) Except as otherwise provided in this~~ Constitution, the remuneration and other allowances of the Chief Justice and Judges of High Courts shall be as per the Federal Law. (2) Notwithstanding anything contained in clause (1), a Chief Justice and Judge of a High Court who has been removed from office by the Judicial Council or who has been convicted by a court for a criminal offence punishable by law shall not be entitled to any gratuity or allowance. However, this provision shall not apply to a case where the Judicial Council has removed him from office on the ground that he is physically or mentally unfit to perform his duties. (3) The remuneration and other terms of service of the Chief Justice or a Judge of a High Court shall not be altered to the detriment of the Chief Justice or a Judge.

However, this arrangement will not apply in cases where a state of emergency has been declared due to extreme economic disruption.

142. ~~Vacancy of the office of Chief Justice or Judge:~~ (1) The office of the Chief Justice or Judge of a High Court shall

become vacant at any time: (a) if he resigns in writing to the Chief Justice, (b) if

he attains the age of sixty-three years, (c) on the basis of his incapacity, bad

conduct, failure to discharge his duties honestly,

misconduct or serious breach of the code of conduct to which he is subject, by the Chief

Justice on the recommendation of the Judicial Council.

(d) If the Chief

Justice, on the recommendation of the Judicial Council, removes the person from office on

the grounds that he is unable to perform his duties due to physical or mental infirmity,

(e) Manaj is sentenced by a court for a criminal offense, including a criminal offense.

If found,

(f) In the event of his death. (2)

Before being removed from office under clause (c) of clause (1), a judge accused of an offence shall be given a reasonable opportunity to present his defence. A judge against whom proceedings have been initiated shall not be entitled to perform the functions of his office until the proceedings have been concluded. (3) The Chief Justice or a

judge who has been removed from office shall not be barred from taking action under the Federal law in respect of an offence committed while in office.

143. ~~Provisions relating to the appointment and removal of the Chief Justice or Judge from any other work:~~ (1) The Chief

~~Justice or Judge~~ of a High Court shall not be appointed to any other post other than that of a Judge. However,

the Government of Nepal, in consultation with the Judicial Council, may, in accordance

with law or for any special purpose, depute a Judge of a High Court to the work of judicial inquiry or

for any other purpose.

He may be assigned to any work of judicial inquiry, investigation or national interest. (2) The Chief

Justice, on the recommendation of the Judicial Council, may transfer a High Court Judge from one High Court Judge to another High Court Judge.

144. Jurisdiction of the High Court: (1) The High Court shall have the power to issue such orders as are necessary and appropriate for the enforcement of any other legal right or for the determination of any legal question involved in any dispute of public interest or for the purpose of giving effect to any fundamental right or remedy provided by this Constitution or where such remedy is found to be inadequate or ineffective. (2) For the purposes of clause (1), the High Court

may issue such orders as are appropriate by way of writ of habeas corpus, injunction, injunction, prohibition, interlocutory injunction, and interlocutory injunction. However, the High Court

shall not interfere with the internal affairs of the Federal Parliament or the Provincial Assembly and the exercise of the special powers exercised by the Federal Parliament or the Provincial Assembly and the punishment imposed in connection therewith, except in cases where the jurisdiction

is limited. (3) The High Court shall have the power to initiate cases, hear appeals and examine the merits in accordance

with the Federal Law. (4) The other powers and procedures of the High Court shall be in accordance with the Federal Law.

145. Case may be referred: (1) If the High Court considers that a case pending in a civil court within its jurisdiction involves a question of provincial law and that it is not necessary to decide the case, it may refer the case to the court of first instance and either decide the entire case or decide only that question and refer the case back to the court of first instance. (2) If, in a case filed in a district court, it sees special

circumstances that the question arises in the judicial proceedings, it may, stating the reasons and grounds, refer the case to the court of first instance.

Accordingly, the High Court may order that the case be transferred from one district of its jurisdiction to another district court for trial.

146. ~~Right to appear as a judge:~~ A person who has retired from service as a judge of a High Court shall be entitled to appear and appear as a judge in any High Court or Supreme Court other than the High Court and the Civil Court in which he served as a judge.

147. ~~Responsibility of the Chief Justice:~~ The Chief Justice shall be responsible for the efficient administration of justice in the High Court and its subordinate courts or other judicial bodies. For that purpose, the Chief Justice may, subject to this Constitution and the Federal Law, give necessary directions to the subordinate courts and judicial bodies.

148. ~~District Court:~~ (1) There shall be a District Court in each district. (2) The local judicial bodies established in accordance with the provincial law shall be subordinate to the District Court. The District Court may inspect and supervise its own judicial bodies and give necessary directions.

149. ~~Appointment, qualifications and remuneration of judges of the District Court and other terms of service:~~ (1) The appointment of judges of the District Court shall be made by the Chief Justice on the recommendation of the Judicial Council. (2) Vacant posts of judges in the District Court shall be filled as follows:-

- (a) Twenty of the vacant posts shall be filled by officers who have obtained a Bachelor of Laws degree and have worked in a Gazetted Second Class position in the Judicial Service for at least three years, based on the assessment of seniority, qualifications and performance,
- (b) Forty of the vacant posts shall be filled by candidates who have obtained a Bachelor of Laws degree and hold a minimum of a Second Class rank in the Judicial Service Gazette. Based on an open practical examination among the officers who have worked for the year,

(c) The remaining forty vacant posts shall be filled on the basis of an open competitive examination from among Nepali citizens who have obtained a Bachelor's degree in Law and have worked as a magistrate for at least eight years, have obtained a Bachelor's degree in Law and have worked as a gazetted officer in the Judicial Service for at least eight years, or have worked as a law professor, investigator or in any other field related to law or justice for at least eight years.

(3) The Judicial Service Commission shall, in accordance with the Federal Law, recommend to the Judicial Council for appointment as District Judges in accordance with the order of merit, after conducting a written and oral practical examination, from among the persons qualified under clauses (b) and (c) of clause (2). (4) The remuneration and other

emoluments of the District Court Judge shall be fixed by the Federal Government.

Law bomojam niuchh.

(5) The District Court Judge shall be entitled to a salary and No other changes shall be made to the terms of service. However, this provision shall not apply in the event of a state of emergency declared due to extreme economic distress.

(6) The office of a District Court Judge shall become vacant in any of the following circumstances:

(a) If he resigns in writing to the Chief Justice, (b) If he attains the age of sixty-three years, (c) If he is removed from office by the Chief Justice on the recommendation of the Judicial Council on the grounds of his incapacity, bad conduct, failure to perform his duties honestly, misconduct or serious breach of the code of conduct to which he is subject,

(d) If the Chief Justice, on the recommendation of the Judicial Council, relieves him from office on the grounds that he is unable to perform his duties due to physical or mental infirmity,

(e) Manaj is sentenced by a court for a criminal offense, including a criminal offense.

If found,

(f) In the event of his death. (7)

Before being removed from office under clause (c) of clause (6), the District Judge charged with an offence shall be given a reasonable opportunity to present his defence. The District Judge against whom proceedings are so commenced shall not be entitled to perform the functions of his office until the proceedings are concluded. (8) The District Judge

who has been removed from office shall not be barred from taking action under the Federal law in respect of any offence committed by him while in office.

150. Provisions relating to the appointment and removal of a District Judge from any other post: (1) A District Judge shall not be appointed to any post other than that of a Judge.

The Government of Nepal, in consultation with the Judicial Council, may depute District Judges to judicial inquiry work or to conduct investigations or deliberations relating to law or justice for any specific period.

(2) The Chief Justice, on the recommendation of the Judicial Council, may transfer a District Judge from one District Court to another District Court.

151. Jurisdiction of the District Court: (1) Unless otherwise provided in the Federal Law, the District Court shall have the power to initiate and dispose of all cases within its jurisdiction, to receive applications for writs of habeas corpus in accordance with the law, to hear appeals in accordance with the law against decisions made by the Executive Body, to hear appeals in accordance with the law against decisions made by the local judicial bodies established in accordance with the provincial law, and to take action and punish anyone who obstructs the administration of justice by itself or its own judges or who disobeys an order or judgment.

(2) Other provisions relating to the jurisdiction and procedure of the District Court shall be made in accordance with federal law.

152. ~~Special Courts:~~ (1) ~~Other~~ special courts, judicial bodies or tribunals may be established and constituted in accordance with federal law to try and decide cases of a specific type and nature other than those mentioned in Article 127. However, no special court, judicial body or tribunal shall

be constituted for any specific case. (2) Cases relating to criminal offences punishable by imprisonment for more than one year shall

not fall within the jurisdiction of any court or special court or military court or tribunal other than a judicial body.

153. ~~Judicial Council:~~ (1) There shall be a Judicial Council to make recommendations or give advice on the appointment, appointment, disciplinary action, dismissal and other matters relating to the administration of justice of judges under this Constitution, which shall consist of the following Chairperson and members:

(a) Chief Justice –President

(b) Federal Minister of Law and Justice (c) –Member

One Senior Judge of the Supreme Court - Member (d) One jurist appointed by the Prime Minister on the recommendation of the Prime Minister (e)

Senior authority or –Member

authority with at least twenty years of experience appointed by the

Prime Minister on the recommendation of the Nepal Bar

Association – Member

(2) The term of office of the member under clauses (d) and (e) of clause (1) shall be four years and his remuneration and facilities shall be the same as that of the Judge of the Supreme Court. (3) The member

under clauses (d) and (e) of clause (1) shall be removed from office on the same basis and with the same procedure as the Judge of the Supreme Court. (4) The Chairperson

and any member of the Judicial Council may study the case related to the complaint received against any Judge and submit a report to the Judicial Council.

(5) If, during the initial investigation of a complaint received against a judge, it is deemed necessary to conduct a detailed investigation by an expert, the Judicial Council may constitute an inquiry committee. (6) In the event of any judge, other than a judge who may

be removed from office by impeachment proceedings under this Constitution, having abused his authority, the Judicial Council may investigate and prosecute in accordance with law. (7) The Judicial Council shall maintain an up-to-date record of the Chief Justice and Judges of the Supreme Court, Chief Justices of High Courts

and persons eligible for appointment to the office of Judges under this Constitution. (8) Other functions, duties and powers of the Judicial Council shall be in accordance with federal law.

154. ~~Judicial Service Commission:~~ (1) The Government of Nepal shall, in accordance with the law, impose departmental

punishment on any employee appointed, promoted, or retained in a gazetted post of the Federal Judicial Service, as per the recommendations of the Judicial Service Commission.

Any person who has not been appointed to a gazetted post in the Federal Government Service on a permanent basis or a person who has not been appointed to a gazetted post in the Federal Judicial Service by a new appointment or a person who has not been appointed to a gazetted post in the Federal Judicial Service shall be eligible for promotion to a gazetted post in the Federal Judicial Service by the Government of Nepal on the recommendation of the Public Service Commission. Explanation: For the purposes of this section, the Public Service Commission shall conduct an open and internal competitive examination for appointment to a gazetted

post in the Federal Judicial Service. (2) The Judicial Service Commission shall consist of the following as

its Chairperson and members:	—President
(a) The Chief Justice (b) The Minister for Federal	—Member
Law and Justice (c) The Senior Judge of the Supreme Court	—Member
(d) The Chairperson of the Public Service Commission	—Member
(e) Excessive in law	—Member

(3) Other functions, duties, powers and procedures of the Judicial Service Commission shall be as per the Federal Law.

Law bomojam niuchh.

155. ~~Arrangements relating to remuneration and benefits of service:~~ Arrangements relating to remuneration, benefits and service of the employees of the Federal Judicial Service shall be made in accordance with the Federal Act.

156. Provisions relating to the Provincial Judicial Service Commission: The formation of the Provincial Judicial Service Commission and the provisions relating to the remuneration, facilities and service of the employees of the Provincial Judicial Service shall be made in accordance with federal law.

नेपाल कानून आयोग

Part-12

Mianayamadhikta

157. Judiciary: (1) There shall be one Judiciary in Nepal. (2) The National

Assembly shall appoint the Judiciary on the advice of the Prime Minister.

The Chief Justice shall hold office for such period as the Prime Minister may determine.

(3) A person who is qualified to be a Judge of the Supreme Court shall be eligible for appointment to the office of Chief Justice. (4) The office of Chief

Justice shall become vacant in any of the following circumstances:

- (a) If he resigns in writing to the Prime Minister and the Prime Minister, (b) If he is removed from office by the Prime Minister on the advice of the Prime Minister,
- (c) If he dies. (5) The

remuneration and other facilities of the Chief Justice shall be as per the Supreme Court Judge. Other provisions of the service of the Chief Justice shall be as per the law.

158. Functions, duties and powers of the Judiciary: (1) The Judiciary shall be the chief legal advisor to the Government of Nepal. It shall be the duty of the Judiciary to advise the Government of Nepal and other authorities designated by the Government of Nepal on constitutional and legal matters. (2) The Judiciary or its

authorized representative shall represent the Government of Nepal in any case involving the interests, property or property of the Government of Nepal. Except as otherwise provided in this Constitution, the Judiciary shall have the power to decide whether or not to prosecute a case on behalf of the Government of Nepal before any other court or judicial body or authority.

(3) The opinion of the Supreme Court shall be sought in the case filed by the Government of Nepal. (4) The Supreme Court may,

upon invitation by the Federal Parliament or any of its committees, attend a meeting and express its opinion on legal issues.

(5) In the performance of his duties, the Chief Justice shall have the right to appear before any court, office or official of Nepal. (6) In addition to clause (2), the Chief Justice shall have the right to perform the following acts in the performance of his duties:

- (a) To defend the Government of Nepal in cases filed by the Government of Nepal as a plaintiff or a defendant,
- (b) To monitor whether the interpretation of the law or the legal principles formulated by the Supreme Court in the case are being implemented or not, (c) To investigate and issue necessary instructions to the relevant authorities to prevent such acts from happening if a complaint is received or information is received that a person who is in the inheritance has not been treated fairly under this Constitution or that such person has not been allowed to meet with him or with a legal professional.

(7) The Magistrate may delegate his functions, duties and powers under this section to the Government of India to be exercised and observed under the authority of the Chief Justice.

(8) In addition to the functions, duties and powers provided for in this Article, other functions, duties and powers of the judiciary shall be exercised in accordance with this Constitution and federal laws.

159. Annual Report: (1) The Supreme Court shall prepare an annual report of the work performed by it in accordance with this Constitution and the federal laws and submit it to the Parliament, and the Parliament shall cause the Prime Minister to submit the same report to the Federal Parliament.

(2) The report to be submitted under clause (1) shall, in addition to other matters, contain a brief description of the opinions given by the Supreme Court on constitutional and legal matters during the year, details of the number of cases heard by the Supreme Court, details of the cases heard by the Supreme Court in cases filed against the Government of Nepal or in cases filed

The Government of Nepal shall have to mention details regarding the reforms to be made in the future and the nature of the crime in the case pending before it.

160. Chief Justice: (1) There shall be one Chief Justice in each province, as per the provisions of the Constitution.

The Chief Justice shall be. (2) The

appointment of the Chief Justice shall be made by the Head of the Province on the advice of the Chief

Minister concerned. The Chief Justice shall hold office for such period as the Chief Minister may determine. (3)

A person who is

qualified to be a Judge of a High Court shall be eligible for appointment to the office of the Chief

Justice. (4) The office of the Chief Justice shall fall vacant in any of

the following circumstances:

(a) Manaj resigns as Chief Minister before the Chief Minister of the State

If given,

(b) If he is relieved of his office by the Chief Minister on the advice of the Chief Minister,

(c) If he dies. (5) The Chief Justice

shall be the chief legal advisor to the Provincial Government and it shall be the duty of the Chief

Justice to advise the Provincial Government or other officers appointed by the Provincial Government on

constitutional and legal matters. (6) The management of the employees under the office

of the Chief Justice shall be done by the Office of the Chief Justice.

(7) The remuneration and other facilities of the Chief Justice shall be the same as those of a High

Court Judge. The functions, duties and powers of the Chief Justice and other provisions of service shall be as

per the laws of the State.

161. Arrangements relating to remuneration, benefits and service: Arrangements relating to remuneration, benefits and

service of other employees working in the government courts and judiciary shall be made in accordance with

the Federal Act.

Part-13

162. Executive Powers

of the Province: (1) The executive powers of the Province shall be vested in this Constitution and the Province Act.

The Provincial Council shall be constituted in accordance with the law.

However, if the Provincial Executive is not established due to the imposition of federal rule, the Provincial Chief shall exercise the executive power of the Province as directed by the Government of Nepal. (2) Subject to this Constitution

and other laws, the system of governance of the Province shall be as follows:

The general direction, control and administration of the Province shall be vested in the Provincial Council. (3)

The executive functions of the Province shall be vested in the Provincial Government. (4) The executive powers of the Province, subject to this Constitution, shall be as set out in Schedule-6,

It will be done as per the list mentioned in Schedule-7 and Schedule-9.

Except as expressly provided in this Constitution and the federal law, the exercise of executive powers by the provincial councils shall be in coordination with the Government of Nepal. (5) The decision or order made in the name of the provincial government under clause (3) and the certification of the relevant authority shall be in accordance with the provincial law.

163. Provisions relating to the Provincial Chief: (1) There shall be a Provincial Chief in each province as the representative of the Government of Nepal.

(2) The National Assembly shall appoint one Provincial Chief for each province. (3) If the National Assembly removes the person from office before the expiry of his term, the other

The term of office of the provincial head shall be five years.

(4) The same person cannot be the Provincial Chief of the same province more than once.

164. Qualifications of the Provincial Head: A person who is qualified to be a Provincial Head is eligible to be elected.

yyyyyy-

(a) Be eligible to be a member of the Federal Parliament, (b)

Have completed the age of twenty-five years,

and (c) Not be disqualified by any law.

165. ~~Vacancy of the office of the Chief of a Province: (1)~~ The office of the Chief of a Province shall be vacant in any state of the country.

The office of the

Chief of a Province shall become vacant: (a) if he resigns in writing

to the Minister, (b) if his term of office expires or if the President removes him from office

before that time,

(c) if he dies. (2) In the event that

the office of the Chief of a Province of a Province is vacant, the President may appoint the Chief of a Province of another Province to perform the functions of that Province until the appointment of the Chief of a Province.

166. ~~Functions, duties and powers of the Provincial Head: (1)~~ The Provincial Head shall exercise the powers and perform the duties conferred upon him or her under this Constitution or the law.

(2) In exercising the powers or carrying out the duties under clause (1), any other work which is expressly provided for in this Constitution or any law to be performed by the Chief of the Province on the advice of any body or officer shall be performed by the Chief of the Province on the advice and approval of the Provincial Council. Such advice and approval shall be submitted to the Chief Minister. (3) Any decision or order made in the name of the Chief

of the Province under clause (2) and

The certification of the relevant authority shall be done in accordance with provincial law.

167. ~~Oath of the Provincial Head:~~ Before assuming his duties, the Provincial Head shall take an oath of office and secrecy before the President in accordance with federal law.

168. ~~Formation of Provincial Council: (1)~~ The Provincial Chief shall appoint the leader of the parliamentary party that has obtained a majority in the Provincial Assembly as the Chief Minister and the Provincial Council shall be constituted under

his chairmanship. (2) In the event that no parliamentary party has obtained a majority in the Provincial Assembly under clause (1), the Provincial Chief shall appoint the member of the Provincial Assembly who can obtain a majority with the support of two or more parties nominated to the Provincial Assembly as the Chief Minister.

(3) If the Chief Minister cannot be appointed as per clause (2) within twenty days of the declaration of the result of the Provincial Assembly, or if the Chief Minister so appointed fails to obtain the vote of confidence as per clause (4), the Provincial Head shall appoint the leader of the parliamentary party having the largest number of members in the Provincial Assembly as the Chief Minister. (4) The Chief Minister appointed as per clause (2) or (3) shall have to

obtain the vote of confidence from the Provincial Assembly within twenty days of being so appointed.

(5) If the Chief Minister appointed under clause (3) fails to obtain a vote of

confidence under clause (4), the Provincial Head shall appoint that member as the Chief Minister if any member of the Provincial Assembly is capable of obtaining a vote of confidence under clause (2). (6) The Chief Minister appointed under clause (5) shall have to obtain a vote of confidence under clause (4). (7) If the Chief Minister appointed under

clause (5) fails to obtain a vote of confidence or if the Chief Minister is not appointed, the Provincial Head, on the advice of the Chief Minister,

shall dissolve the Provincial Assembly and convene another Provincial Assembly within six months to complete the deliberations of the Provincial Assembly.

(8) The procedure for appointing the Chief Minister under this Article shall be completed within twenty-five days of the declaration of the result of the election of the Provincial Assembly held in accordance with this Constitution or of the vacancy of the office of the Chief Minister. (9) The Provincial

Chief, on the advice of the Chief Minister, shall constitute a Provincial Council of Ministers from among the members of the Provincial Assembly, including the Chief Minister, in accordance with the principle of inclusiveness, not exceeding twenty percent of the total number of members of the Provincial Assembly. Explanation: For the purposes of this Part, the term "Minister" shall include Ministers, Ministers of State and

Ministers of State. (10) The Chief Minister and Ministers shall be collectively responsible to the Provincial Assembly and the Ministers shall be individually responsible to the Chief Minister and the Provincial Assembly for the work of their respective ministries.

169. ~~Situations in which the office of the Chief Minister or Minister falls vacant:~~ (1) The office of the Chief Minister shall fall vacant in any case of: (a) If

he resigns in writing to the Chief Minister of the State, (b) If a motion of no confidence is not passed under Article 188 or if a motion of no confidence is passed against him, (c) If he ceases to be a member of the Provincial Assembly, (d) If he dies. (2) The office of a Minister shall fall

vacant in any case of:

(a) if he resigns in writing to the Chief Minister, (b) if the Chief Minister removes him from office, (c) if the office of the Chief Minister falls vacant under clause (a), (b) or (c) of clause (1), (d) if he dies.

(3) If the office of the Chief Minister falls vacant

under clause (1), the Chief Minister of another State

Until a new Council of Ministers is formed, the existing Council of Ministers will conduct its business.

In the event of the death of the Chief Minister, the senior-most minister shall act as Chief Minister until another Chief Minister is appointed.

170. ~~A person who is not a member of the Provincial Assembly may be~~ a Minister: (1) Subject to anything contained in clause (9) of Article 168, the Chief Minister of the State may, on the advice of the Chief Minister, appoint any person who is not a member of the Provincial Assembly to the post of Minister.

(2) The Minister appointed under clause (1) shall be eligible for membership of the Provincial Assembly within six months of taking the oath.

(3) If a person fails to obtain membership of the Provincial Assembly within the period of validity as per clause (2), he shall not be eligible for reappointment as a Minister during the term of the Provincial Assembly for the time being. (4)

Notwithstanding anything contained in clause (1), a person who has been defeated in the election of the Provincial Assembly for the time being shall not be eligible for reappointment as a Minister during the term of that Provincial Assembly as per clause (1).

171. ~~Remuneration and other facilities of the Chief Minister and Ministers:~~ The remuneration and other facilities of the Chief Minister and Ministers shall be as per the Provincial Act. Until such Act is made, it shall be as per the decision of the Provincial Government.

172. ~~Oath:~~ The Chief Minister and Ministers shall take an oath of office and secrecy before the Chief Minister of the Province and the Minister of State and Assistant Minister before the Chief Minister before assuming their duties in accordance with the Provincial Law.

173. ~~Informing the Provincial Chief:~~ The Chief Minister shall inform the Provincial Chief of the
It shall
provide: (a) decisions of the Provincial Council
of Ministers, (b) bills to be introduced in the
Provincial Assembly, (c) other necessary details requested by the Provincial Chief in the cases mentioned
in clauses (a) and (b), and (d) the current
situation of the Province.

174. ~~Conduct of the work of the Provincial Government:~~ (1) The work of the Provincial Government shall be divided and
performed in accordance with the rules approved by the Provincial
Government. (2) The question of whether the rules under clause (1) have been complied with or not shall
not be raised in any court.

Part-14

175. State Legislature:

The State Legislature shall be a unicameral Legislative Assembly.

It will be cloudy.

176. Formation of Provincial Assembly: (1) Each Provincial Assembly shall consist of such number of members as may be prescribed.

Rinchanah:

(a) Members elected to the Legislative Assembly from the concerned Province in the number of times the number of members elected under the system of proportional representation, (b) Sixty percent

of the number of members established under clause (a) shall be elected under the proportional representation system, and the remaining forty percent shall be elected under the proportional representation

system. (2) For the purpose of the representation of members under clause (a) of clause (1), the geographical and

The electoral area will be established in accordance with federal law based on population.

(3) Sixty members of the Provincial Assembly shall be elected by popular vote and forty members shall be elected by proportional representation. (4) The election of members of the Provincial Assembly under clause (3) shall be by

secret ballot on the basis of universal suffrage in accordance with the law. (5) Every Nepali resident within the territory of the Province who has attained the age of eighteen years shall be eligible to vote.

Citizens have the right to vote in any constituency in accordance with the law.

(6) For the election of the Provincial Assembly under the proportional representation system, political parties shall nominate candidates from the closed list of the communities comprising the tribals, tribals, Khas Ayyab, Madhesi, Tharu, Muslims, backward areas and minority communities on the basis of population, as per the federal law. In so nominating candidates, due consideration shall be given to the geographical balance of the concerned province. Explanation: For the purposes of this Part, the term "Khas Ayyab" shall mean the Kshetri, Brahmin, Thakur, Sanyasi (Dashnami) communities.

(7) In accordance with clause (6), a political party may, when fielding candidates, Provision shall be made for the nomination of a person. (8) If the seat of a member falls vacant while the term of office of the Provincial Assembly is more than six months, the seat shall be filled by the same process as that which was filled by the system of voting. (9) Unless otherwise provided in this

Article, each political party nominated to the Provincial Assembly shall have at least one-half of the total number of members elected. If, in accordance with clause (a) of clause (1), one-half of the members elected by a political party are not elected, that political party shall, when electing a member under clause (b) of the same clause, elect a member from its party to the Provincial Assembly, so that at least one-half of the total number of members elected by that party to the Provincial Assembly are elected. (10) Any person who has qualified under Article 178 to be a candidate in a constituency for a member of the Provincial Assembly shall be entitled to be a candidate from any constituency in the Province subject to the law. However, a person shall not be a candidate in more than one constituency at the same time. (11) Other provisions relating to the deliberations of the Provincial Assembly shall be made in accordance with federal law.

177. Term of office of the Provincial Assembly: (1) Unless previously dissolved in accordance with this Constitution,

The term of office of the Provincial Assembly shall be five years.

(2) Notwithstanding anything contained in clause (1), the term of the Provincial Assembly may be extended in accordance with the Provincial Act, not exceeding one year, while a declaration or order of a state of emergency is in force in the relevant Province. (3) The term of the

Provincial Assembly extended in accordance with clause (2) shall automatically terminate six months after the declaration or order of a state of emergency is revoked in the relevant Province.

178. Qualifications for members of the Provincial Assembly: (1) A person who is qualified to be a member of the

Provincial Assembly shall be eligible to be:

(a) Nepali citizen, (b)
resident of the relevant province, (c) at least
twenty-five years of age, (d) not convicted
of any criminal offense, (e) not disqualified by any law, and (f) not holding
any position of profit.

Explanation: For the purposes of this section, "office of profit" means any office of
political office conferred by appointment or nomination, other than any other office
from which remuneration or financial benefits are received from the Government.

(2) If a person

holding a political office conferred by appointment, nomination or appointment is elected to the
office of a member of the Provincial Assembly under this Part, that office shall automatically become vacant
on the date of taking the oath of office.

179. ~~Oath of a member of the Provincial Assembly:~~ Members of the Provincial Assembly shall take an oath in
accordance with provincial law before attending a meeting of the Provincial Assembly or any of its committees
for the first time.

180. ~~Vacancy of a member of the Provincial Assembly:~~ The seat of a member of the Provincial Assembly shall
become vacant in any

case: (a) if he resigns in writing to the Speaker of the Provincial Assembly, (b) if he
ceases to be qualified or if he dies as per Article 178, (c) if the term of the
Provincial Assembly expires or is dissolved, (d) if he is absent from ten
consecutive meetings without giving notice to the Provincial Assembly.

Reema,

(e) If the party from which the member was elected as a candidate declares that the member has
resigned from the party in accordance with federal law, (f) If the member
dies.

181. ~~Decision on disqualification of a member of the Provincial Assembly~~: If a question arises as to whether any

member of the Provincial Assembly is disqualified or has been removed under Article 178, the decision shall be taken by the Constitutional Bench of the Supreme Court.

182. ~~Speaker and Deputy Speaker of the Provincial Assembly~~: (1) The members of the Provincial Assembly shall,

within fifteen days from the commencement of the first session of the Provincial Assembly, elect the Speaker and Deputy Speaker from among

themselves. (2) The appointment under clause (1) shall be made in such a way that one of the Speakers or Deputy Speakers of the Provincial Assembly shall be elected and the Speaker or Deputy Speaker shall be nominated by a different party. In

the event that more than one party is not nominated in each Provincial Assembly or if no candidate is nominated, there shall be no impediment to a member of the same party becoming the Speaker or Deputy Speaker of the Provincial Assembly. (3)

If the office of the Speaker or Deputy Speaker of the Province falls vacant, the members of the Provincial Assembly shall elect from among themselves the Speaker or Deputy Speaker of the Province. (4) In the absence

of the Speaker of the Province, the Deputy Speaker of the Province shall preside over the Provincial Assembly.

(5) In the absence of the Speaker and Deputy Speaker of the Province or in the event of both the offices being vacant, the meeting of the Provincial Assembly shall be presided over by the eldest member of the Provincial Assembly present. (6)

The office of the Speaker or Deputy Speaker of the Province shall become vacant in any of the following circumstances:

(a) If the Member of the Provincial Assembly

ceases to be a member, the Speaker and Deputy Speaker of the

Provincial Assembly who held office at the time of the dissolution of the Provincial Assembly shall hold office until the last day of filing their nominations for the next term of office of the Provincial Assembly. (b) If the

Member resigns,

(c) If a motion to dismiss a person who has not acted in a manner befitting his office is passed by a majority of two-thirds of the total number of members of the Provincial Assembly for the

time being. (7) The meeting to discuss a motion to dismiss a person who has not acted in a manner befitting his office shall be presided over by the Deputy Provincial Assembly Speaker. The Provincial Assembly Speaker shall be entitled to participate and vote in the discussion of such motion.

183. Convening and termination of the session of the Provincial Assembly: (1) The Provincial Chief shall convene a session of the Provincial Assembly within twenty days of the declaration of the result of the meeting held for the Provincial Assembly. Thereafter, the Provincial Chief shall convene other sessions from time to time in accordance with this Constitution.

The interval between the adjournment of one session and the commencement of the next session shall not exceed six months. (2) The

Provincial Head may adjourn a session of the Provincial Assembly. (3) If the

Provincial Head requests in writing by one-fourth of the total number of members of the Provincial Assembly that it is desirable to convene a session or a meeting while the session of the Provincial Assembly is not in session or the meeting is adjourned, the date and time for such session or meeting shall be fixed. The meeting of the Provincial Assembly shall be held on the date and time so fixed.

184. Address by the Provincial Chief: (1) The Provincial Chief may address the meeting of the Provincial Assembly and call upon the members to attend. (2) The Provincial Chief shall address

the meeting of the Provincial Assembly after the adjournment of the Provincial Assembly and after the commencement of the adjournment of each annual session.

185. Quorum of the Provincial Assembly: Except as otherwise provided in this Constitution, no question or proposal shall be presented for decision at a meeting of the Provincial Assembly unless one-fourth of the total number of members is present.

186. Voting in the Provincial Assembly: Any motion submitted for voting in the Provincial Assembly shall be voted on by the members present and voting. The person presiding shall not have the power to vote.

In the event of a tie, the presiding officer shall have a casting vote.

187. Prerogatives of Provincial Assembly: (1) Subject to this Constitution, there shall be complete freedom of speech in the Provincial Assembly and no action shall be taken in any court of law against any member of the Provincial Assembly for any word expressed or any statement made in the Provincial Assembly. (2) Subject to this Constitution,

the Provincial Assembly shall have full power to transact and decide its business and the Provincial Assembly alone shall have the power to decide whether any business of the Provincial Assembly is lawful or not. No question shall be raised in any court of law in this regard. (3) No criticism shall be made of any action of the Provincial Assembly, raising

doubts as to its good faith, and no publication or broadcast of any kind shall be made which knowingly or falsely implies any false or misleading meaning in relation to any matter spoken by any member.

(4) The provisions of clauses (1) and (3) shall apply to any person other than a member of the Provincial Assembly who is entitled to participate in the meeting of the Provincial Assembly. (5) No writing, statement, motion or action under the authority of the Provincial Assembly shall be considered as a false or misleading statement.

No person shall be liable to any action in court for any matter published. Explanation: For the purposes of this clause and clauses (1), (2), (3) and (4), the expression "Provincial Assembly" means a meeting of the Provincial Assembly. (6) No member of the Provincial Assembly shall be arrested

after the notice of the meeting has been issued and until the end of the meeting. But nothing in this clause shall be deemed to prevent the arrest of any member in accordance

with law in any criminal case. If any member is so arrested, the arresting officer shall first inform the person presiding over the Provincial Assembly. (7) The decision of the Provincial Assembly shall be deemed to be a decision of the Provincial Assembly and the Provincial Assembly alone shall have the power to decide whether or not any decision of the Provincial Assembly has been made.

(8) If any person disobeys the Provincial Assembly, the person presiding over that Assembly may, by decision of the Provincial Assembly, warn such person, give him a warning, or impose imprisonment for a term not exceeding three months or a fine not exceeding ten thousand rupees, and such fine shall be recovered from the government balance.

If such person apologizes to the Provincial Assembly, the
The House may pardon or reduce the punishment imposed or imposed on any person.

(9) Other provisions relating to the prerogatives of the Provincial Assembly shall be made in accordance with the
Provincial Law.

188. ~~Provisions relating to the motion of confidence and no-confidence motion:~~ (1) The Chief Minister may, at any time, if he considers it necessary or appropriate to declare that he has the confidence of the Provincial Assembly, move a motion before the Provincial Assembly for a vote of confidence.

(2) If the party nominated by the Chief Minister is divided or if the party participating in the Provincial Government withdraws its support, the Chief Minister shall, within twenty days, move a motion of no confidence before the Provincial Assembly. (3)

If the motion submitted under clauses (1) and (2) is not passed by the total number of members then present in the Provincial Assembly, the Chief Minister shall be relieved of his office. (4)
One-fourth of the total

members then present in the Provincial Assembly may move a motion of no confidence in the Chief Minister in writing stating that the Provincial Assembly has no confidence in the Chief Minister.
No motion for a new term of

office shall be tabled for a period of two years from the date of appointment of the Chief Minister and for a period of one year from the date of failure of the motion for a new term of office. (5)
When a motion

for a new term of office is tabled under clause (4), the name of the member proposed for the Chief Minister shall be mentioned. (6) If a motion for a new term of
office tabled under clause (4) is carried by a majority of the total number of members then present in the Provincial Assembly, the Chief Minister shall be relieved of his office.

(7) If the office of Chief Minister falls vacant after the proposal of the House of Representatives is passed in accordance with clause (6), the Provincial Chief Minister shall appoint the member of the Provincial Assembly proposed in accordance with clause (5) as the Chief Minister in accordance with Article 168.

189. Ministers, Ministers of State and Assistant Ministers to participate in meetings of the Provincial Assembly: Ministers, Ministers of

State and Assistant Ministers shall be entitled to attend and participate in the proceedings and discussions of the Provincial Assembly and its committees. No Minister, Minister of State or

Assistant Minister who is not a member of the Provincial Assembly shall be entitled to speak in a meeting of the Provincial Assembly or its committees, and no Minister, Minister of State or Assistant Minister who is a member of the Provincial Assembly shall be entitled to speak in a meeting of a committee other than the one of which he is a member.

190. Punishment for unauthorized presence or attendance in the Provincial Assembly: If any person who has not taken the oath or is

not a member of the Provincial Assembly under Article 179, attends or attends a meeting of the Provincial Assembly or a committee thereof in lieu of a member, he shall, by order of the person presiding over such meeting, be fined five thousand rupees for each such attendance or attendance, and such fine shall be recovered from the Government dues.

191. Prohibition on Bias: No discussion shall be held in the Provincial Assembly regarding any matter that may have a positive impact

on the administration of justice in relation to a case pending in any court of Nepal, or regarding the judicial work performed by a judge in a matter of judicial discipline.

192. Conduct of business of the Provincial Assembly in the event of a vacancy in the seat of a member: The Provincial Assembly may

conduct its business in the event of a vacancy in the seat of any member of the Provincial Assembly, and if it is later discovered that any person who is not entitled to participate in the proceedings of the Provincial Assembly has participated, the business already completed shall not be invalidated.

193. Provincial Assembly may form committees: The Provincial Assembly may, as required, form committees or special committees to

organize the working system of the Provincial Assembly.

194. Procedures for the conduct of business of the Provincial Assembly: The Provincial Assembly shall make rules for the conduct of its business, for the maintenance of order in its meetings and for regulating the formation, work, proceedings and other matters relating to the committees. Until such rules are made, the Provincial Assembly shall regulate its own procedures.

195. Secretary and Secretariat of the Provincial Assembly: (1) The Provincial Chief shall appoint the Secretary of the Provincial Assembly on the advice of the Speaker of the Provincial Assembly. (2) There shall be a Secretariat for the conduct and management of the business of the Provincial Assembly. The establishment of such Secretariat and other arrangements relating thereto shall be made in accordance with the Provincial Law. (3) The qualifications, functions, duties, powers and other provisions of the Secretary of the Provincial Assembly shall be as per the Provincial Law.

196. Remuneration: The remuneration and facilities of the Speaker, Deputy Speaker and members of the Provincial Assembly shall be as per the Provincial Law. Until such law is made, it shall be as per the decision of the Provincial Government.

Part-15

Provincial Administrative

Procedure 197. Administrative Powers of the Provincial Assembly: The administrative powers of the Provincial Assembly shall be as mentioned in the list in Schedule-6, Schedule-7 and Schedule-9 respectively.

198. Procedure for introducing a Bill in the Provincial Assembly: (1) Subject to this Constitution, a Bill may be introduced in the Provincial Assembly. (2) A

Bill relating to finance and public security shall be introduced only as a Government Bill. (3)

“Or Bill” means a Bill relating to

any of the following matters: (a) a bill to impose, collect, repeal, exempt, alter or regulate the tax system in a province, (b) a bill

to protect the provincial treasury or any other provincial government treasury, to raise money in that treasury, to appropriate or spend

any money from that treasury, or to reduce, increase or repeal the amount sought to be appropriated or spent,

(c) To make arrangements for the provincial government to provide guarantees for obtaining loans or to amend the law relating to financial obligations assumed or to be assumed by the provincial government,

(d) To deposit all types of revenue, loan recovery and grant amount received by the Provincial Government, to invest and audit the accounts of the Provincial Government, or (e) to perform any other function directly related to clauses (a), (b), (c) or (d).

Sperm.

But no Bill shall be considered as a Bill merely because it provides for the imposition of any fee, charge, fee or levy, such as a license fee, application fee, renewal fee or any other fee, or for the imposition of any fine or imprisonment. (4) If a question arises as to whether a Bill is a Bill or not, the decision of the Speaker of the Provincial Assembly shall be final.

199. Procedure for passing a bill: (1) For the purpose of verification of a bill passed by the Provincial Assembly shall be presented to the Provincial

Chief. (2) If the session of the Provincial Assembly ends while a Bill is under consideration, the Bill may be taken up in the next session. However, if a Bill is dissolved while the Provincial Assembly is under consideration, If the term of that House expires, the Bill will lapse.

200. Bill may be passed: The bill may be passed with the approval of the Provincial Assembly by the bill promulgator.

2019. Certification of Bills: (1) A bill submitted to the Chief of the Province for certification pursuant to Article 199 shall be certified by the Speaker of the Provincial Assembly and presented.

The Provincial Assembly Speaker shall certify that the bill is a bill. (2) The Provincial Assembly Speaker

shall certify the bill submitted to the Provincial Chief for certification in accordance with this Article within fifteen days and shall notify the Provincial Assembly thereof as soon as possible.

(3) If the Chief of the Province feels that it is necessary to reconsider the Bill submitted for certification or any other Bill, he may send a message to the Provincial Assembly within fifteen days of the submission of the Bill.

(4) If the Provincial Chief submits a bill to the Provincial Assembly in accordance with clause (3), the Provincial Assembly shall reconsider the bill and resubmit it in its original form or with amendments, and the Provincial Chief shall certify it within fifteen days of its submission. (5) After certification by the Provincial

Chief, the bill shall become an Act.

202. Ordinances: (1) If, during the session of the Provincial Assembly, it is necessary to take any urgent action in any other situation, the Provincial Chief Minister may, on the advice of the Provincial Council, issue an Ordinance. (2) An Ordinance

issued under clause (1) shall be deemed to be an Act. Provided that every such Ordinance,—

(a) It shall be presented to the Provincial Assembly meeting held after its issuance and shall automatically become invalid if the Provincial Assembly does not approve it, (b) It may be revoked by the Provincial Chief at any time, and (c) If not revoked or revoked under clause (a) or (b), it shall automatically become invalid sixty days after the meeting of the Provincial Assembly.

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Part-16

Provincial Financial Procedure

203. ~~No Taxation or Loan: (1) No tax shall be levied or collected~~ in any province except as provided by law. (2) No provincial government shall borrow or grant

any loan except as provided by federal law.

204. ~~Provincial Government: All types~~ of revenue received by the Provincial Government other than the Guthi amount, all debts received from the revenue, all funds received for the recovery of any loan given under the authority of the Provincial Act and grants and loans received from the Government of Nepal shall, unless otherwise provided by the Provincial Act, be the income of a Provincial Government body which shall be called the Provincial Government.

205. Expenditure from Provincial Government Fund or Provincial Government Fund: No amount shall be recovered from the

Provincial Government Fund or any other Provincial Government Fund except the amount due: (a) Amounts

charged to the Provincial Government Fund, (b) Expenditures made

under the Appropriation Act, (c) Expenditures made under the

Act in the form of a bill while the Appropriation Bill is under consideration, or (d) Expenditures made under the

Appropriation Act in special

circumstances, which contain only a description of the expenditure.

Nirukam. The

state emergency case is registered under Section 212 of the Prevention of Corruption Act.

206. Expenditures on the Provincial Government: Expenditures related to the affairs of the State shall be charged to the Provincial

Government and the approval of the Provincial Assembly shall not be required for such expenditure: (a) Remuneration

and

facilities to be paid to the Provincial Speaker and the Provincial Deputy Speaker.

Amount,

(b) Remuneration to be paid to the Chairperson and members of the Provincial Public Service Commission and

Amount of facilities,

(c) Expenses related to debt obligations of the provincial government,

(d) Decision or order passed by the court against the provincial government.

Panerakum, and

(e) The provincial law has provided that the provincial government shall bear the expenses.

Amount.

207. Estimates of Revenue and Expenditure: (1) The Minister of Finance of a Province may present an annual estimate to the Provincial Assembly for each financial year, setting out the following: (a) Estimates of revenue, (b) Amounts required to be incurred in connection with the expenditure of the Province, and (c) Amounts required to be incurred in accordance with the Provincial Appropriation Act. (2) When presenting the annual estimate under clause (1), a statement of the amount of expenditure allocated to each Ministry in the previous financial year and whether the expenditure targets have been achieved or not shall be submitted.

208. Provincial Appropriation Act: The amount to be spent in accordance with the Provincial Appropriation Act shall be mentioned in the Appropriation Bill, with the title.

209. Supplementary Estimates: (1) In any financial year, the Minister of Finance of a Province may present a supplementary estimate to the Provincial Assembly if the following circumstances arise: (a) the amount authorized to be spent on any service for the current financial year under the Provincial Appropriation Act is insufficient or if it is necessary to spend on a new service not authorized by the Provincial Appropriation Act for that year, or (b) if the expenditure exceeds the amount authorized to be spent on the current financial year under the Provincial Appropriation Act.

(2) The amount included in the Supplementary Estimates shall be included in the Supplementary Appropriation Bill, with reference to the relevant heading.

210. Provisional Expenditure: (1) Unless otherwise provided in this Part, any part of the estimated expenditure for the financial year may be spent as a provision in accordance with the Provincial Act while the Provincial Appropriation Bill is under consideration.

(2) No Provincial Appropriation Bill shall be introduced until the estimates of revenue and expenditure have been submitted in accordance with Article 2070 and the amount of the appropriation shall not exceed one-half of the estimated expenditure for

the financial year. (3) The amount spent in accordance with the Provincial Appropriation Act shall be included in the Provincial Appropriation Bill.

211. Borrowing Expenditure: Notwithstanding anything contained elsewhere in this Part, if, due to a state of emergency in a State due to natural causes or other causes, it is impracticable or undesirable from the point of view of the security or finances of the State to disclose the details required under clause (1) of Article 2070, the Finance Minister of the State may introduce a Borrowing Expenditure Bill containing only the details of expenditure before the State Assembly.

212. Provincial Emergency Fund: (1) A fund may be established by the Provincial Act to be called the Provincial Emergency Fund and such sum as may be determined from time to time by the Provincial Act shall be deposited in that fund. (2) The fund referred to

in clause (1) shall be under the control of the Provincial Government.

The provincial government may use that fund to cover emergency expenses.

(3) The amount of expenditure under clause (2) shall be investigated as soon as possible in accordance with the Provincial Act.

213. Act relating to financial procedures: The amount allocated in accordance with the provincial act shall be transferred from one head to another and other arrangements relating to financial procedures shall be made in accordance with the provincial act.

Part 17

Local Executive 214.

Executive Powers of Local Authorities: (1) The executive power of local authorities shall be vested in the village

executive or the municipal executive, subject to this Constitution and the federal laws. (2) The local executive power

shall be as specified in the list in Schedule-8 and Schedule-9. (3) The village executive and the municipal executive shall be responsible for

the general direction, control and administration of the administration of the village and the municipal governments, subject to this Constitution and other laws.

(4) The executive functions of the Village Council and the Municipality shall be performed in the name of the Village Council and the

Municipality. (5) The decisions or orders made in the name of the Village Council and the Municipality pursuant to clause (4) and the certification of the relevant authority shall be performed in accordance with local law.

215. Arrangements regarding the Chairperson and Vice-Chairperson of the Village Executive Committee: (1) There shall be one Chairperson

of the Village Executive Committee in each Village Executive Committee. The Village Executive Committee shall be formed under the

chairmanship of the Chairman. (2) There shall be one Vice-Chairperson in the Village Executive Committee as per clause (1), each. The Chairperson of the Council shall be elected by the members and the members elected by the members in accordance with clause (4).

(3) The election of the Chairperson and the Vice-Chairperson shall be by secret ballot, one person per village council, by the people of the area concerned. Explanation: For the purposes of this section, the expression "Chairperson and Vice-

Chairperson" shall mean the Chairperson and Vice-Chairperson of the Village Council. (4) Within fifteen days of the receipt of the final result of the election of the

Village Council under section 222, the members of the Village Council shall elect four members elected from among themselves and a person qualified under clause (5) or

Two members elected by the Village Council from the minority community shall be members of the Village Executive Committee. (5) A person

who is qualified to be elected to the office of Chairperson, Vice-Chairperson, Senior Chairperson and member shall be: (a) a Nepali citizen,
(b) has completed twenty-one years of age, (c) has been included in the electoral roll of the Village Council, and (d) is not disqualified by any law.

(6) The term of office of the Chairperson, Vice-Chairperson, Senior Chairperson and member shall be five years for the elected members. (7) A

person who has been elected to the position of Chairperson for two terms shall not be eligible to be a candidate in the election of the Village Municipality. (8) The positions

of Chairperson, Vice-Chairperson, Senior Chairperson and member shall become vacant in any of the following circumstances: (a)

The Chairperson shall submit a written request to the Vice-Chairperson and the Vice-Chairperson to the Chairperson.

(b) If his/her term of office expires, (c) If he/she dies. (9) If the office of the Chairperson or Vice-

Chairperson falls vacant in accordance with clause (7) while the term of office of the Chairperson or Vice-Chairperson is more than one year, the vacant office shall be filled by a by-election for the remaining term.

~~216. Arrangements relating to the Chief and Deputy Chief of the Municipal Executive:~~ (1) There shall be one Chief of the Municipal Executive in each municipality. The Municipal Executive shall be constituted under the

chairmanship of the Mayor. (2) In accordance with clause (1), there shall be one Deputy Chief in each municipality,

The Chairperson of the Council shall be elected by the members and the members elected by the members in accordance with clause (4).

(3) The election of the Mayor and Deputy Mayor shall be conducted by a secret ballot system, conducted on a one-to-one basis by the voters within the relevant municipal area.

~~Explanation.~~ For the purposes of this section, the words "Chief and Deputy Chief" mean the Chief and Deputy Chief of the Municipal Executive. (4) Within fifteen days of the date of receipt

of the final decision of the Municipal Assembly under section 223, the members of the Municipal Assembly shall elect five independent members elected from among themselves and three members elected by the Municipal Assembly from the eligible caste or minority community under clause (5) as members of the Municipal Executive. (5) A person who is eligible to be elected to the office of Mayor, Deputy Mayor, Chairperson and Member shall be: (a) a Nepali citizen, (b) has completed twenty-one years of age, (c) has

his/her name included in the electoral roll of the Municipality, and (d) is not disqualified by any law.

(6) The term of office of the Mayor, Deputy Mayor, Mayor Chairperson and member shall be five years for the elected members. (7) A

person who has been elected to the office of Mayor for two terms shall not be eligible to be a candidate in the municipal elections. (8) The office of Mayor, Deputy

Mayor, Mayor Chairperson and member shall become vacant in any of the following circumstances:

- (a) If the Chief resigns in writing to the Deputy Chief and the Deputy Chief resigns in writing to the Chief, (b) If his/her term of office expires, (c) If his/her death occurs.

- (9) If the office of the Chief or Deputy

Chief falls vacant in accordance with clause (8) while the term of office of the Chief or Deputy Chief is more than one year, the vacant office shall be filled by a by-election for the remaining term.

217. ~~Judicial Committee:~~ (1) In order to resolve disputes within its jurisdiction in accordance with the law, the Rural Municipality or Municipality shall establish a Judicial Committee under the coordination of the Vice-Chairman in each Rural Municipality and

There shall be a three-member judicial committee under the coordination of the Deputy Mayor in each municipality. (2)

The judicial

committee under clause (1) shall consist of members from the Village Assembly or the Municipal Assembly.

There will be two members elected from among themselves.

218. Conduct of work of the Village Executive and the Municipal Executive: The work of the Village Executive or the Municipal

Executive shall be divided and performed in accordance with the rules and regulations approved by the Village

Executive and the Municipal Executive.

219. Other provisions relating to the functioning of local authorities: Other provisions relating to the functioning of local

authorities other than those provided for in this Part shall be made in accordance with federal law, subject to this

Constitution.

220. District Assembly and District Joint Assembly: (1) The Village Panchayats of the District and

A district assembly will be formed to coordinate among the municipal councils.

(2) The District Assembly shall have as its members the Chairperson and Vice-Chairperson of the Village Executive Committee and the Head and Deputy Head of the Municipal Executive Committee within the district. The first meeting of the District Assembly shall be held within twenty days of the receipt of the final result of the deliberations of the Village

Assembly and the Municipal Assembly. (3) The District Assembly shall appoint a District Coordination Committee consisting of one Chief, one Deputy Chief, at least three members and at least one member of the community or minority community and not more than nine members. The District Coordination Committee shall perform all the functions assigned to it by the District Assembly. (4) A

member of the Village Assembly or Municipal Assembly within the concerned district shall be eligible to be a candidate for the post of Chief, Deputy Chief or member of the District Coordination Committee. If the office of the Chief, Deputy Chief or member of the District Coordination Committee is vacant, the office of the member of the Village Council or the Municipal Council of that person shall automatically become

vacant. (5) The office of the Chief, Deputy Chief and member of the District Coordination Committee shall be for a period of five years from the date of

the vacancy. (6) The office of the Chief, Deputy Chief or member of the District Coordination Committee shall become vacant in any of the following circumstances:-

(a) If the Chief resigns in writing to the Deputy Chief and the Deputy Chief or a member resigns in writing to the Chief,

(b) If his term of office expires, (c) If he dies.

(7) The functions, duties and

powers of the District Assembly shall be as follows:-

(a) To coordinate between the village councils and municipalities within the

district, (b) To monitor and maintain a balance in development and human resource related work,

(c) To coordinate between the federal and provincial government offices in the district and the village councils and

municipalities, (d) To perform other functions as per provincial

laws. (8) Conducting the District Assembly, facilities to be provided to the members of the District Coordination Com

And other arrangements related to the District Assembly are as per the State Law.

Part-18

Local Government 221.

Administrative Powers of Local Authorities: (1) Subject to this Constitution, the administrative powers of local authorities shall be vested in the Village Assembly and the Municipal Assembly.

(2) The administrative powers of the Village Assembly and the Municipal Assembly shall be as mentioned in the list in Schedule-8 and Schedule-9 respectively.

222. Formation of Village Assembly: (1) There shall be a Village Assembly in each Village Administration.

(2) The Village Council under clause (1) shall consist of the Chairperson and Vice-Chairperson of the Village Executive, the Village Chairperson and four members elected from each village and the members of the Village Executive elected from the religious or minority community under clause (4) of Article 215. (3) At least two representatives of the

community shall be represented from each village in the Village Council formed under clause (1). (4) In accordance with the federal law, a Village

Committee consisting of a Village Chairperson and four members shall be formed in each village in the Village Municipality. The election of the Village Chairperson and the Village Members shall be made in accordance with the system of district election.

(5) A person who has completed the age of eighteen years and whose name is included in the candidate list of the Village Municipality shall have the right to contest as provided in the Federal Law. (6) A person who is eligible to contest

shall be eligible to contest as a candidate for the post of member of the Village Sabha: (a) A Nepali citizen, (b) Who has completed the

age of twenty-one years, (c)

Who has included the name in the candidate list

of the Village Municipality, and (d) Who is not disqualified by any law.

(7) The resolutions of the Village Assembly and other related provisions shall be made in accordance with federal law.

223. Formation of Municipal Assembly: (1) There shall be a Municipal Assembly in each Municipality.

(2) The Municipal Council shall consist of the Mayor and Deputy Mayor of the Municipal Executive Council, the Mayor and four members elected from each ward, and the members of the Municipal Executive Council shall be elected from the religious or minority communities in accordance with clause (4) of Article 216. (3) At least two representatives from

each ward shall be nominated in the Municipal Council formed in accordance with clause (1). (4) In accordance with the federal law, a Municipal Council consisting

of a Mayor and four members shall be formed in each ward in the Municipality. The election of the Mayor and the Mayor shall be made in accordance with the system of district election.

(5) A person who has completed the age of eighteen years and whose name is on the municipal register The person who is included is entitled to vote in accordance with federal law.

(6) A person who is eligible to be a candidate for the office of a member of the Municipal Council shall be eligible to be a candidate:

(a) A Nepali citizen, (b) Having

completed the age of twenty-one years, (c)

Having his name included in the electoral roll of the Municipality, and (d) Not being

disqualified by any law.

(7) The resolutions of the Municipal Assembly and other related provisions shall be made in accordance with federal law.

224. Chairperson and Vice-Chairperson of the Village Assembly and Municipal Assembly: The Chairperson and Vice-Chairperson of the Village Executive

Committee and the Head and Deputy Headperson of the Municipal Executive Committee shall perform their duties as the ex-officio Chairperson and Vice-Chairperson of the Village Assembly and Municipal Assembly, respectively.

225. Term of office of Village Assembly and Town Assembly: The term of office of the Village Assembly and Town Assembly shall

be five years from the date of its appointment. The term of office of the next Village Assembly and Town Assembly shall be completed within the month in which that term has expired.

226. Power to make laws: (1) The Village Assembly and the Municipal Assembly may make necessary laws in the matters specified in the list in Schedule-8 and Schedule-9.

(2) The process of making laws under clause (1) shall be in accordance with provincial laws.

227. Other provisions relating to village councils and municipal councils: The conduct of village councils and municipal councils, the procedure of meetings, the formation of committees, the status of vacancies of members, the facilities available to members of village councils and municipal councils, and other provisions relating to the employees and offices of village councils and municipalities shall be made in accordance with provincial laws.

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Part-19

Local Economic Procedures

228. No tax may be levied or loans may be taken: (1) No local tax may be levied, collected or loans may be taken except in accordance with the law.

(2) Local governments may, within their jurisdiction, enact laws and impose taxes to promote national economic policy, the provision of goods and services, the capital and labor markets, and to promote the interests of neighboring provinces or local governments.

229. Local Revenue Board: (1) There shall be a Local Revenue Board in every Rural Municipality and Municipality under the Local Government. In that board, all types of revenue received by the Rural Municipality or Municipality, grants received from the Government of Nepal and the Provincial Government, loans taken by the Rural Municipality or Municipality and income received from other sources shall be collected. (2) The expenses to be incurred by the Local Revenue Board under clause (1) shall be The relevant arrangements are as per local law.

230. Estimates of revenue and expenditure of village councils and municipalities: (1) The village councils and municipalities shall, subject to this Constitution, submit estimates of revenue and expenditure for each financial year to the village assembly or the municipal assembly in accordance with local laws and have them passed. (2) If, in accordance with clause (1), the village councils or municipalities have to submit estimates of revenue and expenditure and prepare a deficit budget, they shall submit a proposal for the sources of making up the deficit in accordance with federal and provincial laws.

Part-20

Interrelationship between the Union, Provinces

and Local Governments 231. Administrative interrelationship between the Union and Provinces: (1) Federal

laws may be made to apply throughout Nepal or, as necessary, to any part of Nepal.

(2) Provincial laws may be made applicable to the entire province or, as the case may be, to any area of the province. (3) If two or

more provinces request the Government of Nepal to make a law on any matter mentioned in Schedule-6, the Federal Parliament may make the necessary law. That law shall be applicable only to the province concerned.

232. Relationship between the Union, Provinces and Local Governments: (1) The relationship between the Union, Provinces

and Local Governments shall be based on the principles of sovereignty, democracy and coordination.

(2) The Government of Nepal may, in the case of inter-provincial disputes and in the case of coordination between the provinces, give necessary directions to the Provincial Councils in accordance with this Constitution and the federal law, and the Provincial Councils concerned shall be bound to comply

with such directions. (3) If any act is committed in any province that seriously affects the sovereignty, territorial integrity, sovereignty or independence of Nepal, the President may, as necessary, notify the Provincial Councils and the Provincial Assembly, suspend or dissolve them for a maximum period of six months. (4) In case of suspension or dissolution of any

Provincial Council of Ministers and Provincial Assembly pursuant to clause (3), such action shall be subject to approval by the entire number of members of the Federal Parliament then in session within twenty-five days.

(5) The act of dissolution made under clause (3) shall be passed by the Federal Parliament. If approved, the provincial assembly will vote on the bill within six months in that province.

But if the Federal Parliament does not approve such suspension or dissolution, the matter shall be automatically considered.

(6) If the suspension made under clause (3) is approved under clause (4), the Federal Government shall continue in that Province for the duration of such suspension and until the Provincial Assembly approves it under clause (5).

(7) While the federal government is in force, the Federal Parliament may make laws on the matters listed in Schedule-6. Such laws shall remain in force until the Provincial Assembly makes another law and repeals them. (8) The Government of Nepal, itself or through the Provincial

Government, may provide necessary assistance and give directions to the village executive or the municipal executive in accordance with this Constitution and the federal law. It shall be the duty of the village executive or the municipal executive to comply with such directions.

233. Inter-Province Relations: (1) A province shall cooperate in the implementation of the legal system or judicial and administrative decisions or orders of another province.

(2) A province may exchange information with another province on matters of common interest, concern and business, consult, coordinate with each other regarding their work and legislation, and expand mutual cooperation.

(3) A province shall provide equal protection, treatment and facilities to the citizens of another province in accordance with the laws of its province.

234. Inter-Province Council: (1) Political relations arising between the Union and the provinces and between provinces.

To resolve disputes, there shall be a Provincial Council consisting of: (a) the Prime Minister;

(b) the Home Minister	– Chairman
of the Government of Nepal; (c) the	– Member
Finance Minister of the Government of	– Member
Nepal; (d) the Chief Minister of the concerned	– Member

Province. (2) The Provincial Council shall meet as required. (3) The Provincial

Council may invite to its meetings the Minister of the Government of Nepal and the Minister of the concerned Province and experts concerned with the subject of the dispute. (4) The procedure for the meeting of the

Provincial Council shall be as determined by the Council itself.

235. Coordination between the Union, Provinces and Local Governments: (1) The Federal Parliament shall make necessary laws to maintain coordination between the Union, Provinces and Local Governments.

(2) To maintain coordination between the provinces, rural municipalities or municipalities and in case any political dispute arises, the Provincial Assembly may resolve such dispute by coordinating with the relevant rural municipalities, municipalities and district coordination committees.

(3) The procedure and procedure for resolving disputes under sub-clause (2) shall be as per the Province.

Law bomojam niuchh.

236. ~~Inter-provincial Trade:~~ Except as otherwise provided in this Constitution, no person shall be permitted to impose any tax, fee, duty or charge or to discriminate in the supply or supply of goods or services from one province or local authority to another province or local authority or to impose any restriction on the supply or supply of goods or services within the territory of any province or local authority.

237. Jurisdiction of Constitutional Bench of Supreme Court not to be affected: Nothing in this Part shall affect the jurisdiction of the Constitutional Bench of the Supreme Court under Article 137.

Part-21

~~Commission for the Investigation of Abuse of~~

~~Power 238. Commission for the Investigation of Abuse of~~ Power: (1) There shall be a Commission for the Investigation of Abuse of Power in Nepal consisting of a Chief Commissioner and four other Commissioners. The Chief Commissioner shall act as the Chairperson of the Commission for the Investigation of Abuse of Power.

(2) The National Assembly shall appoint the Chief Commissioner and the Commissioners on the recommendation of

the Constitutional Council. (3) The office of the Chief Commissioner and the Commissioners shall be for a period of six years from the date of appointment. (4) Notwithstanding anything contained in clause (3), the office of the Chief Commissioner or the Commissioner

shall become vacant in any of the following circumstances: (a) on

his resignation in writing to the National Assembly,

(b) on his attaining the age of sixty-five years, (c) on the filing of an indictment against him under section 101.

If so,

(d) If the National Assembly, on the recommendation of the Constitutional Council, finds him incapable of performing his duties while in service due to physical or mental infirmity, is relieved of his office; (e) If

he dies. (5) The Chief Commissioner

and the Commissioner appointed under clause (2) shall not be eligible for reappointment. Every Commissioner shall

be eligible for appointment to the post of Chief Commissioner and if such Commissioner is appointed to the post of Chief Commissioner, his term of office shall be reckoned as including the period of his term as Commissioner.

(6) A person who is qualified to be appointed as the Chief Commissioner or Commissioner of the Commission for the Investigation of Abuse of Power shall be eligible for appointment

if: (a) he has obtained a bachelor's degree from a recognized university, (b) he is

not a member of any political party at the time of appointment, (c) he has worked in

the field of accounting, finance, engineering, law, development or research for at least twenty

years and has acquired experience and knowledge, (d) he has completed

the age of sixty-five years, and

(e) Having high professional character.

(7) The remuneration and service of the Chief Commissioner and the Commissioners shall be as per the Federal Law. The remuneration and service of the Chief Commissioner and the Commissioners shall not be changed to the detriment of them while they are in office.

However, this provision shall not apply in the event of a state of emergency declared due to extreme economic distress.

(8) A person who has been appointed as the Chief Commissioner or the Commissioner shall not be eligible for appointment to any other

government service. However, nothing in this clause shall be deemed to constitute a bar to appointment to any political post or to any post for the purpose of investigating, investigating or investigating any matter or for the purpose of studying or investigating any matter and submitting opinions, opinions or recommendations.

239. ~~Functions, duties and powers of the Commission for the Investigation of Abuse of Authority:~~ (1) The

Commission for the Investigation of Abuse of Authority may, in accordance with law, conduct or cause to be conducted an investigation into any case of abuse of authority by a person holding a public office. However,

this clause shall not apply to the cases of officials for whom separate provisions are made in this Constitution and to the cases of officials for whom separate special provisions

are made by other laws. (2) A person who is removed from office after an impeachment motion is filed under Article 101, a judge removed from office by the Judicial Council and a person who has taken action under the Military Act may, after his or her removal from office, be investigated or caused to be investigated

in accordance with federal law. (3) If, as a result of an investigation under clause (1) or (2), it is found that any person holding a public office has committed any act that is considered an offence under the law, the Commission for the Investigation of Abuse of Authority may file a case against that person and any other person involved in the offence in a court of law having jurisdiction over the matter. (4) If, as a result of

an investigation under clause (1) or (2), the act of a person holding a public office falls within the jurisdiction of another officer or body,

If the nature of the matter is such, the Commission for the Investigation of Abuse of Power may, in writing, send a request to the relevant officer or body for necessary action.

(5) The Commission for the Investigation of Abuse of Power may delegate any of its functions, duties and powers to conduct investigations and prosecute cases to the Chief Commissioner, any Commissioner or any officer or employee of the Government of Nepal, subject to the exercise and observance of the said authority.

(6) Other functions, duties, powers and procedures of the Commission for the Investigation of Abuse of Power shall be in accordance with federal law.

Part-22

Chief Auditor

240. ~~Auditor General~~ (1) There shall be one Auditor General in Nepal. (2) The National Assembly shall appoint the Auditor General on the recommendation of the Constitutional Council. (3) The term of office of the Auditor General shall be for a period of six years from the date of appointment. (4) Subject to anything contained in clause (3), the office of the Auditor General shall become vacant in any of the following circumstances: (a) on his resignation in writing to the Minister, (b) on his attaining the age of sixty-five years, (c) on the filing of an indictment against him under section 101. If so, (d) If the President, on the recommendation of the Constitutional Council, is relieved of his/her duties due to physical or mental infirmity, (e) If he/she dies. (5) An auditor appointed under clause (2) shall not be eligible for reappointment. (6) A person who is qualified to hold the office of auditor shall be eligible for appointment as auditor: (a) Having obtained a bachelor's degree in management, economics or accounting from a recognized university or having passed the Chartered Accountants Examination and having worked in a special category post of the Government of Nepal or having obtained at least twenty years of experience in audit work, (b) Not a member of any political party at the time of appointment, (c) Has completed the age of sixty-five years, and (d) Has high moral character. (7) The remuneration and terms of service of the Auditor shall be as per the Federal Law. The remuneration and terms of service of the Auditor shall not be changed to the detriment of the Auditor during his tenure of office.

However, this provision shall not apply in the event of a state of emergency declared due to extreme economic hardship.

(8) A person who has been an auditor shall not be eligible for appointment to any other government service.

However, nothing contained in this clause shall be deemed to constitute a bar to appointment to any political office or to any position for the purpose of investigating, investigating or investigating any matter or for the purpose of submitting opinions, opinions or recommendations after studying or investigating any matter.

241. Functions, duties and powers of the Auditor General: (1) The accounts of the Office of the President and

Vice President, the Supreme Court, the Federal Parliament, the Provincial Assembly, the Provincial Government, the Local Government, the Constitutional Body or its Office, the Court, the Office of the Magistrate and the Nepal Army, the Nepal Police or the Armed Police Force, all federal and provincial government offices in Nepal shall be audited by the Auditor General, considering the regularity, efficiency, effectiveness and fairness in accordance with the

law. (2) For the audit of a corporate body in which more than fifty percent of the shares or assets are owned by the Government of Nepal or the Provincial Government, the Auditor General shall be consulted. The Auditor may give necessary directions regarding the principles to be adopted in the audit of such statutory body. (3) The Auditor shall have the right to obtain from time to time any documents

relating to the accounts for the purpose of the work under clause (1). It shall be the duty of the head of the concerned office to provide any documents and information requested by the Auditor or any of his employees.

(4) The accounts audited under clause (1) shall be kept in the format prescribed by the Auditor General in accordance with the Federal Law. (5) In

addition to the accounts of the offices mentioned in clause (1), arrangements may be made in accordance with the Federal Law to have the accounts audited by the Auditor General of any other office or institution.

Part-23

Public Service

Commission 242. Public Service Commission: (1) There shall be a Public Service Commission in Nepal consisting of a Chairperson and four other members.

(2) The National Assembly shall appoint the Chairperson and members of the Public Service Commission on the recommendation of the Constitutional Council.

(3) At least fifty percent of the members of the Public Service Commission shall be appointed from among the persons who have served in any government service for a period of twenty years or more and the remaining members shall be appointed from among the persons who have achieved distinction in science, technology, art, literature, law, public administration, sociology or other fields of public life by research, investigation, teaching or

any other meritorious work. (4) The term of office of the Chairperson and the members of the Public Service

Commission shall be six years from the date of appointment. (5) The Chairperson and the members

appointed under clause (2) shall not be eligible for reappointment. Every member may be appointed to the office of Chairperson and if such member is appointed to the office of Chairperson, his term of office shall be counted

together with the period of membership. (6) Notwithstanding anything contained in clause (4), any term of office of the Chairperson or a member of the Public Service Commission

shall become vacant: (a) if he resigns in writing to the

Minister, (b) if he attains the age of sixty-five

years, (c) if an indictment is filed against him under Article 101.

If so,

(d) If the President, on the recommendation of the Constitutional Council, is relieved

of his/her duties due to physical or mental infirmity, (e) If he/she dies. (7) A

person who is eligible for

appointment as the Chairperson

or a member of the Public Service Commission shall be eligible for appointment as:

(a) Has obtained a postgraduate degree from a recognized university, (b) Has not been a member of any political party at the time of appointment, (c) Has completed the age of fifty-five years, and (d) Has high professional character.

(8) The remuneration and service of the Chairperson and members of the Public Service Commission shall be determined by the Union Government.

The remuneration and terms of service of the Chairperson and members of the Public Service Commission shall not be changed to the detriment of the appointee as long as they remain in office.

And this provision shall not apply in the event of a state of emergency declared due to extreme economic disruption. (9) A person who has been the Chairperson and Member of the Public Service Commission shall not be eligible to hold any other government post. It shall not be admissible for appointment to the service.

However, nothing contained in this clause shall be deemed to constitute a bar to the holding of any political office or any office for the purpose of investigating, investigating or investigating any matter or for the purpose of studying or investigating any matter and submitting opinions, opinions or recommendations.

243. Functions, functions and powers of the Public Service Commission: (1) It shall be the duty of the Public Service Commission to conduct examinations for the selection of suitable candidates for appointment to posts in the Civil Service. Explanation: For the purposes of this article, the term "Civil Service post" shall mean any post in the service of the Army or Nepal Army or the Armed Forces of Nepal, the civil service of Nepal and any other service post declared by law to be a civil service post, and all other services of the Government of Nepal. (2) The Public Service Commission shall conduct written examinations for the selection of candidates for appointment to posts in the Nepal Army, Nepal Army, Armed Forces of Nepal, other federal government services and statutory bodies, other than civil service posts. Explanation: For the purposes of this section, the term "organised institution" shall mean a university and a teacher service commission, fifty percent or more of the shares or assets of which are owned or controlled by the Government of Nepal, a corporation, a company, a bank, a committee or an institution established under federal law, or a commission, institute, authority, corporation, institution, board, centre, council and other organised institutions of a similar nature established by the Government of Nepal.

(3) The Public Service Commission shall be consulted on the general principles to be followed in the promotion of posts in the Nepal Army, Nepal Police, Armed Police Force, Nepal and other federal government services. (4) The Public

Service Commission shall be consulted on the general principles to be followed in the promotion of posts in the service of employees of any statutory organization and the law relating to the service of such employees and in the departmental actions to be taken.

(5) No permanent appointment shall be made to a post receiving a salary from the Government of Nepal without the consultation of the Public Service

Commission. (6) The consultation of the Public Service Commission shall be sought in the following cases:-

- (a) In terms of the law relating to the appointment of the Federal Civil Service, (b) In terms of the principle of appointment, promotion and departmental action to the Federal Civil Service or post, (c) In terms of the suitability of a candidate for appointment to a post in the Federal Civil Service for a period exceeding six months, (d) In terms of the suitability of a candidate for transfer or promotion from one type of Federal Civil Service post to another type of Federal Civil Service post or from another government service to the Federal Civil Service or from a post in the Civil Service of a Province to a post in the Federal Civil Service or from a post in the Federal Civil Service to a post in the Provincial Civil Service. In the case of, (e) the appointment or promotion of an employee who is serving in a position of a status subject to the advice of the Public Service Commission to a permanent position in a position of a status subject to the advice of the Public Service Commission, and
- (f) Departmental punishment given to a federal civil service employee

(7) In the event that anything mentioned in clause (6) falls within the jurisdiction of the Judicial Service Commission under Article 154, the same shall apply accordingly.

(8) The Public Service Commission may delegate any of its functions, duties and powers to the Chairperson or any member of the Commission or an employee of the Government of Nepal, subject to the exercise and observance of the delegated authority.

(9) Other functions, duties and powers of the Public Service Commission shall be as per the federal law.

244. Provisions relating to State Public Service Commissions.—(1) There shall be in every State a State Public Service Commission.

(2) The

formation, functions, functions and powers of the Provincial Public Service Commission shall be in accordance with the provincial law. (3) For

the purposes of clause (2), the Federal Parliament shall make a law and determine the basis and criteria.

Part-24

Election Commission

245. Election Commission: (1) There shall be an Election Commission in Nepal consisting of a Chief Commissioner and four other Commissioners. The Chief Election Commissioner shall act as the Chairman of the Election Commission. (2) The

National Assembly shall appoint the Chief Election Commissioner and the Commissioners on the recommendation of the

Constitutional Council. (3) The Chief Election Commissioner and the Election Commissioner shall hold office for a year from the

date of their appointment. (4) Nothing in clause (3) shall apply to any person who is not a member of the Legislative Assembly.

The office of the Chief Election Commissioner and the Election Commissioner

shall become vacant: (a) if he resigns in writing to the Minister, (b) if he attains the age of sixty-five years, (c) if an indictment is filed against him under Article 101.

If so,

(d) If the President, on the recommendation of the Constitutional Council, is relieved of his duties on the ground that he is physically or mentally unfit to perform his duties, (e) If he

dies. (5) The Chief Election

Commissioner and the Commissioner appointed under clause (2) shall not be eligible for reappointment. Every

Commissioner may be appointed to the post of Chief Election Commissioner and if such Commissioner is appointed to the post of Chief Election Commissioner, his term of office shall be reckoned as including the period of his term as a Commissioner.

(6) A person who is qualified for appointment as Chief Election Commissioner or Election Commissioner shall be eligible for appointment as:

- (a) Has obtained a bachelor's degree from a recognized university, (b) Has not been a member of any political party at the time of appointment,
- (c) Has completed the age of fifty-five years, and (d) Has high professional character.

(7) The remuneration and terms of service of the Chief Election Commissioner and the Commissioners shall be as per the Federal Law. The remuneration and terms of service of the Chief Election Commissioner and the Commissioners shall not be changed to the detriment of the Chief Election Commissioner and the Commissioners while they hold office.

However, this provision shall not apply in the event of a state of emergency declared due to extreme economic distress. (8) The Chief

Election Commissioner of the Election Commission and a person who has been a Commissioner shall not be eligible for appointment to any other government service. However,

nothing contained in this clause shall be deemed to constitute a bar to appointment to any political office or to any office for the purpose of investigating, investigating or investigating any matter or for the purpose of submitting opinions, opinions or recommendations after studying or investigating any matter.

246. Functions, functions and powers of the Election Commission: (1) The Election Commission shall, subject to this

Constitution and the Federal Laws, conduct, supervise, direct and control the elections of the President, Vice President, members of the Federal Parliament, members of the Provincial Assembly and members of local bodies.

The Election Commission shall be responsible for preparing the list of candidates for the purpose of the elections. (2)

The Election

Commission shall organize the National Assembly in accordance with this Constitution and the Federal Laws. (3) If any question arises regarding the

eligibility of any candidate for the post of President, Vice President, Member of the Federal Parliament, Member of the Provincial Assembly or Member of the Local Government, the Election Commission shall decide the same after the nomination of the candidate has been submitted but the results of the election have not been declared.

(4) The Election Commission may delegate any of its functions, duties and powers to the Chief Election Commissioner, any Election Commissioner or any Government servant to be exercised and performed under the supervision of the Chief Election Commissioner.

(5) Other functions, duties, powers and procedures of the Election Commission shall be as per the Federal Law bomojam niuchh.

247. Necessary assistance to be provided: The Government of Nepal, the Provincial Government and the Local Government shall provide the necessary staff and other assistance to the Election Commission to carry out its work in accordance with this Constitution.

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Part-25

National Human Rights Commission

248. National Human Rights Commission: (1) There shall be a National Human Rights Commission in Nepal.

It will consist of a chairman and four other members.

(2) The National Assembly shall, on the recommendation of the Constitutional Council, appoint the Chairperson and members of the National Human Rights Commission. (3)

The Chairperson and members of the National Human Rights Commission shall hold office for a period of one year from the date of their appointment. (4)

The Chairperson and members appointed under clause (2) shall not be eligible for reappointment. Every member may be appointed

to the office of Chairperson and, if such member is appointed to the office of Chairperson, his term of office shall be counted as a whole, including the period during which he was a member. (5) In the event of any of the matters mentioned in clause (3), any person who is not a

member of the National Human Rights Commission shall be deemed to have been appointed to the office of Chairperson.

The office of the Chairperson or a member of the National Human Rights Commission shall

become vacant: (a) if he resigns in writing to the Minister, (b) if an impeachment motion is filed against him under Article 101.

If so,

(c) If the President, on the recommendation of the Constitutional Council, is relieved of his/her duties due to physical or mental infirmity, (d) If he/she dies. (6) A person who is eligible for appointment as the Chairperson or a member

of the National Human Rights Commission shall be eligible for appointment as:

(a) A person who has made a distinguished contribution to the protection and promotion of human rights in the capacity of Chairperson, or a person who has retired from the office of Chief Justice or a Judge of the Supreme Court, or a person who has been active in the protection and promotion of human rights or in various fields of public life for at least twenty years and has received recognition for his distinguished contribution,

(b) Protection and enhancement of the rights of members as members

(a) Have worked in the field of children's rights or have made significant contributions in various fields of public life for at least twenty years and have been recognized for their work, (b)

Have obtained a degree from a recognized university, (c) Have completed the age of sixty-five years, (d) Have not been a member of a political party at the time of appointment, (e) Have been of high moral character. (7) The remuneration

and terms of service of the Chairperson and members of the National Human Rights Commission shall be as per the federal law. The remuneration and terms of service of the Chairperson and members of the National Human Rights Commission shall not be changed to the detriment of the President while they hold office.

However, this provision shall not apply in the event of a state of emergency declared due to extreme economic hardship.

(8) A person who has been the Chairperson or a member of the National Human Rights Commission shall not be eligible for appointment to any other government service. However, appointment to any political post or to any post for investigation, inquiry or inquiry into any matter or for the purpose of studying or investigating any matter and submitting opinions, opinions or recommendations shall not be deemed to have fulfilled any of the conditions mentioned in this clause.

249. ~~Functions, functions and powers of the National Human Rights Commission:~~ (1) The function of the National Human Rights Commission shall be to ensure the respect, protection and promotion of human rights and their effective implementation. (2) In order to fulfil

the functions referred to in sub-clause (1), the National Human Rights Commission shall:

The Commission shall carry out the functions of the Ministry of Finance.

(a) A report or complaint submitted or forwarded to the Commission by the PMD itself or on its behalf, or received by the Commission from any source, or brought to the Commission's attention, regarding the violation or abuse of the human rights of any individual or group.

To recommend that action be taken against the two after conducting an investigation and investigation into the incident,

(b) If an official who has the responsibility or authority to prevent human rights violations fails to fulfill his/her responsibility or fails to comply with the duty or shows indifference to fulfill the responsibility or comply with the duty, recommend to the relevant authority to take departmental action against that official, (c) If

it is necessary to file a case against a person or organization violating human rights, recommend to file a case in court in accordance with the law, (d)

Coordinate and work with civil society to promote awareness of human rights, (e) Explain the

reasons and grounds for taking departmental action and punishment for human rights violations and submit it to the relevant body. (f) To make

recommendations to the Government of Nepal regarding the periodic review of laws related to human rights and the necessary reforms and amendments to be made therein, (g) To

make recommendations to the Government of Nepal regarding the reasons for Nepal becoming a party to an international treaty or agreement related to human rights, and to monitor the implementation of treaties or agreements to which Nepal is a party and, if it is found that they are not being implemented, to make

recommendations to the Government of Nepal to implement them, (h) To make public, in accordance with law, the names of officials, individuals or bodies who do not follow or implement the recommendations or directions made by the National Human

Rights Commission regarding violations of human rights. To keep a record of the violation of rights

The following powers may be exercised:

(a) To exercise the powers of the court in relation to obtaining information or a statement from any person before the Commission, or to cause evidence to be heard, or to require the filing of evidence, (b) If the Commission receives information from any person that a serious violation of human rights is about to occur or has occurred, to enter without notice the residence or office of any person or person, to take possession of the documents, evidence or evidence related to the violation of human rights while taking possession of such documents, evidence or evidence, (c) If it is considered necessary to take immediate action after receiving information that the human rights of any person are being violated, to enter without notice the government office or other place and rescue them, (d) To issue orders to grant immunity to the PMD in accordance with law. (4) The National Human Rights Commission may delegate any of its functions, duties and powers to the Chairperson, any member or an employee of the Government of Nepal, subject to the exercise and observance of the delegated authority. (5) Other functions, duties and powers and procedures of the National Human Rights Commission shall be in accordance with federal law.

Part-26

National Natural Resources and Finance

Commission 250. National Natural Resources and Finance Commission: (1) There shall be a National Natural

Resources and Finance Commission in Nepal consisting of a Chairperson and not more than five members.

(2) The National Assembly shall, on the recommendation of the Constitutional Council, appoint the Chairperson and members of the National Natural Resources

and Finance Commission. (3) The office of the Chairperson and members of the National Natural Resources and Finance Commission shall be for a period of six

years from the date of appointment. (4) Subject to anything contained in clause (3), the office of the Chairperson or member of the National Natural Resources and Finance Commission shall become vacant at any time during the term of the following:-

(a) If he resigns in writing before the Minister, (b) If he attains the age of sixty-five years, (c) If an indictment is filed against him under Article 101.

If so,

(d) If the National Assembly, on the recommendation of the Constitutional Council, vacates office on the grounds that he is unable to perform his duties due to physical or mental infirmity; (e) If he dies.

(5) The Chairperson and members appointed under clause (2) shall not be eligible for reappointment. Every member shall be eligible for appointment to the post of Chairperson and if such member is appointed to the post of Chairperson, his term of office shall be counted together with the period of membership.

(6) A person who is qualified to hold the office of Chairperson or Member of the National Natural Resources and Finance Commission shall be eligible for appointment

as: (a) A graduate of a recognized university in the relevant subject and has worked in the field of natural resources or financial management, economics, law, management for at least twenty years, and has acquired expertise in the field,

(b) Not a member of any political party at the time of appointment, (c) Has completed the age of sixty-five years, and (d) Has high moral character. (7) The remuneration and

terms of service of the Chairperson and members of the National Natural Resources and Finance Commission shall be as per the Federal law and the remuneration and terms of service shall not be changed to the detriment of the person so long as the sanction is in force. However,

this provision shall not apply in the event of a state of emergency declared due to extreme economic distress. 8) A person who has

been the Chairperson or member of the National Natural Resources and Finance Commission shall not be eligible for appointment to any other government service. However,

nothing contained in this clause shall be deemed to constitute an impediment to the holding of any political office or any position in which an investigation, inquiry or inquiry into any matter or a study or investigation into any matter is conducted and an opinion, opinion or recommendation is submitted.

251. Functions, functions and powers of the National Natural Resources and Finance Commission: (1) The functions, functions and powers of the National Natural Resources and Finance Commission shall be as follows:-

- (a) To determine the detailed basis and framework for the distribution of revenue from the federal budget among the federal, provincial and local governments in accordance with the Constitution and law,
- (b) To make recommendations regarding equalization grants to be provided to the provincial and local governments from the federal budget, (c) To conduct research and establish a basis for the provision of grants to the provincial and local governments in accordance with national policies and programs, standards, and the state of infrastructure, (d) To determine the detailed basis and framework for sharing revenue between the provincial and local governments from the provincial budget, (e) To recommend measures to improve revenue collection by fulfilling the expenditure responsibilities of the federal, provincial, and local governments,

(f) To recommend the limit of internal debt that can be obtained by the Union, Provinces and local governments by analyzing the relevant economic indicators, (g) To review the revenue sharing basis of the Union and Provinces and recommend its revision, (h) To recommend the basis for determining the investment and return of the Government of Nepal, Provinces and local governments on the operation of natural resources, (i) To study and research on the possible disputes that may arise between the Union and Provinces, Provinces and Provinces, Provinces and Local Governments and local governments on the issue of sharing natural resources and to facilitate their coordinated work to resolve them. (2) The National Natural Resources and Finance Commission shall conduct necessary studies and research on the allocation of natural resources and the related environmental impact assessment and make recommendations to the Government of Nepal. (3) Other functions, functions and powers of the National Natural Resources and Finance Commission, detailed basis for adopting the allocation of natural resources or revenue, and other provisions regarding the service of the officials of the Commission shall be made in accordance with federal law.

Part 27

Other Commissions

252. ~~Road Transport Commission~~: (1) There shall be a Road Transport Commission in Nepal, which shall consist of a Chairperson and four other members.

(2) The National Assembly shall, on the advice of the Constitutional Council, appoint the Chairperson and members of the National Legislative Commission. (3) The Chairperson

and members of the National Legislative Commission shall hold office for a period of one year from the date of their appointment. (4) Nothing in clause (3)

shall apply to any person who has been appointed to the office of Chairperson or member of the National Legislative Commission.

The office of the Chairperson or a member of the National Election

Commission shall become vacant: (a) if he resigns in writing to the Minister, (b) if he attains the age of sixty-five years, (c) if an indictment is filed against him under Article 101.

If so,

(d) If the National Assembly, on the recommendation of the Constitutional Council, removes him from office on the grounds that he is physically or mentally infirm, or if he dies. (5) The Chairperson and

members appointed under clause (2) shall not be eligible for reappointment. Every member shall

be eligible for appointment to the office of Chairperson and, if such member is appointed to the office of Chairperson, his term of office shall be counted as including the period of his membership. (6) A person who

is qualified for appointment to the office of Chairperson and members of the National Civil Service Commission shall be eligible for appointment to the office of:-

(a) A minimum of ten years of experience in the field of women, education or gender justice or women development or human rights and law, (b) A bachelor's degree from a recognized university in the field of the Chairperson.

Done,

(c) Has completed the age of sixty-five years, (d) Has not been a member of any political party at the time of appointment, and (e) Has high moral character. (7)

The remuneration and terms of service of the Chairperson and members of the National Election Commission shall be as per the Federal Law and shall not be changed to the detriment of the person so long as the appointment is approved. However,

this provision shall not apply in the event of a state of emergency declared due to extreme economic distress. (8) A

person who has been the Chairperson or a member of the National Election Commission shall not be eligible for appointment to any other

government service. However, nothing contained in this clause shall be deemed to constitute an impediment to the holding of any political office or any position in which an investigation, inquiry or inquiry into any matter or a study or investigation into any matter is conducted and an opinion, opinion or recommendation is submitted.

253. Functions, powers and duties of the Rural Development Commission: (1) Functions of the Rural Development Commission,

The following shall be the powers and duties of the

Council: (a) The policies and procedures relating to the affairs of the Council.

(b) To monitor the implementation of the Act or the obligations under the Act under the international treaty or agreement to which Nepal is a party, and to advise

the Government of Nepal on the effective implementation or measures to be taken, (c) To review, monitor and evaluate the existing policies and programs

to integrate the Act into the mainstream of national development

and to ensure equal participation in all organs of the state and to make recommendations

to the Government of Nepal for its effective implementation, (d) To study and

research the legal provisions related to gender equality, women empowerment and women and to incorporate them into the law.

To make recommendations to the relevant bodies regarding the reforms to be implemented and to monitor them,

(e) To advise the Government of Nepal on the reports to be sent by Nepal in accordance with the provisions of the international treaty or agreement to which Nepal is a party relating to the power of the judiciary, (f) To recommend to the relevant body to file a case in court in accordance with the law, if it is deemed necessary to file a case against any person or organization for the violation of the power of the judiciary or social injustice or for the failure to exercise or abuse the power of the judiciary. (2) The National Civil Service Commission may delegate any of its functions, duties and powers to the Chairperson of the Commission,

any member or any employee of the Government of Nepal to be exercised and complied with under the authority of the Commissioner. (3) Other functions, duties, powers and other provisions relating thereto of the National Civil Service Commission shall be in accordance with the federal law.

~~254. Offices may be established in the provinces:~~ The National Planning Commission may, as required, establish offices in the provinces.

It will be able to establish its office in the province.

~~255. National Election Commission:~~ (1) There shall be a National Election Commission in Nepal consisting of a Chairperson and four other members. (2) The National

Assembly shall appoint the Chairperson and members of the National Election Commission on the advice of the Constitutional Council. (3) The

Chairperson and members of the National Election Commission shall hold office for a period of one year from the date of their appointment.

(4) Nothing in clause (3) shall apply to any person who is not a member of the National Election Commission.

The office of the Chairperson or a member of the National Election Commission shall become

vacant: (a) if he resigns in writing to the Minister, (b) if he attains the age of sixty-five years,

(c) Proposal of charges against the person under Article 101

If so,

(d) If the National Assembly, on the recommendation of the Constitutional Council, vacates office on the grounds that he is physically or mentally infirm, unable to perform his duties while in service, (e) If he dies. (5) The

Chairperson and the member appointed under clause (2) shall not be eligible for reappointment.

Every member shall be eligible for appointment to the office of Chairperson and if such member is appointed to the office of Chairperson, his term of office shall be counted as including the period of his membership. (6) A

person who is qualified for appointment to the office of Chairperson or a member of the National Election Commission shall be eligible for appointment to the office of:-

- (a) A person who has made significant contributions to the field of human rights and law of the Muslim community for at least ten years, (b) A person who holds a degree from a recognized university as the Chairperson.
- (c) has attained the age of sixty-five years, and has not been appointed, and (d) a member of any political party at the time of has (e) been of high moral character.

(7) The remuneration and terms of service of the Chairperson and members of the National Election Commission shall be as per the Federal Law and shall not be changed to the detriment of the person.

However, this provision shall not apply in the event of a state of emergency declared due to extreme economic distress. (8) A person

who has been the Chairperson or a member of the National Election Commission shall not be eligible for appointment to any other government service. However,

no person shall be eligible for appointment to any political post or to any person who conducts an investigation, inquiry or inquiry into any matter or to submit an opinion, opinion or recommendation after studying or investigating any matter

Nothing contained in this clause shall be deemed to constitute an impediment to the performance of duties in good faith.

256. Functions, powers and duties of the Royal Commission on the Protection of Women: (1) Functions of the Royal Commission on the Protection of Women,

The functions and powers shall be as follows: (a) To

study and investigate the overall situation of the Damali community and to propose the necessary legislative, legal and institutional reforms to be made in this regard and to make recommendations to the Government of Nepal, (b)

To formulate national policies and programs related to the Damali community for the upliftment and development of the Damali community by ending caste discrimination, oppression and discrimination, and to submit them to the Government of Nepal for implementation.

(c) To monitor the effective implementation of the laws related to the upliftment of the Damali community and the special arrangements made for the insured Damali community, and if there is no implementation or compliance, to report to the Government of Nepal for compliance or implementation,

(d) To provide information to the Government of Nepal regarding the reports to be sent by Nepal in accordance with the provisions of the relevant international treaties or agreements to which Nepal is a party, (e) To review, monitor and evaluate the existing policies and

programs to include the Damali community in the mainstream of national development and to ensure their equal participation in all spheres of the state and to make recommendations to the Government of Nepal for their effective implementation, (f) To file a case against any individual or organization that has been discriminated against or has

been denied or denied the use of Damali.

If necessary, recommend to the relevant body to file a case in court as per the law.

(2) The National Crime Commission may delegate any of its functions, duties and powers to the Chairperson, any member or any employee of the Government of Nepal to be exercised and complied with under the authority of the Commissioner. (3) Other functions, duties, powers and other provisions relating thereto of

the National Crime Commission shall be in accordance with the federal law.

257. ~~Offices may be established in the provinces.~~ The National Election Commission may, as required, establish offices in the provinces.

It will be able to establish its office in the province.

258. ~~National Integration Commission:~~ (1) There shall be a National Integration Commission in Nepal consisting of

The Chairman and up to four other members shall be

members. (2) The National Assembly shall appoint the Chairman and members of the National Integration Commission on the recommendation

of the Constitutional Council. (3) The office of the Chairman and members of the National Integration Commission shall

be for a period of six years from the date of appointment. (4) Notwithstanding anything contained in clause (3), the office of the Chairman or a member of the National Integration Commission shall be

deemed to have become vacant in any of the following

circumstances: (a) if he resigns in writing to the

National Assembly, (b) if he attains the age of sixty-five years, (c) if an impeachment is filed against him under

If so,

(d) If the President, on the recommendation of the Constitutional Council, vacates office

on the grounds that he is unable to perform his duties due to physical or mental

infirmary, (e) If he dies. (5)

The Chairperson and members

appointed under clause (2) shall not be eligible for reappointment.

Every member may be appointed to the office of Chairperson and if such member is appointed to the office of Chairperson, his term of office shall be counted together with the period of membership. (6) A person who is qualified to be a

member of the National Integration Commission shall be the Chairperson or

The following shall be eligible for appointment to the

post of Member: (a) At least ten years of significant contribution in the field of social

inclusion, persons with disabilities, minorities and marginalized communities and

backward regions and communities, or in the field of economic or development or

human rights, (b) In

the case of Chairperson, a Bachelor's degree from a recognized University.

(c) has completed

the age of sixty-five years, (d) has not been

a member of any political party at the time of appointment, and (e) has high moral

character. (7) The remuneration and

terms of service of the Chairperson and members of the National Integration Commission shall be as per the Federal Law and the remuneration and terms of service shall not be changed to the detriment of the person so long as he remains in office.

However, this provision shall not apply in the event of a state of emergency declared due to extreme economic distress.

(8) A person who has been the Chairperson or a member of the National Integration Commission shall not be eligible for appointment to any other government

service. However, nothing contained in this clause shall be deemed to constitute an impediment to the holding of any political office or any position in which an investigation, inquiry or inquiry into any matter or a study or investigation into any matter is conducted and an opinion, opinion or recommendation is submitted.

~~259. Functions, duties and powers of the National Integration Commission:~~ (1) The National Integration Commission

The work, duties and powers are as follows:-

(a) Special Income, Backward Classes, Persons with Disabilities, Senior Citizens,

Labourers, Farmers, Minorities and Marginalised Communities and

Backward classes and marginalized and economically disadvantaged classes

Study to protect the rights of the indigenous community

(b) To conduct research

on the inclusion of communities, groups and regions mentioned in section (a).

The policy and law implemented by the Government of Nepal for

Nepal for reform by studying the implementation status

(c) to facilitate the government, and

to facilitate the participation of the communities, tribes and regions referred to in clause (a) in the state machinery

Study whether there is a fair representation and then decide whether the community, group, and

Special arrangements made for the development of the area

To facilitate the Government of Nepal to review, (d) study

whether the protection, empowerment and development of the communities, groups and areas

mentioned in clause (a) have been enhanced.

Government of Nepal regarding the policy to be implemented in the future

To advise in front of you,

(e) Adoption for the development and prosperity of rural and backward areas

Advise the Government of Nepal on the implementation of policies and programs

Dadne,

(f) In the law relating to minorities and marginalized communities

To make recommendations for timely implementation, (g)

to ensure that minorities and marginalized communities

The implementation of the authority shall be monitored on site and shall be carried out formally.

Report on National Census and Human Development Index

Recommendations for rehabilitation after necessary review based on

Count.

(2) The National Integration Commission may not delegate any of its functions, duties and powers to the

Chairperson, any member or any officer of the Government of Nepal.

Delegate tasks to employees to ensure that they are used and followed under the authority of the person being hired.

It will be possible.

(3) Other functions, duties, powers and matters related to the National Integration Commission

Other arrangements may be made as required by federal law.

260. Offices may be established in the provinces: The National Integration Commission may, as required, establish offices in the provinces.

It will be able to establish its office in the province.

261. Tribal Peoples Commission: (1) There shall be a Tribal Peoples Commission in Nepal consisting of

The Chairperson and up to four other members shall be members. (2)

The National Assembly shall appoint the Chairperson and members of the Tribal Peoples Commission on the recommendation of the Constitutional Council. (3)

The Chairperson and members of the Tribal Peoples Commission shall hold office for a period of six years from the date of their appointment. (4) The qualifications,

vacancy, remuneration and terms of service of the Chairperson and members of the Tribal Peoples Commission and other provisions relating to the functions, functions and powers of the Commission shall be made in accordance with federal law.

262. Madhesi Commission: (1) There shall be a Madhesi Commission in Nepal consisting of a Chairperson and four other members.

There shall be up to 10 members. (2)

The National Assembly shall appoint the Chairperson and members of the Madhesi Commission on the recommendation of the Constitutional

Council. (3) The Chairperson and members of the Madhesi Commission shall hold office for a period of six months from the date of their

appointment. (4) The qualifications of the Chairperson and members of the Madhesi Commission, the status of vacancies, remuneration and terms of service and other provisions relating to the functions, functions and powers of the Commission shall be made in accordance with federal law.

263. Tharu Commission: (1) There shall be a Tharu Commission in Nepal consisting of a Chairperson and four other members.

There shall be up to 10 members. (2)

The National Assembly shall appoint the Chairperson and members of the Tharu Commission on the recommendation of the Constitutional Council.

(3) The term of office of the Chairperson and members of the Tharu Commission shall be six years from the date of appointment.

(4) The qualifications of the Chairperson and members of the Tharu Commission, the status of vacancies, remuneration and terms of service and other provisions relating to the functions, functions and powers of the Commission shall be as per the federal law.

264. ~~Muslim Commission:~~ (1) There shall be a Muslim Commission in Nepal consisting of a Chairperson and four other members.

There shall be up to 10 members. (2)

The National Assembly shall appoint the Chairperson and members of the Muslim Commission on the recommendation of the Constitutional

Council. (3) The term of office of the Chairperson and members of the Muslim Commission shall be six years from the date of

appointment. (4) The qualifications of the Chairperson and members of the Muslim Commission, the conditions of vacancy, remuneration and terms of service and other provisions relating to the functions, functions and powers of the Commission shall be as per the Federal Law.

265. ~~Review of the Commission:~~ The Federal Parliament shall review the Commission constituted under this Part after ten years from the commencement of this Constitution.

Part 28

National Security Arrangements 266.

National Security Council: (1) The overall national security, security and defense policy of Nepal.

A committee consisting of the Chairman and members of the Nepal Army, as required, to make recommendations to the Government of Nepal, the Council of Ministers, for the operation or control of the Nepal Army.

The Security Council shall:

- | | |
|---|------------|
| (a) Prime Minister | – Chairman |
| (b) Minister of Defence, Government of Nepal | – Member |
| (c) Minister of Home Affairs, Government of | – Member |
| Nepal (d) Minister of Foreign Affairs, Government | – Member |
| of Nepal (e) Minister of Finance, Government | – Member |
| of Nepal (f) Chief Secretary, Government of | – Member |
| Nepal (g) Chief of Army Staff, Nepal Army | – Member |

(2) Secretary to the Ministry of Defence, Member-Secretary of the National Security Council

It will happen.

(3) The National Security Council shall submit its annual report to the President and

The National Assembly shall cause such report to be presented to the Federal Parliament through the Prime Minister.

(4) Other provisions relating to the National Security Council are as provided by federal law.

267. Provisions relating to the Nepalese Army: (1) The independence, sovereignty, territorial integrity and territorial integrity of Nepal shall be protected.

The members of this Constitution are committed to protecting the integrity, independence and unity of the country.

A unit of the Nepali Army will be formed.

(2) The Nepal Army shall be the supreme commander of the Nepal Army.

(3) The Nepali Army shall ensure equal and fair recruitment of citizens from the communities of Mabala,

Damali, Adivasis, Adivasis Janajami, Khas Ayyab, Madhesi, Tharus, Muslims, backward classes and backward regions.

The decision will be made in accordance with federal law based on the principle of inclusion.

(4) The Government of Nepal shall provide the Nepal Army with development and

Disaster management may be implemented in conjunction with other functions of the agency.

(5) The National Assembly shall appoint and remove the Chief of Army Staff on the recommendation of the

Council of Ministers. (6) In the event of a serious crisis in the sovereignty, territorial integrity or security of Nepal due to war, external aggression, armed conflict or extreme economic disruption, the Government of Nepal, on the recommendation of the National Security Council, shall declare the deployment of the Nepali Army through the National Assembly in accordance with the decision of the Council of Ministers. The declaration of the deployment of the Nepali Army shall be subject to approval by the Prime Minister within one month. (7) Other provisions relating to the Nepali Army shall be made in accordance with law.

268. ~~Arrangements relating to Nepal Police, Armed Police Force, Nepal and National Investigation Department:~~ (1) There

shall be Nepal Police, Armed Police Force, Nepal and National Investigation Department in the Union. (2) There shall be a Provincial Police Department in each Province. (3)

Arrangements relating to the operation, supervision and coordination of the work performed by Nepal Police and Provincial Police shall be made in accordance with the Federal

Law. (4) Other arrangements relating to Nepal Police, Armed Police Force, Nepal and National Investigation Department shall be made in accordance with the Federal Law.

Part-29

Provisions relating to political

parties 269. Formation, registration and operation of political parties: (1) Persons committed to the same political ideology, philosophy and program may form and operate a political party subject to the law made under clause (c) of clause (2) of Article 17 and may publicize and disseminate the ideology, philosophy and program of the party, or cause it to be publicized or perform other necessary work for that purpose in order to obtain the support and cooperation of the general public. (2)

A political party formed under clause (1) shall complete the procedures as per the law and register the party with the Election Commission. (3) For the purpose of registering a party as per clause (2), the application shall be submitted along with the statute and declaration of the relevant political party and other documents as per the federal law. (4) In applying for

party membership under clause (2), a political party shall fulfill the following conditions:

(a) The constitution and by-laws

of the political party shall be in accordance with the democratic principles of the party; (b) The constitution of the political party shall provide for the oath-taking of every federal and provincial office-bearer of the party at least once in five years;

provided that, unless special circumstances arise and the oath-

taking of an office-bearer cannot be fulfilled within five years, there shall be no impediment to making provisions in the constitution of the political party to enable

such oath-taking to be performed within six months. (c) Arrangements should

be made for inclusive representation in the executive committee of the party

to reflect the diversity of Nepal. (5) If the name, objectives, symbols or slogans of any political party are such as to disrupt the religious or communal unity of the country and tend to divide the country, then such political party shall not be registered.

270. Prohibition on imposing restrictions on political parties: (1) Any law made or any arrangement or decision made imposing any restriction on the formation and operation of a political party under Article 269 and the activities of propagating and disseminating the ideology, vision and programme of the party in order to obtain the support and cooperation of the general public shall be deemed to be contrary to this Constitution and shall be automatically

invalid. (2) Any law or any arrangement or decision made to the effect that only a single political party or individuals with the same political ideology, ideology or program are allowed to participate in the conduct of the political system or state system of the country or to be included in it shall be deemed to be contrary to this Constitution and shall be automatically invalid.

271. Application to obtain recognition for the purpose of consultation as a political party: (1) Every political party which has been notified under Article 269 to obtain recognition from the Consultation Commission for the purpose of consultation shall complete the procedures as per the federal law and submit an application to the Consultation Commission.

(2) For the purposes of clause (1), a political party shall submit an annual audit report in addition to the details referred to in clause (3) of Article 269 and shall have completed the audit as referred to in clause (4) of the same Article. 272. Other provisions relating to political parties: The formation, formation, operation and facilities of political parties and other matters relating thereto shall be governed by the federal law.

Part-30

Emergency Powers

273. Emergency Arrangements: (1) If a serious crisis arises in the sovereignty, territorial integrity or security of Nepal due to war, external aggression, armed conflict, extreme economic disruption, natural disaster or disease, the President may declare a state of emergency or issue an order to apply to the whole of Nepal or to any specific area of Nepal.

(2) Notwithstanding anything contained in clause (1), if a serious crisis arises in any province due to natural disaster or disease, the concerned provincial government may request the Government of Nepal to declare a state of emergency or issue an order in accordance with this article in the province or any part of

the province. (3) A declaration or order made under clause (1) shall be submitted to both Houses of the Federal Parliament for approval within one month of the date

of such declaration or order. (4) A declaration or order submitted for approval under clause (3) shall remain in force for three months if approved by at least two-thirds of the total number of members then present in both Houses of the Federal Parliament. (5) A declaration

or order submitted for approval under clause (3) shall lapse if not approved under clause (4). (6) Unless otherwise provided in this Article,

the state of emergency under clause (1) shall continue to exist after the expiry of the period under clause (4) and may be extended for a further period of three months without further extension. (7) If a proposal under clause (6) is supported by at least two-thirds of the total number of members

then present in both Houses of the Federal Parliament, the state of emergency shall continue to exist for the period specified in that proposal. (8) In the event of the dissolution of the House of Representatives, clauses (3), (4), (6) and (7) shall not apply.

The National Assembly shall exercise the powers exercised by the Federal Parliament.

(9) After a declaration or order of a state of emergency has been made under clause (1), the National Assembly may issue such order as may be necessary to establish that state. The order so issued shall be in force as long as the state of emergency continues.

(10) When a declaration or order of a state of emergency is issued under clause (1), the provisions of Part 3 may be suspended for the duration of such declaration or order. However, the constitutional remedies

and remedies available under clauses (c) and (d) of clause (2) of clause (2) of section 16, section 17, section 18, section 19, section 20, 21, 22, 24, section 26, section 29, 30, 31, 32, 35, section 36, section 38, 39, section 40, section 2 and (3), 41, 42, 43, 45 and section 46 shall not be suspended.

(11) No application shall be made to any court for the enforcement of any provision of this Constitution under clause (10) or any question shall be raised in any court in respect of the enforcement of any provision of this Constitution.

(12) If any person has suffered any injury by reason of any act done by any officer while a declaration or order under this section is in force, the person may claim compensation for the injury suffered by him within a period of one month from the date of the expiry of such declaration or order. If such claim is made, the court may grant compensation and punish the offender in accordance with the federal law. (13) A declaration or order under this section may be made at any time by the Court.

Part-31

Amendment of

the Constitution 274. Amendment of the Constitution: (1) This Constitution shall not be amended in a manner that would prejudice the sovereignty, territorial integrity, independence and human sovereignty of Nepal.

(2) Subject to clause (1) and the other articles of this Constitution, a bill to amend or repeal any article of this Constitution may be introduced in either House of the Federal Parliament. However, clause (1) shall not

be amended. (3) A bill introduced under clause

(2) shall be published in the public domain for the information of the general public within twenty days of its introduction in the relevant House. (4) If a bill introduced under clause (2) relates to the change

of the boundary of a province or to any matter referred to in Schedule-6, the Speaker or Chairperson of the relevant House shall, within twenty days of its introduction in the Federal Parliament, send the bill to the Provincial Assembly for consideration. (5) A Bill sent under clause (4) shall be approved or rejected

within three months by the full members of the Provincial Assembly concerned then in office and shall be reported to the Federal Parliament. However, in the event that no Provincial Assembly has been established, the bill shall be approved

or rejected within three months by the assembly in which the Provincial Assembly was formed and its first meeting was held. (6) Failure to inform the House of the Federal Parliament in which

the Bill originated of its approval or rejection within the period specified in clause (5) shall not prevent the House in which the Bill originated from proceeding with the Bill.

(7) If, within the time limit specified in clause (5), the Provincial Assembly notifies the relevant House of the Federal Parliament of its rejection of the Bill, the Bill shall lapse.

(8) A bill passed by a Provincial Assembly without a majority in accordance with clause (5) shall be passed by a majority of at least two-thirds of the total number of members then present in the Federal Parliament.

(9) The bill passed under clause (8) shall be submitted for certification.

It will be presented before.

(10) The National Assembly shall certify the Bill introduced pursuant to clause (9) within fifteen days of its receipt and the Constitution shall be amended as soon as it is certified.

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Part-32

Miscellaneous 275. Provisions relating to the National Assembly: (1) If a decision is made by two-thirds of the total number of members then present in the Federal Parliament that a decision by the National Assembly is required on any matter of the National Assembly, then a decision on that matter may be taken by the National Assembly. (2) The National Assembly and other provisions relating to it shall be made in accordance with federal law.

276. Pardon: The Supreme Court may, in accordance with law, pardon, commute, or reduce the punishment imposed by any court, judicial or executive body, or administrative officer or body.

277. Awards, Honors and Decorations: (1) The President shall confer such awards, honors and decorations as may be conferred by the State. (2) No citizen of Nepal shall receive any award, honor or decoration without the approval of the Government of Nepal. Awards, honors, or decorations granted by foreign governments should not be accepted.

278. Power to enter into contracts: (1) The power to enter into contracts or agreements shall be vested in the Association. (2) The Government of Nepal shall consult with the concerned Province in the event of any dispute or dispute arising out of the list of powers of the Province. (3) The Provincial Council of Ministers shall, in consultation with the Government of Nepal, The contract may be concluded by mutual agreement.

279. Ratification, accession, acceptance or support of treaties or agreements: (1) The ratification, accession, acceptance or support of treaties or agreements to which the State of Nepal or the Government of Nepal is a party shall be in accordance with federal law. (2) In making laws under clause (1), the ratification, accession, acceptance or support of treaties or agreements of the State shall be subject to a resolution of two-thirds of the total number of members then present in both Houses of the Federal Parliament: (a) Peace and friendship, (b) Security and strategic relations,

(c) The boundaries of the State of Nepal, and

(d) The distribution of natural resources and their utilization. Among the treaties or

agreements of the nature referred to in clauses (a) and (d), the ratification, accession, acceptance

or support of treaties or agreements of a general nature which do not have widespread, serious or long-term

effects on the State may be made by a simple majority of the members present at a meeting of the House

of Representatives.

(3) No treaty or agreement entered into after the commencement of this Constitution shall apply to the Government of Nepal or to the Government of Nepal unless it has been ratified, acceded to, accepted or ratified in accordance with this

Article. (4) Nothing in

clauses (1) and (2) shall apply to the Government of Nepal.

No treaty or agreement shall be entered into that would adversely affect territorial integrity.

280. Special provisions regarding the performance of the functions of the National Assembly: If the office of both the National Assembly and the Deputy National Assembly falls vacant under this Constitution, the Speaker of the House of Representatives shall perform the functions of the National Assembly in accordance with this Constitution until the National Assembly or the Deputy National Assembly assumes office.

281. Review and revision of special powers: The Government of Nepal shall review and revise the implementation and impact of the system of special powers of the tribal and tribal communities on the basis of the Human Development Index along with the national census to be conducted every ten years.

282. Ambassadors and Special Representatives: (1) The National Assembly may appoint Nepali ambassadors and special representatives for certain purposes on the basis of the principle of citizenship. (2) The National Assembly shall obtain the certificate of appointment from foreign ambassadors and special representatives.

283. Appointments to be made in accordance with the principle of inclusion: Appointments to positions in constitutional bodies and offices shall be made in accordance with the principle of inclusion.

284. Provisions relating to the Constitutional Council: (1) There shall be a Constitutional Council, consisting of a Chairperson and members as follows, to make recommendations for the appointment of the Chief Justice and the heads and officers of the constitutional bodies under this Constitution:-

(a) Prime Minister	–President
(b) Chief Justice	–Member
(c) Speaker of the House of Representatives	–Member
(d) Speaker of the National Assembly (e)	–Member
Leader of the Opposition in the House of Representatives (f)	–Member
Deputy Speaker of the House of Representatives	–Member

(2) In the event of a vacancy in the office of the Chief Justice, the recommendation for the appointment of the Chief Justice shall be made by the Minister of Law and Justice of the Government of Nepal as a member of the Constitutional Council.

(3) The Constitutional Council shall,

one month in advance, make a recommendation for the appointment of the Chief Justice or any head or officer of the Constitutional Court in accordance with this Constitution. However, in the event of a vacancy arising from the death or resignation of such Chief Justice or any other person,

the Chief Justice or any other person shall be appointed to the office of the Chief Justice or any other person, as the case may be.

The committee may recommend for appointment to the post within one month.

(4) Other functions, duties and powers of the Constitutional Council and the procedure for the appointment of the Chief Justice or the head or officer of the constitutional body shall be in accordance with the federal law. (5) The

Chief Justice of the Government of Nepal shall act as the Secretary of the Constitutional Council.

285. Formation of Government Service: (1) The Government of Nepal may form the Federal Civil Service and other Federal Government Services as required to run the administration of the country. The formation, operation and service of such service shall be in accordance with the Federal Act. (2) Recruitment to the Federal

Civil Service shall be based on the principle of open and proportional inclusion through competitive examination in accordance with the Federal Law.

(3) The Provincial Council of Ministers, Village Executive Councils and Municipal Executive Councils may, as required by law, constitute and operate various government services to carry out their administration.

286. Constituency Delimitation Commission: (1) The Nepal Constituency Delimitation Commission shall be responsible for delimiting constituencies for the purpose of electing members of the Federal Parliament and members of the Provincial Assemblies in accordance with this Constitution.

The Government may constitute a Constituency Delimitation Commission with the following as its Chairperson and members: (a) a

serving judge of the Supreme Court; (b) a geographer; (c) a –President

sociologist or anthropologist; (d) an – Member

administrator or lawyer; (e) a member-secretary of the – Member

Government of Nepal of the highest rank; (2) The – Member

functioning of the Constituency Delimitation Commission shall be as per the provisions of the Constitution of the Commission.

(3) A person who is qualified to be a member of the Constituency Delimitation Commission shall be the Chairperson or

The following shall be eligible to be appointed as members:

(a) In the relevant department from the recognized university

(b) has completed the age of sixty-five

years, and (c) has high professional character. (4)

The office of the Chairperson or a member of

the Constituency Delimitation Commission shall become vacant in any of the following circumstances: (a) if he resigns in writing, (b) if he is transferred

by the Government of Nepal, the Minister of State,

(c) if he dies. (5) The Constituency Delimitation Commission shall

determine the constituency in

accordance with this Article.

The government will consider population and geography as the basis for the construction and will accordingly:

(a) Taking the population as the main basis and respecting as far as possible the ratio of population to the number of members, (b) In determining the constituencies in accordance with clause (a), at least one constituency shall be in each district existing at the commencement of this Constitution. (6) In determining the constituencies in accordance

with clause (5) , due regard shall be had to the population and geographical conditions, the population density, geographical location, administrative and legal accessibility, social and cultural aspects of the area.

(7) The constituency has been demarcated by the Constituency Demarcation Commission and The revised result will not be subject to questioning in any court.

(8) The Constituency Delimitation Commission shall submit a report on the work performed by it to the Government of Nepal. (9) The Government of Nepal, through the Council of Ministers, shall submit the report under clause (8) to the Federal Government.

The draft of the Act shall be submitted to the Election Commission for further implementation. (10) The Election Commission shall determine its own procedure. (11) The remuneration and facilities of the Chairperson and members of the Election Commission shall be paid to the Chief Election Commissioner and the Election Commissioner of the Election Commission respectively. (12) The election area determined in accordance with clause (5) shall be reviewed every twenty years. (13) The Government of Nepal shall provide the necessary staff to the Election Commission.

287. Language Commission: (1) The Government of Nepal shall, within one year of the commencement of this Constitution, constitute a Language Commission to be represented by the Provincial Governments. (2)

The Language Commission shall consist of the necessary number of members in addition to the Chairperson.

(3) The term of office of the Chairperson and members of the Language Commission shall be six years, subject to appointment. The Chairperson shall not be eligible for reappointment.

• Added by Pavilo amendment.

(4) A person who is qualified to hold the office of Chairperson or Member of the Language Commission.

Qualifications: (a) Post Graduate

in relevant field from a recognized university

Received the title,

(b) Having at least twenty years of work experience in the field of study, teaching, research

and investigation in relation to the various languages of Nepal, (c) Having completed

the age

of fifty-five years, and (d) Having high professional

character. (5) The office of the Chairperson

or a member of the Language Commission shall be vacant in any of the following circumstances:

(a) If he resigns in writing, (b) If he is transferred

by the Government of Nepal, the Ministry, (c) If he attains the age

of sixty-five years, (d) If he dies. (6) The functions,

duties and powers of the Language

Commission shall be as follows:-

(a) To determine the criteria to be fulfilled for recognition as a language for official business

and to recommend the language to the Government of Nepal,

(b) To recommend to the Government of Nepal the measures to be taken for the protection,

conservation and development of the language, (c) To

measure the level of development of the language and submit a proposal to the Government

of Nepal regarding the possibility of its use in education,

(d) To study, research and monitor the language. (7) The Language

Commission shall constitute an Executive Committee in accordance with clause (a) of clause (6).

The agreement will be completed within five years.

(8) The Government of Nepal, in coordination with the Provincial Government, shall establish a Language Commission in the Province.

It may establish branches. (9) Other

functions, duties, powers and procedures of the Language Commission shall be in accordance with

federal law.

288. ~~Capital:~~ (1) The capital of Nepal shall be Kathmandu.

(2) The capital of a province shall be decided by a two-thirds majority of the members of the Provincial Assembly for the time being in the Provincial Assembly in accordance with this Constitution. (3)

Until a

decision is made in accordance with clause (2), the Government of Nepal shall, as the case may be,

The work of the province will be conducted from this location.

289. ~~Special provisions regarding citizenship of officials:~~ (1) The election, nomination or appointment to the posts of President, Vice President, Prime Minister, Chief Justice, Speaker of the House of Representatives, Chairperson of the National Assembly, Provincial Chief, Chief Minister, Speaker of the Provincial Assembly and Head of the Security Agency shall be based on the nationality of the person elected, nominated or appointed.

(2) In addition to the posts mentioned in clause (1), a person who has acquired citizenship of Nepal by descent, a person who has acquired citizenship of Nepal by naturalization or a person who has acquired citizenship of Nepal by birth shall be eligible for appointment to posts in other constitutional bodies under this Constitution. However, a person who has acquired citizenship of Nepal by

naturalization or a person who has acquired citizenship of Nepal by birth shall have resided in Nepal for at least ten years, a person who has acquired citizenship of Nepal by naturalization or a person who has acquired citizenship of Nepal by naturalization under clause (6) of Article 11 shall have resided in Nepal for at least five years.

290. ~~Provisions relating to Guthi:~~ (1) The Federal Parliament shall make necessary laws regarding the rights of farmers and Guthi who have acquired the right of occupancy in Guthi land without adversely affecting the fundamental validity of Guthi. (2)

Other provisions relating to Guthi shall be made in accordance with the Federal Law.

291. ~~Eligibility for Appointment:~~ (1) Notwithstanding anything contained elsewhere in this Constitution, a citizen of Nepal who has obtained a permanent residence permit from a foreign country shall not be eligible for election, nomination or appointment to any post to be elected, nominated or appointed under this Constitution.

However, a person who has renounced his/her foreign permanent residence permit shall not be barred from being elected, nominated or appointed to that position after a period of at least three months. (2) A person who has obtained a

foreign permanent residence permit pursuant to clause (1)

Other provisions relating to the citizenship of Nepal shall be made in accordance with federal law.

292. Provisions relating to parliamentary hearings: (1) The Chief Justice, the Judge of the Supreme Court, the members of the Judicial Council, the heads or officials of the constitutional bodies and the Ambassadors appointed under this Constitution shall be subject to parliamentary hearings in accordance with federal law before their appointment. (2) For the purposes of clause (1), a joint committee consisting of

fifteen members from both Houses of the Federal Parliament shall be constituted in accordance with federal law. (3) The members of the joint committee referred to in clause (2) shall be members of the Federal Parliament.

During that term, he will not be allowed to appear before the Supreme Court and plead guilty.

293. Monitoring of the work and activities of constitutional bodies: The heads and officials of constitutional bodies shall be responsible and accountable to the Federal Parliament. The Committee of the House of Representatives may monitor and evaluate the work and activities of the National Human Rights Commission and other constitutional bodies and give necessary directions or advice.

294. Annual report of the Constitutional Body: (1) The Constitutional Body shall submit an annual report of its work and activities under this Constitution to the President and the President shall cause the same report to be submitted to the Federal Parliament through the Prime Minister. (2) The matters to be disclosed in the annual report under clause (1) shall be as per the Federal law. (3) Notwithstanding anything contained in clause (1), the Constitutional Body may prepare separate reports on the work and activities of each Province and submit them to the Head of the Province.

Part-33

Transitional Arrangements

295. Formation of Federal Commission: (1) Nepal to give advice on matters relating to the delimitation of provinces

The Government may constitute a Federal Commission. (2) The

naming of the provinces in accordance with clause (3) of Article 56 shall be done by the relevant provinces.

Two-thirds of the total number of members of the Assembly shall be elected

from among the electors. (3) The Government of Nepal shall constitute a Commission for determining the number and boundaries of the rural municipalities, municipalities and special, protected or autonomous areas to be determined in accordance with clauses (4) and (5) of Article 56. The Commission shall determine the number and boundaries of the rural municipalities, municipalities and special, protected or autonomous areas in accordance with the criteria determined by the Government

of Nepal. (4) The Commission shall be constituted under clause (3) on the commencement of this Constitution.

The term of office of that commission shall be one year.

296. Constituent Assembly to be converted into Legislative-Parliament: (1) The Constituent Assembly existing at the commencement of this Constitution shall, after the commencement of this Constitution, be automatically converted into Legislative-Parliament and the term of office of that Legislative-Parliament shall continue until 2074 BS Magh 7. However, if a meeting

of the Legislative Assembly is held before the expiry of that term, the Legislative-Parliament shall continue to exist until the last day of filing of nomination papers for that meeting. (2) The matters pending in the Legislative-Parliament at the commencement of this Constitution shall

The legislator shall be in the Legislative Assembly in accordance with subsection (1).

(3) The work to be performed by the Federal Parliament under this Constitution shall be performed by the Parliament in accordance with the procedure laid down in clause (1) until the decision of the Legislative Assembly constituted

under this Constitution is taken. (4) After the commencement of this Constitution, until the Provincial Assembly is constituted, the power of the Provincial Assembly to make laws under Schedule-6 shall be vested in the Parliament in accordance with the procedure laid down in clause (1). The law so made shall come into force in the Province one year after the Provincial Assembly is constituted under this Constitution.

(5) The Legislative-Parliament Secretariat, its Secretary, Secretary and staff shall be established in the Federal Parliament Secretariat under this Constitution under the supervision of the Minister of State for the period appointed by the Minister. (6) If the Legislative-Parliament is not in session

at the time of the commencement of this Constitution, the President shall call a session of the Legislative-Parliament within the first day of the commencement of this Constitution. Thereafter, the President shall call a session of the Legislative-Parliament from time to time.

297. Provisions relating to the President and the Vice President: (1) The President and the Vice President in office at the commencement of this Constitution shall hold office until another President and Vice President are elected in accordance with this Article.

(2) If the session of the Legislative Assembly is in session at the commencement of this Constitution, and if the session is in session, if the session is called in accordance with clause (6) of Article 296, the election of the President and the Vice President shall be made by the Legislative Assembly in accordance with clause (1) of Article 296, on the basis of a political committee within one month. (3) If the committee cannot be formed in accordance with

clause (2), the oath of office of the President and the Deputy President shall be taken by the entire membership of the Legislative Assembly for the time being. (4) If the office of the President or Deputy

President elected in accordance with clause (2) or (3) falls vacant for any reason, the oath of office of the President or Deputy President shall be taken by the Legislative Assembly in accordance with this Article until the Federal Parliament is formed. (5) The

office of the President or Deputy President elected in accordance with this Article shall continue until a new President or Deputy President is elected by the Electoral College in accordance with Article 62 and assumes office.

(6) The office of the President or Vice President elected under this Article shall become vacant in any of the

following circumstances: (a) if the President resigns in writing to the Vice President and the Vice President resigns in writing to the President,

(b) The filing of a complaint against the person under clause (7)

If so,

(c) If another President or Vice President is elected from the Electoral College

under Article 62 and assumes office, (d) If he

dies. (7) On the charge of

serious violation of this Constitution and the law by the President or Vice President elected under this Article, at least one-fourth of the total number of members then present in the Legislative Assembly under clause (1) of Article 296, a motion of impeachment may be submitted against him. If such motion is supported by at least two-thirds of the total number of members then present in the Legislative Assembly, he shall be removed from office.

298. ~~Provisions relating to the formation of the Council of Ministers:~~ (1) The Council of Ministers existing at the commencement of this Constitution shall continue to exist until a Council of Ministers is constituted

under clause (2). (2) If, at the commencement of this Constitution, the session of the Legislative Assembly is in session, if the Constitution is in session, and if the session is in session, if the session is in session, if the session of the Legislative Assembly convened under clause (6) of Article 296 is in session, the Council of Ministers shall be constituted under the chairmanship of the Prime Minister on the basis of political consensus within two days after the commencement of this Constitution.

(3) If the meeting cannot be held in accordance with clause (2), the Prime Minister shall be elected on the basis of the total number of members of the Legislative Assembly for the time being.

(4) The

composition and division of functions of the Council of Ministers formed under this Article shall be decided by mutual agreement.

(5) The Council of Ministers formed under this Article shall consist of a Deputy Prime Minister and other Ministers as may be required.

(6) The Prime Minister appointed under this Article shall, on the advice of the relevant party, appoint from among the members of the Legislative Assembly, the Ministers appointed under Clause (5).

(7) The Prime Minister and other Ministers appointed under this Article shall be collectively responsible to the Legislature-Parliament, and the Ministers shall be individually responsible to the Prime Minister and the Legislature-Parliament for the work of their ministries.

(8) In any case, the Prime Minister appointed under this article may
He shall be relieved

from office: (a) if he resigns in writing to the Minister, (b) if
a motion of no confidence is passed against him under clause (14) or if a motion
of no confidence is not passed,
(c) If he ceases to be a member of the Legislative
Assembly, (d) If he dies. (9)

The Deputy Prime Minister, Minister, Minister of State and
A Minister of State shall be relieved of his office in any of the following
circumstances: (a) if he resigns in writing to the Prime Minister,
(b) if the Prime Minister is relieved of his office in accordance with clause
(8), (c) on the advice of the relevant party or in consultation with the relevant party.
(d) If the Prime Minister resigns from
office, (10) If the Prime Minister
resigns from office under clause (8),

Until a new Council of Ministers is formed, the Council of Ministers will continue to conduct its business.

(11) In the event of the death of the Prime Minister appointed under this Article, the Deputy Prime Minister or the Senior Minister shall act as Prime Minister until another Prime Minister is elected.

(12) The Prime Minister appointed under this Article may, at any time, if he deems it necessary or appropriate to declare that he has the confidence of the Legislative Assembly, present a motion before the Legislative Assembly for a vote of confidence.

(13) At least one-fourth of the total number of members of the Legislative Assembly may move a motion of no confidence in the Prime Minister appointed under this Article in writing. However, a motion of no confidence may not be moved more than once
in six months against the same Prime Minister appointed under this Article.

(14) Sub-sections (12) and (13) of the Act provide for the decision making authority to propose a scheme—

It is based on the total number of members currently in Parliament.

(15) After the commencement of this Constitution, the Government of Nepal shall exercise the executive power of the Province until the Provincial Council of Ministers is formed in accordance with this Constitution.

299. Provisions relating to Speaker and Deputy Speaker: (1) The Speaker and Deputy Speaker of the Legislative Assembly existing at the commencement of this Constitution shall hold office until another Speaker and Deputy Speaker are elected in accordance with this Article. (2) If the session of the Legislative Assembly is in session at the commencement of this Constitution, and if the session is in session, the members of the Legislative Assembly shall, within twenty days of the commencement of this Constitution, elect a Speaker and a Deputy Speaker from among themselves on the basis of political affiliation.

(3) If the number of members cannot be determined in accordance with clause (2), the member of the Legislative Assembly who receives the number of members for the time being in the Legislative Assembly shall be deemed to have been elected to the office of Speaker or Deputy Speaker of the Legislative

Assembly. (4) The Speaker and Deputy Speaker, when elected in accordance with clause (2) or (3), shall be members nominated by the political parties representing the Legislative Assembly. (5) The Speaker or Deputy Speaker,

while performing his functions under this Constitution, shall be a person of impartiality, not in favour of or against any political party. (6) The office of Speaker or Deputy Speaker shall become vacant in any of

the following circumstances:

- (a) If he resigns in writing, (b) If he ceases to be a member of the Legislative Assembly, (c) If a resolution is passed by not less than two-thirds of the total number of members of the Legislative Assembly that he has not conducted himself in a manner befitting the office,

(d) In the event of the death of the

person. (7) The meeting to discuss a motion that the Speaker of the House of Parliament has not conducted himself in accordance with the provisions of the Constitution shall be chaired by the Deputy Speaker or any other member, and the Speaker shall be entitled to participate and vote in the discussion of such motion.

(8) Other procedures relating to the appointment of the Speaker and Deputy Speaker and the procedure for submitting and passing a motion that the Speaker or Deputy Speaker has not conducted himself in a manner befitting the office shall be in accordance with the Rules of Parliament in force for the time being.

300. ~~Provisions relating to the administration of justice:~~ (1) The Supreme Court, the Constituent Assembly Court, the Court of Appeal and the District Courts existing at the commencement of this Constitution shall continue to exist until the structure of the judiciary is established in accordance with this Constitution. This Constitution shall not be deemed to prevent the determination by the Courts of cases filed in such Courts before the commencement of this Constitution and of cases filed after the commencement of this Constitution. (2) The Chief Justice or Judge of the Supreme Court, the Chief

Justice of the Court of Appeal and the District Courts sitting at the commencement of this Constitution shall be deemed to have been appointed in accordance with this Constitution.

(3) A High Court shall be established within one year of the commencement of this Constitution in accordance with Article 139 of the Federal Law. After the establishment of such a Court, the Court of Appeal existing at the commencement of this Constitution shall be dissolved. (4) After the establishment of the High Court under

clause (3), the cases pending in the Court of Appeal shall be transferred to the High Court designated by the Government of Nepal, in consultation with the Judicial Council, by notification in the Nepal Gazette. (5) After the establishment of the High Court under clause (3), the Chief Justice, on

the advice of the Judicial Council, shall appoint the Chief Justice and Judges of the Court of Appeal existing at the commencement of this Constitution as the Chief Justice and Judges of the High Court.

(6) The Court of Appeals which existed at the time of the commencement of this Constitution shall
Additional judges may serve for the duration of their appointed term.

(7) Cases relating to criminal offences punishable by imprisonment for a term exceeding one year, which
were pending in any body other than the courts at the time of the commencement of this Constitution, shall be
transferred to the relevant district court after the commencement of this Constitution.

301. Provisions relating to constitutional bodies and officials: (1) The constitutional bodies existing at the commencement of
this Constitution and the provisions of this Constitution shall be deemed to have been constituted under this
Constitution and the matters pending before such bodies shall not be deemed to have been disposed of under this
Constitution. (2) The heads or officials of constitutional bodies existing at the
commencement of this Constitution shall be deemed to have been appointed under this Constitution and
shall continue to hold office under the authority of the person so appointed. (3) At the commencement of this
Constitution, the Commission for the Investigation of Abuse of Power and the Public
Service Commission shall have a number of executive officers appointed by the President in excess of
the number specified in this Constitution and shall continue to hold office under the authority of the President.

302. Formation and operation of government services in the provinces and local governments: (1) The provinces and local governments
The Chief of Essential Services Directorate, Government of Nepal will make necessary arrangements.
(2) Notwithstanding the provisions of clause (1), the Government of Nepal may, in accordance with law,
adjust the service system by adjusting the civil servants working in the government service at the time of the
commencement of this Constitution to the federal, provincial and local levels.

303. Provisions relating to local bodies: (1) The local bodies existing at the commencement of this Constitution shall continue
to exist until the number and area of local bodies are determined in accordance with this Constitution. (2) The
appointment of the officers of the
local bodies existing under clause (1) shall be in accordance with law. (3) The officers of the local bodies
elected under clause (2) shall continue to
exist until the
They will remain in place until the local people agree, as per the constitution.

304. ~~Existing laws to be enforced:~~ (1) The laws of Nepal in force at the commencement of this Constitution shall continue to be enforced until repealed or amended.

However, any law inconsistent with this Constitution shall automatically become invalid until it is enacted one year after the first session of the Federal Parliament convenes under this Constitution.

(2) All acts relating to judicial proceedings under the Interim Constitution of Nepal, 2063 shall be deemed to have been done in accordance with this Constitution.

305. ~~Power to remove obstacles:~~ If any obstacle arises in the implementation of this Constitution until the commencement of its second session after the approval of the Federal Parliament in accordance with this Constitution, the President may, on the advice of the Government of Nepal and the Council of Ministers, issue necessary orders to remove such obstacles. After such order is issued, it shall be submitted to the Legislative Assembly or the Federal Parliament sitting immediately thereafter for approval.

Part-34

Definitions and

Interpretation 306. Definitions and Interpretation: (1) Unless the context otherwise requires,

in this Constitution,— (a) the term “minority” shall mean the ethnic, religious and ethnic groups whose population is less than one per cent as determined by the Federal Law and the term shall mean the entire group having its own ethnic, religious and ethnic identity, aspiring to preserve it, and suffering discrimination and

oppression. (b) the term “law” shall mean the Federal Law, the Provincial Law and the local law.

(c) the term “section” shall mean the section of this Constitution.

(d) the term “municipality” shall mean the metropolitan municipality and the sub-municipality.

(e) “Citizen” means a citizen of Nepal. (f) “Province” means the area and form of the federal unit of Nepal divided into federal units in accordance with this

Constitution. (g) “Remuneration” means remuneration including salaries, allowances and any other form of remuneration and facilities. (h) “State Power” means the power of the executive, legislative and judicial administration of the State and this term includes the power of the executive. (h) “Bill” means a draft amendment to the Constitution or an Act introduced

in the Federal Parliament or the Provincial Assembly. (j) “Union” means the highest unit of the federal structure.

(k) “Federal unit” means the Union, State and local governments. (l) “Constitutional body” means the Commission for the Investigation of Abuse of Power, the Auditor General, the Public Service

Commission, the Election Commission, the National Human Rights Commission, the National Natural Resources and Finance Commission, the National Housing Commission, the National

The Commission for the Protection of Minorities, the

(2) Unless the context or the context otherwise requires, the legal provisions relating to the interpretation of laws, subject to the provisions of this Constitution, shall apply to the interpretation of this Constitution, as long as they apply to the interpretation of Nepal Law.

Part-35

Provisional title, commencement and

repeal 307. Provisional title and commencement: (1) This Constitution shall be called the "Constitution of Nepal".

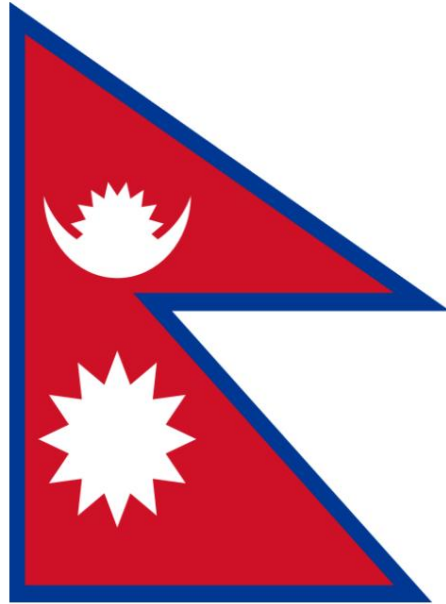
(2) This Constitution was promulgated on the sixth day of Asoj in the year two thousand and seventy-two.

It will begin.

308. Repeal: The Interim Constitution of Nepal, 2063 BS, is hereby repealed.

नेपाल कानून आयोग

Nepal's Raviya Sinda



Nepal's national flag-making line

(7) A line is drawn to the right from the middle of the line C to the right parallel to the line A.

Touch the point at T.

(8) Place the point T at the intersection of the lines T and J. (9) Join the

point and C. (10) Place the

point D at the intersection of the points T and J. (11) Taking D as the

center, draw the line B and D at a minimum distance from the tangent line and place the point D on the

lower part of the line J. (12) Touching D, draw a line parallel to A and B

from left to right and name the point where it touches C as N. (13) Taking the center T, draw a circle

segment with the diameter of D in the lower

part and name the line drawn from D as N and N at the two points where it touches it as N and N

respectively. (14) Taking D as the centre, draw a circle so that the diameter of D

touches the lower part of the circle. (15) Taking D as the centre, draw a circle so that the diameter of D

touches the upper

part of the circle and name the points where it touches D and D respectively. Connect D and D. Name the

points where D and D intersect as N. (16) Taking N as the centre, draw a circle so that the diameter

of D touches the upper part of D and D at two places. (17) Taking N as the centre, draw a circle

so that the diameter of D and D touches the upper part of D and D at two places. (18) No. of this Schedule.

(16) and the newspaper section of No.

(17)

Making eight equal angles of the moon.

(c) The sun is made by (19)

half of the K F, parallel to K B and touching K G.

Rekha jakhchne.

(20) The circle is drawn with the diameter of D and D, taking B as the centre and the point where J and P intersect.

Complete the

circle. (21) Taking B as the center, draw a complete circle with the radius of the circle.

(22) The circular figure of No. (20) of this Schedule and the circular figure of No. (21) of this Schedule shall be made in such a way that two quadrilaterals of equal angles to the sun's rays shall be drawn in the middle of the circle enclosed within the circular figure.

(d) To make the border (23) a dark

blue oval-shaped border of the width of the border shall be added to the border of the entire border, making three triangles at the five corners of each corner.

(24) If using a rope for the egg, place the same strip as the one used for the egg. If the egg is inserted into the stick, widen the edge of the soil if necessary. If using a rope or stick, place a plant on the strip of the stick.

Explanation: The lines drawn while making the egg are drawn as follows: $\ddot{y} \ddot{y} \ddot{y}$, $\ddot{y} \ddot{y}$, $\ddot{y} \ddot{y}$, $\ddot{y} \ddot{y}$, $\ddot{y} \ddot{y}$, $\ddot{y} \ddot{y}$ and $\ddot{y} \ddot{y}$. Similarly, the sun's outer and inner circles and other circular segments are drawn as well. The sun is not shown in the egg.

Note: The size of the Rabi egg will be as determined by the Government of Nepal.

Schedule-2

(Related to sub-clause (1) of section 9)

Nepali folk song _____

A single garland of hundreds of flowers, Nepali

The Mechi-Mikali, who have spread to the whole world.

The wonder of natural heritage worth billions

The body is strong and stable.

The land of knowledge is the land of the wise.

This beloved motherland, Nepal, is intact.

Bilu Jami Bhara Dhamav Sanskrimi Chanvishal

Jai Jai Nepal, the progressive nation.

§Schedule-3

(Related to sub-clause (2) of section 9)

Nepal's Manashan Seal



Note: This sign can be made larger or smaller as needed.

The Government of Nepal is using Mandhavariri Riko in it.

Schedule-4

(Related to sub-clause (3) of section 56)

Districts in the province and neighboring provinces

Region No.	Region No. 2
1. Jalpaiguri	1. Safari
2. Panchthar	2. Masraha
3. Ilam	3. Sagittarius
4. Sankhya Sabha	4. Miottari
5. Dhangadhi	5. Salavi
6. Dhankuta	6. Rohit
7. Bhojpur	7. Twelve
8. Khotang	8. Urination
9. Solukhumbu	
10. Okhaldhunga	
11. Udaipur	
12. Morang	
13. Sunsari	
14. Sunsari	

Region No. 3	Region No. 4
1. Dolakha 2. Ramechhap 3. Masandhuli 4. Kavrepelanchok 5. Sandhupalchowk 6. Rasuwa 7. Nuwakot 8. Dhading 9. Jachin 10. Makianpur 11. Bhaktapur 12. Lamalipur 13. Kathmandu	1. Gorkha 2. Lamjung 3. Ninu 4. Kaski 5. Manang 6. Mushang 7. PIB 8. Syangja 9. Myagdi 10. Baglung 11. Nilparasi (East of Badwighat Susta)

Region No. 5	Region No. 6	Region No. 7
1. Nilparasi (Badighat West) 2. Rupandehi 3. Kapilavastu 4. Palpa ५. Aghavkhanchi 6. Gulmi 7. Ruku Ma (Eastern part) 8. Rolpa 9. Pyuthan 10. Dang 11. Banke 12. Badavaya	1. Bowing (last part) 2. Salyan 3. Dolpa 4. Jumla Mugu ५. Imula 7. Kamalkot 8. Jajarkot 9. Dailekh 10. Sukhna	1. Bajura 2. Bang 3. Doti 4. Achham 5. Dacha Uvala 6. Baidi 7. Dadeldhura 8. Kanchanpur 9. Kailali

Schedule-5

(concerning sub-clause (1) of Article 57 and Article 109) List of powers of
the Union _____

S.No.	
Ÿ.	Defense and military related
	(a) Protection of national unity and geographical integrity
	(b) Regarding security of the railway
Ÿ.	War and Defense
Ÿ.	Knowledgeable, factory-based and production-related
Ÿ.	Central Security, Armed Forces, National Intelligence and Investigation, Public Security
Ÿ.	Central Planning, Central Banks, Financial Policy, Currency Banking, Monetary Policy, Foreign Exchange Grants, subsidies and loans
Ÿ.	Foreign and coup d'état matters, inter-governmental relations and the United Nations
Ÿ.	International treaties or agreements, extradition, mutual legal assistance and international Border, Inter-Radial Border River,
Ÿ.	Distance, Distribution of Remedial Vacancies, Remedial, Temlimbhajan and Li Ak
Ÿ.	Customs, Exemption, Value Addition Tax, Institution Income Tax, Personal Income Tax, Wage Tax, Capital Duty, Fiscal Duty, Tourism Duty, Service Charge Duty, Penalty
10.	Federal Manpower Service, Judicial Service and other Government Services
11.	Rules and standards related to water resource conservation and sustainable use
12.	Intra-state and inter-state power transmission lines
13.	Central Bank (National and International Standards and Quality) 14. Centrally
	funded large power, irrigation and other projects and projects
15.	Central Universities, Central Universities, University Standards and Management, Central Library
16.	Health policy, health services, health standards, quality and monitoring, public health Special Service Provider Hospital, Traditional Medicine Service, Security Disease Control
17.	Federal Parliament, Federal Executive, Local Government Matters, Special Structures
18.	International trade, exchange, ports, quarantine
19.	Air India, International Airport
20.	State Transport Policy, Management of Railways and State Public Ways
21.	Supreme Court, High Court, District Court and Justice Administration

	Law
22.	Citizenship, Capital, Religion, Movement
23.	Atomic Energy, Atmosphere and Space
24.	Intellectual Property (including Patents, Designs, Trademarks and Copyright Rights)
25.	Measurement
26.	Mining
27.	National and International Human Settlements, National Parks, Wildlife Reserves and Aquariums, National Forest Policy, Carbon
28.	Insurance Policy, Mediation,
29.	Cooperative Regulation
30.	Land Use Policy, Slum Development Policy, Tourism Policy, Climate Friendly
31.	Arbitrariness of criminal, civil law
32.	Surjakshi Printing Press
33.	Social security and poverty alleviation
34.	Constitutional Manakayiru, Raaviya Mitika Aayogiriru
35.	Archaeological sites and ancient monuments
	Union, state and local government authorities, any subject not mentioned in the list or the general list and any subject included in the

Schedule-6

(Related to clause (2) of section 57, clause (4) of section 162, section 197, clause (3) of section 231, clause (7) of section 232, clause (4) of section 274 and clause (4) of section 296)

List of provincial authorities

S.No.	
1.	Provincial administration and security
2.	Operation of financial institutions, hunting organizations, and foreign grants and assistance within the limits of the Center in accordance with the policies of Nepal Rastra Bank
3.	Radio, FM, Television Bhajan Operation
4.	House registration fee, vehicle tax, entertainment tax, advertisement tax, tourism, agricultural income tax, service fee, penalty
5.	Provincial Civil Service and other government services
6.	State Yank
7.	Provincial level electricity, irrigation and drinking water services, changes
8.	State University, Higher Education, Library, Museum
9.	Healthcare
10.	Provincial Assembly, Provincial Council of Ministers
11.	Intra-provincial trade
12.	State Public Works Department
13.	Provincial Investigation Bureau
14.	Geographical arrangement of provincial government offices and other necessary measures
15.	State Public Service Commission
16.	Land management, land records
17.	Mining exploration and management
18.	Preservation and use of language, dialect, culture, art and religion
19.	State Forests, Water Use and General Administration within the State.
20.	Agriculture and livestock development, factories, industrialization, trade, transportation
21.	Guthi Management

Schedule-7

(Related to Clause (3) of Article 57, Article 109, Clause (4) of Article 162, Article 197) List of Common

Powers of

the Union and the Provinces

S.No.	
1.	Criminal and civil procedure and evidence and oaths (legal recognition, public (Acts and Records and Judicial Process)
2.	Supply, description, price control, quality and monitoring of essential sanitation services
3.	Detention, imprisonment, and exile in cases related to national security Arrangements for management and security
4.	Transfer of accused, detainees and prisoners from one province to another
5.	Laws relating to family matters (marriage, property transfer, divorce, abdication, separation, illegitimate son, illegitimate daughter inheritance and joint family)
6.	Acquisition of wealth, intervention and creation of power
7.	Contract, partnership, and agency related
8.	Bankruptcy and bankruptcy
9.	Beginning and end
10.	Planning, family planning and population management
11.	Social security and employment, trade unions, resolution of industrial disputes, labor rights, rights and disputes related work
12.	Law, Auditing, Engineering, Medicine, Ayurveda, Veterinary Midwife, midwifery and other professions
13.	State border rivers, waterways, habitat conservation, biological diversity
14.	Communication related to media
15.	Industry and minerals and geological preconditions
16.	Camsnow, Jachattha
17.	Natural and non-natural disasters pre-emption, rescue and recovery
18.	Tourism, drinking water and sanitation
19.	Movies, cinema, sports
20.	Insurance Business Operations and Management
21.	Poverty Alleviation and Industrialization
22.	Scientific research, science education and human resource development

23. Intra-regionally spread forests, wildlife, forest conservation areas	Water use 24.
Land policy and related laws 25.	
Employment and unemployment assistance	

नेपाल कानून आयोग

Schedule-8

(Related to clause (4) of section 57, clause (2) of section 214, clause (2) of section 221 and clause (1) of section 226) List of powers of local bodies

S.No.	
१.	Town Priory
२.	Predatory organization
३.	FM Operation
४.	Local taxes (property tax, house building tax, house registration fee, etc.) Vehicle Tax), Service Fee, Tourism Tax, Advertisement Tax, Profession Tax, Land Tax (Malpok), Penalty, Entertainment Tax, Malpok Collection
५.	Provision of local services
६.	Local banks and record collection
७.	Local level development projects and initiatives
८.	Elementary and secondary education
९.	Basic health and sanitation
10. Local	market management, environmental protection and biodiversity
11. Local	roads, rural roads, agricultural roads, irrigation
12. Village	assembly, town assembly, district assembly, local court, conciliation and mediation arrangement
13. Local	Records Management
14. Home	Jagga Dhani Puja Details
15. Agriculture	and Animal Husbandry, Agricultural Production Management, Animal Husbandry, Hunting
16. Provision	for senior citizens, disabled persons and the infirm
17. Bank	collection of unemployed
18. Management,	operation and control of agricultural extension
19. Drinking	water, small hydropower projects, renewable energy
20. Disaster	Management
21. Protection	of water bodies, wildlife, mines and minerals
२२.	Preservation and development of language, culture and literature

Schedule-9

(Related to clause (5) of section 57, section 109, clause (4) of section 162, section 197, clause (2) of section 214, clause (2) of section 221 and clause (1) of section 226)

List of common powers of the Union, States and Local

S.No.	Governments
१.	hunter
२.	Education, sports and literature
३.	Health
४.	Agriculture
५.	Services like electricity, drinking water, irrigation
६.	Service fees, taxes, penalties and royalties received from natural resources, tourism charge
७.	Forests, jungles, wildlife, pastures, water use, the atmosphere, the environment and biological diversity
८.	Khani and Khamanj
९.	Disaster management
10.	Social Security and Poverty Alleviation
11.	Personal events, births, deaths, marriages and banks
12.	Antiquities, ancient monuments and museums
13.	Sukum Ambasi System
14.	Royalties received from natural sources
15.	Vehicle Permission